



Contract No. 22000011432

CONTRACT

This contract, made this 23rd day of May A.D., 2022, between the City of Richmond, Virginia, by the Department of Procurement Services, hereinafter referred to and designated as "City", and

Addo Enterprises, Inc.	phone:	(804) 228-0940
2010 Chamberlayne Avenue	fax:	(804) 228-0951
Richmond, VA 23222	email:	RDanil@AddoGC.com
54-1972178	contact name:	Rabieh R. Danil

or his, its or their successors, executors, administrators and assigns, hereinafter referred to and designated as "Contractor";

WITNESSETH: That the said Contractor agrees with the said City, for the consideration herein mentioned, and at his, its or their own proper cost and expense to do all the work and furnish all the materials, equipment and labor necessary to carry out this agreement in the manner and to the full extent as set forth in the notice to bidders, specifications, general and special provisions, proposal, plans and drawings, and all documents referred to, and under security as set forth in the attached contract bond, which are hereby adopted and made part of this agreement as completely as if incorporated herein, and to the satisfaction of the City of Richmond, who shall have at all times full opportunity to inspect the materials to be furnished and the work to be done under this agreement.

It is agreed that the work to be done under this contract for the **FY22 Sidewalk Improvements** will consist of general contracting services that include, but are not limited to: mobilization, maintenance of traffic (vehicular and pedestrian), street closures, sidewalk construction, sidewalk and curb demolition and replacement, handicap ramp installation, pavement patching, tree root work, tree removal, stump removal, adjusting utility castings, adjusting/replacing drainage basins, and all other work necessary to repair existing sidewalk. Contractor to perform the work in accordance with the terms of **IFB No. 220010779**, and all addenda, notice to bidders, specifications, general and special provisions, and conditions, bid, plans and drawings and all documents referred to explicitly included and made part of this contract by reference. The Maximum Authorized Contract Amount is **Seven Hundred Twenty Thousand US Dollars and 00 Cents (\$720,000.00)**. The performance time is **365** consecutive calendar days in accordance with the Project Book.

In consideration of the foregoing premises, the City agrees to pay to the Contractor for all items of work performed and materials furnished at the prices and under the conditions set forth in accompanying proposal. In addition, all payments to MBE subcontractors must be verified by indicating date and amount of payment and accompanied by the Affidavit of Claims.

APPROVED:

Rabieh R. Danil
NAME (Printed)

[Signature]
(Signature)

President
(Title)

6/1/2022
(Date)

WITNESS: [Signature]

ATTEST: [Signature]

CITY OF RICHMOND

Betty J. Burrell 6/23/2022
Director of Procurement Services Date

APPROVED AS TO FORM:

ASST CITY ATTORNEY

**CITY OF RICHMOND
DEPARTMENT OF
PROCUREMENT SERVICES
RICHMOND, VIRGINIA
(804) 646-5716**

April 7, 2022



**Invitation for Bids No. 220010779
for
FY 22 City Sidewalk Improvements**

**Due Date: April 28, 2022
Time: 11:00AM**

NOTE: Bidder choosing to submit proposals through **hand-delivery** should allow extra time for delivery of bids. Hand-delivered bids will be accepted only during the hours of 9:00 am to 4:00 pm Monday through Friday at the 9th Street entrance to City Hall at 900 East Broad Street, Richmond, Virginia 23219. Bidders choosing to hand-deliver bids must sign in at the security desk on the 1st Floor before delivering proposals to the 11th Floor, Suite 1104. Bids will not be accepted after the Due Date and Time listed above.

Request for Bid Prepared by:

Name: Corliss Spurlock

Title: Senior Procurement Analyst

Office: (804) 646-5804

Cell Phone: (804) 489-7232

Fax (804) 646-5989

Email: Corliss.Spurlock@rva.com

Department of Procurement Services

<https://www.rva.gov/procurement-services/solicitations>

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BID FORM

SEALED BIDS WILL BE RECEIVED at the Department of Procurement Services, City Hall, 900 E. Broad Street, Rm. 1104, Richmond, Virginia 23219, UNTIL BUT NOT LATER THAN **11:00 A.M. ON April 28, 2022**, AND WILL BE OPENED **2:00 P.M. ON April 29, 2022**.

To Procurement Services, Room 1104, 900 East Broad Street, Richmond, Virginia:

For the construction of **FY 22 City Sidewalk Improvements**

Made by: _____
(Name and Title of Individual Executing the Bid)

Name of Bidder: _____
(Company Name)

Full Address: _____

City and State: _____

Phone Number: _____ **Fax Number:** _____

Email Address: _____

Virginia Contractor's Registration Number: _____

Federal Tax Identification Number: _____

By submission of this bid and authorized signature therein, the above-named Bidder certifies and affirms compliance with all terms and conditions herein and declares that:

- 1) the Bidder is of lawful age and that no other person, firm, corporation or joint venture has any interest in this Bid or in the Contract proposed to be entered into.
- 2) the Bid is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a Bid for the same purposes and is in all respects fair and without collusion or fraud.
- 3) the Bidder is not in arrears to the City of Richmond, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City of Richmond; and has not been delinquent or unfaithful in any former contract with the City of Richmond.
- 4) no officer or employee or person whose salary is payable in whole or in part by the OWNER is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this bid, or in the performance of the Contract, or in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof.

- 5) in compliance with Sec. 3.3 of the General Conditions of the Contract, the Bidder has carefully examined the site of the work and that, from his own investigations, is satisfied as to the nature and location of the work, the character, quality, and quantity of materials and the kind and extent of equipment and other facilities needed for the performance of the work, the general and local conditions and all difficulties to be encountered, and all other items which may, in any way, affect the work or its performance.
- 6) That the Bidder has thoroughly examined and is familiar with copies of the Contract Documents and the following addenda receipt of which is hereby acknowledged.

Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____

If none, write "none"

- 7) The Contract will be awarded to the lowest responsive, responsible Bidder whose Total Unit Base Bid as offered in the Bid Form represents the lowest total price and complies with the conditions of the Bid, provided the bid is reasonable and it is to the best interest of the Owner to accept it.
- 8) The undersigned furthermore agrees to perform at the request of the Owner, any related extra (or less) work than required by the Contract Documents which may arise during construction on the basis of a lump sum, unless noted otherwise, negotiated between the Contractor and the Owner for said extra (or less) work or for a compensation of actual cost of labor, material and equipment rental involved in said extra (or less) work plus a percentage computed as listed below for overhead and profit as described in the Conditions of the Contract:

Where the work is performed by the Contractor's own forces, the percentage shall be _____ percent (____%) of the cost of the work for overhead and or profit, not to exceed 15%. Where work is performed by a subcontractor, the percentage due to the subcontractor plus the General contractor's mark-up shall be _____ percent (____%) of the cost of the work for overhead and profit, not to exceed 25%.

- 9) If accepted by the Owner, the Bidder shall execute the contract and furnish, satisfactory to the Owner, a Performance Bond and Payment Bond for labor and materials in accordance with the General Conditions of the Contract unless so stated elsewhere in the bid documents.
- 10) Bidder agrees that no contract shall result from the submission of his bid and no liability shall accrue with respect thereto until a written contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner.
- 11) The undersigned further agrees to complete the work as bid within **365** consecutive calendar days after Notice to Proceed. As the time allotted for the completion of the Work is of the essence, if the work is not completed within specified time for the completion of the Work, there shall be deducted from the contract price, not as a penalty but as liquidated damages, **\$600.00** for each and every

calendar day of delay in the completion of the work beyond the time specified, subject to all the terms of the General Conditions.

- 12) Accompanying this Bid is a certified or cashier's check in accordance with the General Conditions made payable to the City of Richmond in the sum of _____ Dollars (\$ _____) which check is to be forfeited as liquidated damages if, in case this Invitation for Bid is accepted, the undersigned shall fail to execute the attached contract in accordance with the General Conditions; **OR** a Bid Bond for not less than five percent (5%) of the bid amount set forth in item 14 of this Bid Form. Should the bidder so elect, said check will be returned to the undersigned upon delivery of a satisfactory bond.
- 13) Bidder certifies that he is properly registered as a licensed contractor under Title 54.1 of the Code of Virginia (1950), as amended. The number and expiration date is affixed below.
- 14) For the consideration set forth, and identified by this signature, _____ (*EACH BID SHEET CONTAINING A PRICE REPRESENTATION MUST HAVE THE SAME SIGNATURE AS ABOVE IN THE SPACE PROVIDED*), the Bidder proposes to furnish all materials, tools, labor and equipment of every description, except such materials specified to be furnished by the Owner, necessary to accomplish all work required by and in accordance with the Request for Qualification (if applicable), drawings, specifications, General Conditions, special provisions, bid forms, contract, bond, and any addenda associated with this project, all of which are hereby made a part of this Invitation for Bid.

Total Unit Price Base Bid – The base bid includes all supervision, labor, material, equipment, other work necessary, and required in accordance with the specifications for the COMPUTED PRICE SHOWN ON THE BELOW PRICE SCHEDULE of:

(Price in Words)

\$ _____
(Price in Figures)

In submitting this bid, it is understood that the City of Richmond, Virginia, reserves the right to reject any and all bids or to award in whole or in part as determined to be in the best interest of the City. It is agreed that this Bid may not be withdrawn for a period of 60 days from the opening thereof.

Respectfully Submitted,

(Name of Individual, Firm, or Corporation making bid)

By _____
(Signature)

Virginia Contractor's Registration Number

Federal Tax ID Number

PART 1 – STATEMENT OF WORK

1.0 Purpose.

The City of Richmond is accepting bids for the construction of the FY 22 City Sidewalk Improvements, to provide general contracting services that include, but are not limited to: mobilization, maintenance of traffic (vehicular and pedestrian), street closures, sidewalk construction, sidewalk and curb demolition and replacement, handicap ramp installation, pavement patching, tree root work, tree removal, stump removal, adjusting utility castings, adjusting/replacing drainage basins, and all other work necessary to repair existing sidewalk. These sidewalk improvements/repairs will improve pedestrian access and safety all throughout the City. Contracts will be awarded based on funding being appropriated by the City's approved 2022 Budget. The contracts will be a 365 day contract from the original Notice to Proceed. The City reserves the right to renew this contract for up to 3 one-year periods. The Contractor can reserve the right to an increase based on VDOT's Fuel and Concrete price adjustment increases at the time of renewal. The Contractor will be compensated for Mobilization and Traffic control based on the total square yard of work performed by the contractor.

The City's intent is to:

- 1) Award multiple contracts to ensure the availability of the contractors to perform the work in a timely manner.
- 2) Divide the work into approximately 2 or 3 equal sized projects; and assign on an as needed basis, considering concurrent work in the assigned area and other factors.

2.0 General Information.

Contracts shall be awarded to the lowest responsive and responsible bidder(s); and work orders assigned on the following basis:

- 1) The lowest bidder shall be awarded as the Primary Contractor and shall have the first opportunity to perform the designated project within the required completion date.
- 2) The Primary Contractor MUST be available to begin the first project within 5 days after receiving the signed contract or work order and have it completed within 60 days after starting.
- 3) Contracts shall then be awarded to qualified bidders with a total bid price within 20% of the Primary Contractor's total bid price. Contracts will be awarded in order of the Total Bid price with the second low bidder awarded Alternate Contract #1, and the third low bidder awarded Alternate Contract #2.
- 4) Any project that the Primary Contractor cannot complete within the designated time will then be offered first to Alternate Contractor #1 and, if Alternate Contractor #1 cannot meet the schedule, then the offer will go to Alternate Contractor #2.

Projects shall be assigned as follows:

- 1) As the time allotted for the completion of the Work is of the essence each project will be designed for a project schedule of approximately 60 days.
 - 2) A work order shall be prepared which will specify the streets, the work included and a required project completion date.
 - 3) If the Work Order is accepted and is not completed within the specified time for the completion of the work, there shall be a deduction from the contract price, as liquidated damages; \$600.00 for each calendar day of delay in the completion of work beyond the time specified, subject to all the terms of the General Conditions.
 - 4) The Bid Sheet is provided in a Microsoft Excel document. Bidders are to complete the Bid Sheet, Print off, and submit along with a Bid Form, in lieu of a handwritten submission.
- A. Construction under the Total Unit Base Bid includes, but not limited to the following:
- a. Installation of new sidewalk (concrete and brick)
 - b. Remove and replace existing sidewalk (concrete and brick)
 - c. Reset or replace granite curb
 - d. Remove and replace existing concrete curb and gutter
 - e. Reconstruct existing basins in accordance with City Standards as directed by Engineer
 - f. Adjust existing utility castings to proper grade as needed/
 - g. Reset sewer manhole castings to grade
 - h. Disposal of excavated and removed material
 - i. Installation of new wheelchair ramps in accordance with ADA requirements
 - j. Expansion/modification of existing tree wells by saw-cutting concrete sidewalk
 - k. Removal of existing Stumps
 - l. Pruning, cutting, shaving, cutting, and alternative methods for preparing street tree roots as determined by the City Arborist
 - m. Removal or additions of street trees as determined by the City Arborist
 - n. Any other miscellaneous work as directed by the engineer
- B. All work shall be performed in accordance with the City of Richmond, and the latest Virginia Department of Transportation standards and specifications.
- C. New brick sidewalk shall include forming tree wells. Tree wells shall be incidental to the cost for square yard installation of new brick sidewalk.
- D. Maintenance of Traffic and Erosion & Sediment Control shall be incidental, and payment included within other bid items.
- E. During cold period construction, the contractor shall take measures to keep the concrete from freezing after pours. The cost for this is incidental to other items.

- F. During the fall months, leaf removal shall be incidental to other items.
- G. Saw cutting is incidental to any asphalt or concrete tie-in work, including that required to install curbing, creating joints, installing driveway aprons, or other curb cuts.
- H. Pruning, cutting, shaving, cutting, and alternative methods for preparing street tree roots as determined by the City Arborist or Engineer shall be incidental to other items.
- I. All joint work shall be neat, clean, and straight.
- J. The Bidder may only obstruct one side of the street at a time in any given block in order to preserve parking.
- K. The Bidder shall let the City know when moving to another street block seven (7) working days prior to mobilization to allow the City to notify residents.
- L. The Bidder must contact; 48 hours prior to start of any excavation for each block, the City Surveys Department (646-5404) so that reference points may be established for all permanent monuments or baselines that may be disturbed.
- M. The Bidder shall execute the work in such a manner as to minimize the impact on pedestrian accessibility. The pace of excavation and demolition of existing sidewalk will not exceed the rate of forming and pouring of replacement sidewalk by more than one daily concrete pour or brick installation in a given area.
- N. The Bidder shall be responsible for the proper disposal of excess excavation, materials and demolition. All inert materials not designated for salvage (concrete, brick, uncontaminated soils, cobblestone, etc.) from the project shall be disposed of at an approved landfill and the cost of loading and hauling to the landfill shall be incidental to the unit price of the other items.
- O. The City reserves the right to add or delete locations to the contractors list as directed by the engineer. Where practical the city will strive to keep any additional locations contiguous to sites where work is already being performed.
- P. Work locations will be completed in the order as established and prioritized by the City.
- Q. The Bidder must submit a work plan along with their bid. The work plan shall include vendor manpower and schedules.
- R. Lane closings, sidewalk closings, detours, etc. shall be in accordance with the latest version of the Manual of Uniform Traffic Control Devices (MUTCD).
- S. Temporary relocation of GRTC and RPS bus stops signs may be required at no additional cost.
- T. The Bidder shall not demobilize from any block until all work is completed.

- U. The portions of existing Sidewalk to be replaced shall be agreed to by the City and the Contractor prior to commencing work.
- V. If projects in these bids are adjacent to public schools/education centers and bus routes, Contractors must be aware of and plan for bus and car movements and high volumes of pedestrian activities during the morning and mid-afternoon hours.
- W. The Bidder is responsible for notifying residents and businesses of parking restrictions and access impacts to residents and businesses one (1) week before impacting area with construction; signs posted for parking to be done three (3) days prior to construction. Access to businesses must be afforded to businesses during normal business hours.
- X. The project is for a period of 365 consecutive calendar days from the date of Notice to Proceed, which includes 7 calendar days of inclement weather.

3.0 Prequalification.

This project has not been prequalified under the Code of the City of Richmond, Section 21-46. All interested bidders are encouraged to participate.

PART 2 – GENERAL CONDITIONS OF THE CONTRACT

- 1.0 Definitions.** When used in these provisions or elsewhere in the Contract Documents, the following terms, or pronouns used in place of them, shall have the meaning ascribed to them in this section, unless it is apparent from the context that a different meaning is intended.
- 1.1 Architect or Engineer** means an individual, firm, partnership, association, properly qualified person or the legally authorized representative(s), designated by the Owner, experienced in and legally qualified to practice the profession involved for the administration of the contract, inspections and testing. The term shall apply to the Owner when the Owner is acting as its own Architect or Engineer.
- 1.2 As Built Drawings** means reproducible drawings with all changes that have been made to the original construction drawings prior to the completion of the project.
- 1.3 Calendar Day** means each day shown on the calendar beginning at 12:00 Midnight, including Saturdays, Sundays and Holidays. The term “day” shall mean calendar day whether or not expressly identified.
- 1.4 Contract or Contract Document** means the written agreement executed by the Owner and Contractor setting forth the obligations of the parties, including but not limited to performance of the work, furnishing of labor, equipment and materials, and the basis of payment. It shall include but not necessarily be limited to the Request for Qualifications, Contractor’s Submittal, the Invitation for Bid, the Bid, the General Conditions of the Contract, Special Provisions, Performance Bond, Payment Bond, Certificate of Insurance, Drawings, Specifications, Addenda, Minority Enterprise Business forms, written Change Orders, extra Work Orders, and Agreements required to complete the construction of the project, including authorized extensions thereof, in an acceptable manner, all of which constitute one instrument.
- 1.5 Contractor** means any person, firm, association, joint venture, partnership or corporation that for a fixed price, commission, fee or percentage undertakes to bid upon, or accepts or offers to accept orders for performing or superintending in whole or in part the construction, demolition, removal, repair or improvement of any building or structure.
- 1.6 Field Order** mean an Architect or Engineer’s instructions to the Contractor issuing interpretation of the Contract Documents, or ordering minor changes in the work not involving changes in the Contract time or Contract amount.
- 1.7 Minority Business**
Minority business enterprise means a business at least fifty-one percent (51%) of which is owned and controlled or fifty-one percent (51%) minority-owned and operated by minority group members or, in case of a stock corporation, at least fifty-one percent (51%) of the stock which is owned and controlled by minority group members.

Minority group members means citizens of the United States who are Blacks, Hispanics, Asians, Indians, Eskimos or Aleuts.

Minority, in the context of construction contracts, means a minority that has been subjected to legally mandated racial segregation in Richmond.

Disadvantaged business means a small business that is owned or controlled by a majority of persons, not limited to members of minority groups, who have been deprived of the opportunity to develop and maintain a competitive position within the economy because of social disadvantages.

- 1.8 **Mistake** means every type of error, clerical or otherwise.
- 1.9 **Notice** means all written notices, including demands, instructions, claims, approvals and disapprovals, required or authorized under the Contract Documents.
- 1.10 **Notice To Proceed** means the written instruments allowing the contractor to proceed with the development of submittals, ordering of materials and any other preparation required to adequately start the Work.
- 1.11 **Operating and Maintenance Instructions** means all documents specifically written or marked cut sheets for the project on all major components, bound or otherwise assembled in booklet form. Furnish for each major piece equipment operation instructions, maintenance procedures and parts list.
- 1.12 **Owner** means the City of Richmond, Virginia, acting by and through its authorized agent(s) or representative(s).
- 1.13 **Performance Time** means the length of time allowed for the execution of the Work, including any authorized time extensions. Performance time shall include all lead times for materials, submittal preparation and other administrative matters outside of bond issuance.
- 1.14 **Plans** means those drawings specifically referred to as such in the Contract Documents. Supplementary drawings issued after Contract Award showing changes in the work shall be binding upon the Contractor with the same force as the Plans.
- 1.15 **Similar** Where the word "similar" appears on the drawings or specifications, it shall be interpreted in its general sense and not as meaning identical, and all details shall be worked out in relation to their location and their connection with other parts of the work, and it shall be equal in quality and performance.
- 1.16 **Subcontractor** means a person, partnership or corporation to whom the Contractor, with written consent of the Owner, sublets part of the work. A Subcontractor has no contractual relationship with the Owner.
- 1.17 **Substantial Completion** means that the Work has progressed to the stage where the entire project, including mechanical, electrical, and equipment installations, can be occupied or used by the Owner for its intended purpose, and when any remaining work can be done without interfering with the Owner's use and formal instruction on all major equipment operation and maintenance, both verbal

and written, along with as-built reproducible drawings have been given. The Owner will notify the Contractor, in writing, the date of substantial completion has been reached, based on the recommendation of the Architect or Engineer.

- 1.18 Work** means everything express or implied required to be furnished and performed by the Contractor under the Contract and shall include both Contract Work and Extra Work.

2.0 City of Richmond Terms and Conditions

2.1 Advertising Clause

It is understood and agreed that, in the event a contract is awarded for the supplies, equipment, or services included in this proposal, that no indications of such sales or services to the City of Richmond will be used in any way in product literature or advertising unless with written approval of the City of Richmond and only for bibliographical and curriculum vitae purposes.

2.2 Applicable Law and Courts

This solicitation and any resulting contract shall be governed in all respects by the laws of the City of Richmond and any litigation with respect thereto shall be brought in the courts of the City. In performing the Work under the Contract, the Contractor shall comply with applicable Federal, State, and Local laws and regulations

2.3 Assignment & Subcontracting

The Contractor shall not assign the Contract or any parts of the Contract without the prior written consent of the Owner nor shall the Contractor assign any monies due or to become due hereunder without the prior written consent of the Owner.

The contract shall not be subcontracted without the prior approval of the City of Richmond.

2.4 Audit

The City reserves the right to audit all aspects of the contract: the vendor's financial capability and accounting system, basis for progress payments, compliance with applicable laws, as well as appropriate vendor records. The City further reserves the right to review, on demand and without notice, all files of any subcontractor employed by the Contractor to provide services or commodities under this Contract where payments by the City are based on records of time, salaries, materials or actual expenses. In cases where the vendor maintains multiple offices, records to be audited should be maintained locally or be deliverable to a location in the metro-Richmond area.

2.5 Authorized Signature

All bids must be signed in order to be considered. If the bidder is a firm or corporation, the bidder must show the title of the individual executing the bid and a resolution authorizing the individual to sign the bid and subsequent contract

2.6 Availability of Funds

It is understood and agreed between parties to any agreement resulting from this proposal that the City shall be bound hereunder only to the extent of funds available or which may hereunder become available for the purposes of this agreement.

It is further understood and agreed between the parties to any agreement resulting from this proposal that the City shall not be obligated to purchase or pay for insurance or services covered by this agreement unless and until they are ordered, delivered, or performed for the City.

2.7 Award

The City of Richmond will make the award to the lowest responsive/responsible bidder. The Procurement office reserves the right to conduct any test it may deem advisable and to make all evaluations necessary. Additional criteria will be considered in the award of Requests for Proposals. The City of Richmond also reserves the right to reject any or all bids/proposals, in whole or in part, to waive informalities and to delete items prior to making the award, whenever it is deemed in the sole opinion of the City of Richmond to be in its best interest. The City also reserves the right to award in whole or in part; to one vendor or multiple vendors, whichever is deemed to be most advantageous and in the best interest of the City.

2.8 reserved

2.9 Century Compliance.

Hardware, software and firmware products, individually and in combination, shall be capable of processing dates that cross or span century boundaries with the correct system date, without human intervention, including leap year calculations and shall also provide correct results when moving forward or backward in time or century.

2.10 Contractor Accessibility

It is understood and agreed that in the event of equally qualified (and responsive) bidders for an award, the award shall be granted to the bidder with the greatest degree of accessibility to the City officials responsible for administering the contract. (This policy shall not apply if specifically prohibited.)

2.11 reserved

2.12 Default

In case of default of the successful bidder, or it fails to deliver the supplies or services ordered by the time specified, the City, after due notice (verbal or in writing), may procure them from other sources and hold the bidder responsible for any excess cost occasioned thereby. This remedy shall be in addition to any other remedies available to the City.

2.13 Delivery

Time of proposed delivery shall be stated in number of calendar days. General terms such as "stock", "immediately", and "as soon as possible", may be subject for rejection. Unless otherwise specified, quote earliest delivery date as it may be considered a factor in making award.

2.14 Descriptive Literature

Bidder shall submit with its bid descriptive literature of equipment or supplies, which it proposes to furnish, if such articles are of a different manufacture than those specified herein. Should the description furnished in such literature differ from the specifications submitted by the City, and no mention is made to the contrary, it shall be construed to mean that the bidder proposes to furnish

equipment or supplies in accordance with such description and not in accordance with the City's specifications, and its bid will be evaluated accordingly.

2.15 Drug Free Work Place

City Resolution No. 2000-R197-191 prohibits the City of Richmond from contracting with any vendor that fails to comply with this policy. The vendor by its signature hereto certifies that it has taken and shall continue to take appropriate and effective action to (1) educate its employees about the dangers of drug abuse in the workplace; (2) provide its employees with effective drug counseling, rehabilitation and employee assistance programs; (3) discipline employees who violate the requirement of a drug free workplace, and (4) minimize, to the greatest extent possible, the risks of drugs entering the workplace. The vendor is also prohibited from contracting with any other party that fails to comply with this policy.

Failure by a vendor or its subcontractor to comply with the provisions outlined above will be cause for termination of the contract.

2.16 Employment Discrimination

The City of Richmond prohibits employment discrimination by its contractors. In accordance with section 21-70 of the Richmond City Code, during the performance of every contract over \$10,000, the contractor agrees as follows: (a) the contractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, national origin, age, disability, or other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause; (b) the contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer; (c) notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirement of this section. The contractor will include the provisions of this section in every subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each subcontractor or vendor.

2.17 Ethics in Public Contracting

By signing Bid in response to this Invitation for Bids, the bidder certifies and warrants that (i) it has not violated any provisions of federal law, the Code of Virginia, the Richmond City Charter, or the Richmond City Code (ii) its Bid is made without collusion or fraud, (iii) it has not offered or received any kickbacks or inducements from any other contractor, supplier, manufacturer or subcontractor in connection with its bid and (iv) it has not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged. The bidder agrees that if such warranty is in any respect breached, such breach shall constitute a material breach of any contract that the City may award to it and it shall pay to the City the full price agreed by the City to be paid for the supplies, materials, equipment or services to be furnished under its bid.

2.18 Faith Based Organizations

The City of Richmond does not discriminate against faith-based organizations. By signing its bid, the bidder, if a faith-based organization, agrees that it understands the requirements of City Code §21-43 (Va. Code § 2.2-4343.1).

2.19 Incorporation of Policies and Procedures

This solicitation is subject to the provisions of the Chapter 21 of the Code of the City of Richmond, the Department of Procurement Services Policies and Procedures and the Virginia Public Procurement Act and any revisions thereof, which are hereby incorporated into this contract by reference. Copies of these documents may be viewed at the City of Richmond's website (www.RichmondGov.com).

2.20 Indemnity

The Vendor agrees to defend, save harmless and indemnify the City from and against any and all claims for damages against the City caused by the Vendor's errors, omissions or negligent acts in the performance of this contract.

2.21 Informalities

The City reserves the right to waive any informality in bids. Bids making exceptions to terms and conditions included in this Invitation may be considered, but preference may be given to those who do not make such exceptions.

2.22 Invoicing

The Contractor shall submit invoices that include the following: unique invoice number; corresponding purchase order number; and, Contractor's Federal Tax Identification Number (TIN). All invoices must be itemized and include sufficient detail to enable the City to ensure that the item was ordered and corresponds with the contract price for the item. Failure to include the aforementioned information on the invoice may result in the invoice being rejected, returned, and unpaid. The Contractor shall submit the original invoice to either:

accountspayable@richmondgov.com

or

City of Richmond
Accounts Payable
900 East Broad Street
Richmond, VA 23219

2.23 Insurance

The Contractor shall provide and keep in full force and effect during the performance of the contract the kinds and amounts of insurance prescribed in this paragraph, and shall comply with all other provisions of this paragraph. Such insurance shall be provided and kept in full force by insurance companies authorized to do business in the Commonwealth of Virginia and acceptable to the City. The Contractor shall pay all premiums and other costs of such insurance. It will be assumed that the consideration paid or to be paid to the Contractor for the performance of the contract includes the premiums and other costs of such insurance and that the City shall not be responsible therefor. Each insurance Policy and Certificate of Insurance shall be signed by duly authorized

representatives of such insurance companies which shall be licensed to business in the Commonwealth of Virginia and shall be countersigned by duly authorized local agents of such companies. The certificates and evidence of coverage will be complete before the City signs the contract.

All Certificates of Insurance shall show the Contract Number. The Contractor shall not be required to furnish the City with copies of the insurance contracts required by this paragraph unless requested from time to time by the Director of Procurement but the Contractor shall provide a Certificate of Insurance issued by such insurance companies in which the company shall irrevocably warrant that the insurance is provided to enable the Contractor to comply with and provide the required insurance provided. However, in no event shall the Insurance Contract be expanded to afford coverage which is greater than the maximum coverage approved for writing in the Commonwealth of Virginia, and that it will not be canceled or modified by the insurer for non-payment of premiums or otherwise unless at least ninety (90) days prior notice to that effect is given the Director of Procurement Services by registered mail, return receipt requested, anything in such Insurance Contract to the contrary notwithstanding; and that the Insurance Contract has been endorsed accordingly. The City reserves the right to require, without cause, insurance in greater amounts than those set out below in this paragraph on any Contract, provided notice of such requirements is given prior to final acceptance of the Bid. The insurance contract shall provide that the insolvency or bankruptcy of any of the insured shall not release the insurer from its obligation to satisfy claims otherwise within the coverage of such policies.

SCHEDULE OF INSURANCE COVERAGE

- A. Commercial General Liability Insurance with a combined single limit of not less than \$1,000,000 per occurrence.
- B. Automobile Liability Insurance with a combined limit of not less than \$1,000,000 per occurrence.
- C. Statutory Workers' Compensation and Employers' Liability with the Alternate Employers Endorsement WC 000301. If any employee of the Contractor is not subject to the provisions of the Virginia Worker's Compensation Act, the Contractor shall nevertheless insure payment of the same compensation to such employee as is provided for by the Virginia Worker's Compensation Act.
- D. Professional Errors and Omissions Insurance with limits of not less than \$1,000,000 per occurrence. (Submit only if applicable.)
- E. Other insurance as required based upon the nature of the contract.

All insurance contracts shall name the City as an additional insured.

Further, the Contractor shall assume the entire responsibility and liability for any and all damages to persons or property caused by or resulting from or arising out of any negligent act or omission or

any willful misconduct on the part of the Contractor, its subcontractors, agents or employees under or in connection with the IFB or the performance of or failure to perform any work required by the IFB. The Contractor shall save harmless and indemnify the City and its agents, volunteers, servants, employees and officers from and against any and all claims, losses or expenses, including but not limited to court costs and reasonable attorney's fees, which either or both of them may suffer, pay or incur as the result of claims or suits do to, arising out of or in connection with any and all such damage, real or alleged, to the extent caused by the Vendor's negligence or willful misconduct. The Contractor shall, upon written demand by the City, assume and defend at the Contractor's sole expense any and all such suits or defense of claims.

2.24 Interchangeability of Terms.

Where used in these solicitations the terms "bid" and "proposal" should be interpreted to have the same meaning unless the intent is clearly defined otherwise.

2.25 Licenses, Permits and Fees

The successful contractor shall be required to obtain all necessary permits and licenses required by federal, state and local regulations, laws ordinances or rules. All bids submitted shall have included in price the cost of any business or professional licenses, permits or fees required by the City of Richmond or the Commonwealth of Virginia for the performance of this project.

2.26 Minority and Emerging Small Business Participation

It is the official goal of the City of Richmond to increase the dollar value of all contracts awarded to minority business enterprise and emerging small business (MBE/ESB) contractors and subcontractors to the highest level that is reasonably achievable for any particular field of contracting. To implement this policy, the City shall encourage minority participation through subcontracting and certain business development methods in contracting for services. Please submit the attached MBE/ESB Participation Commitment Form, indicating the percentage of MBE/ESB participation you propose for this project.

2.27 MBE/ESB Reporting Requirement

Contract awardees are required to submit an MBE/ESB Monthly Compliance Report. This form must indicate **all** payments made to subcontractors during the period for which the City is being invoiced. **You must also indicate on this form those subcontractors that are MBEs or ESBs.** This form should be submitted directly to the Office of Minority Business Enterprise at City Hall. Vendors may call the Office of Minority Business Enterprise at (804) 646-3985 for clarification on the City's MBE/ESB participation or reporting requirements.

2.28 Mistakes in Bids

Bids may be withdrawn subject to all provisions and conditions for and outlined under City Code §21-53. If a bid is withdrawn under authority of this section, the next lowest bidder shall be deemed to be the low bidder on the project.

2.29 Reserved

2.30 Non-Discrimination

By entering into this Contract, the Contractor agrees to abide by the Civil Rights Act of 1964, the American Disabilities Act of 1990, and City Code § 21-43. The City of Richmond does not discriminate against faith-based organizations.

2.31 Offset Clause

Pursuant to the Richmond City Charter, the City may withhold the payment of any claim or demand by any person, firm or corporation against the City until any delinquent indebtedness or other liability due the City from such person, firm or corporation shall first have been settled and adjusted.

2.32 Patents and Trademarks

By submission of bid, the bidder certifies that the merchandise to be furnished will not infringe any valid patent or trademark, and the successful bidder will, at its own expense, defend any and all actions or suits charging such infringement, and will save the City of Richmond, Virginia harmless in case of any such infringement

2.33 Personnel

The personnel designated in the management summary for key positions shall not be changed except with the permission of the City. The City will only approve such change when, in its opinion, the substitute personnel have equal or greater qualifications and experience than those they replace.

2.34 Post Award

Following the selection and signing of a contract, the Contract Specialist will notify those offerors whose proposals are not selected of the name of the selected offeror. Please keep in mind that it may take up to two months to award this contract.

2.35 Public Inspection of Records

Public inspection of procurement documents shall be in accordance with City Code §21-5.

2.36 Property of Work

Any work resulting from the award of this contract will become the sole property of the City of Richmond. The successful offer shall not copyright any material or reports. And, upon request, the contracted vendor should turnover all work papers and related documents to the City.

2.37 Quantities

The quantities shown are estimates only and the city reserves the right to purchase only its requirements whatever the quantity may be, plus or minus, during the period specified

2.38 Rejection of Bids

The City of Richmond reserves the right to reject any and all bids. The City of Richmond reserves the right to negotiate with the selected bidder in order to best serve the needs of the City, in respect to both cost effectiveness as well as comprehensive program design.

2.39 Samples

Samples of items, if requested, shall be furnished without charge, upon request within 10 days. Failure on the part of the bidder to provide such samples within the specified time frame or to comply with these instructions may be cause to consider the bid as non-responsive. If not destroyed and upon request at the time of submission, samples will be returned at the bidder's expense.

2.40 Separate Invitations

Bid responses for separate bid invitations shall not be combined on the same form or placed in the same envelope. Such bids may not be considered

2.41 Submission of Bids

Unless otherwise specified in the solicitation, the below provisions apply.

- a) Packages containing bids should be sealed and marked in the lower left-hand corner with the invitation number, commodity classification, and date and hour of opening of bids. Failure to do so may cause bid not to be considered.
- b) Bids shall be submitted on the forms furnished. Erasures or other changes in the bid must be annotated and initialed by the individual signing the bid.
- c) Bids containing any conditions, omissions, unexplained erasures or alterations or items not called for on the bid sheet may be rejected by the City as being incomplete.
- d) Bids submitted in pencil may be cause for rejection.
- e) Should any additions or deductions or any changes in price or specifications be written or otherwise set forth on the outside of any sealed package purporting to contain a bid, such package shall be returned unopened to the bidder.
- f) The City of Richmond is not responsible for the mishandling of any bid not properly identified on the outside of the package.
- g) The City of Richmond is not responsible for bids delivered to places other than as indicated in the bid package.

2.42 Travel Expenses

Travel expenses will be reimbursed at the prevailing City of Richmond rate(s). This will only be paid if another provision of this Contract allows for travel reimbursement.

2.43 Unit Pricing

Unless lump sum price is specifically requested, unit and extended prices should be given. Failure to do so may cause bid not to be considered. In case of error in extension of prices in the bid, the unit price shall govern.

2.44 Use of Brand Names

Where a brand or trade name appears in the specifications, it is understood that the brand or trade name referred to, or its approved equal, shall be furnished. If, however, the bidder proposes similar but not identical items, it must furnish full particulars. If no mention is made of any exceptions, it is assumed that it is bidding on the article mentioned and not an approved equal, and it will be required to deliver the exact article specified.

3.0 Instructions to Bidders

3.1 Receipt and Forms of Bid

The following required forms are to be completed and returned with this bid package: **the Bid Form, Bid Worksheet, Bid Security, MBE-2 Form, References (3) and Work Plan/Schedule.**

Envelopes containing the bid and bid security shall be sealed, addressed and marked as follows:

City Of Richmond, Virginia
Richmond Purchasing Services
900 E. Broad Street, 11th Floor, Room 1104
Richmond, Virginia 23219

Mark in lower left hand corner of envelope:

Bid For: **FY 22 City Sidewalk Improvements**
To Be Received At: **April 28, 2022, at 11:00AM**
To Be Opened At: **April 29, 2022, at 2:00PM**

Bid Opening Teleconference Number: (804) 316-9457
Phone Conference ID: 603 217 596#

Mark in upper left hand corner:

Bidder's Name
Address and Virginia
Contractor's Registration
Number and Date of Registration

3.2 Bidding Documents

Bidding documents include the Pre-Bid Information, if any, Invitation to Bid, Instructions to Bidders, the Bid Form, technical specifications, drawings, other sample bidding and Contract forms and the proposed Contract Documents (as defined in the General Conditions), and all addenda issued prior to the date set for receipt of bids.

3.3 Examination of Site and Drawings

Each bidder shall visit the site of the proposed Work and fully acquaint himself with conditions relating to construction and labor, so that he may fully understand the facilities, difficulties and restrictions attending the execution of the Work under the Contract.

The failure or omission of any bidder to receive or examine any form, instrument, addendum, or other document or to visit the site and acquaint himself with the conditions there existing, shall in no way relieve any bidder from the obligation with respect to his bid or to the Contract. The submission of a bid shall be taken as conclusive evidence of compliance with this section.

3.4 Pre-Bid Meeting

A pre-bid meeting for this project is scheduled for **April 14, 2022 at 11:00AM**

Teleconference Number: (804) 316-9457

Phone Conference ID: 129 247 932#

3.5 Interpretations

3.5.1 If any person contemplating submitting a bid for the proposed Work is in doubt as to the true meaning of any part of the proposed Contract Documents or discrepancies of any sort between existing conditions and proposed new Work, he must submit a written request for an interpretation to the Department of Procurement Services, 900 E. Broad Street Room 1104, Richmond, Virginia 23219. The person submitting the request shall be responsible for its prompt and actual delivery by **5:00PM, April 18, 2022**. Such documents may emailed to **Corliss Spurlock at Corliss.Spurlock@richmondgov.com**.

3.5.2 Any interpretation or modification of such documents will be made only by Addendum duly issued by the Owner and a copy of which will be mailed or delivered to each bidder known to have received a set of such documents. Neither the Owner nor the Architect or Engineer will be responsible for any other explanations or interpretations anyone presumes to make on behalf of the Owner or Architect or Engineer before the expiration of the ultimate time set for the receipt of bids.

3.5.3 Any contact with any City officer, employee, agent or other representative concerning this Invitation for Bids prior to award and execution of the Contract other than that outlined in this section 3.5 ("Interpretations") is prohibited. Any such unauthorized contact may disqualify the bidder from this procurement.

3.6 Withdrawal of Bids.

3.6.1 Conditions for Withdrawal.

3.6.1.1 Before Deadline for Receipt. A bidder may withdraw the bidder's bid before the deadline fixed in this Invitation for Bids for the receipt of bids by submitting a written notice to the person identified on the cover sheet of the Invitation for Bids as the preparer of the Invitation for Bids. The written notice must be signed by the person who signed the bid, provided that another person may sign the written notice instead if a valid power of attorney authorizing such other person to sign on behalf of the person who signed the bid is attached to the written notice.

3.6.1.2 After Deadline for Receipt. A bidder may withdraw the bidder's bid after the deadline fixed in this Invitation for Bids for the receipt of bids only in accordance with section 21-53 of the Code of the City of Richmond and the provisions of this section 3.6.

A. Pursuant to section 21-53(a) of the Code of the City of Richmond, a bidder for a public construction contract, other than a contract for construction or maintenance

of public highways, may withdraw his bid from consideration if the price bid was substantially lower than the other bids due solely to a mistake in the bid, provided the bid was submitted in good faith, and the mistake was a clerical mistake as opposed to a judgment mistake, and was actually due to an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid, which unintentional arithmetic error or unintentional omission can be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.

- B. Pursuant to section 21-53(b) of the Code of the City of Richmond, if a bid contains both clerical and judgment mistakes, a bidder may withdraw his bid from consideration if the price bid would have been substantially lower than the other bids due solely to the clerical mistake that was an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid that shall be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.

3.6.2 Procedure for Withdrawal due to Error or Mistake.

- A. Bids will be opened on the date and at the time fixed in the Invitation for Bids, as amended by any addendum. Bids are usually opened one day following the deadline for the receipt of bids fixed in the Invitation for Bids, as amended by any addendum. Bids will not be opened less than one day following the deadline for the receipt of bids fixed in the Invitation for Bids, as amended by any addendum.
- B. In accordance with section 21-53(c)(2) of the Code of the City of Richmond, the bidder shall submit to the person identified on the cover sheet of the Invitation for Bids as the preparer of the Invitation for Bids the bidder's original work papers, documents and materials used in the preparation of the bid at or prior to the time fixed for the opening of bids. The work papers shall be delivered by the bidder in person or by registered mail. The bidder shall have two hours after the opening of bids within which to claim in writing any mistake as defined in this section 3.6 and withdraw the bid. The Contract shall not be awarded by the City until the two-hour period has elapsed. Under these procedures, the mistake shall be proved only from the original work papers, documents and materials delivered as required in this section 3.6.2. The work papers, documents and materials submitted by the bidder shall, at the bidder's request, be considered trade secrets or proprietary information subject to the conditions of section 21-5(f) of the Code of the City of Richmond.
- C. The failure of a bidder to submit the bidder's original work papers, documents and materials used in the preparation of the bidder's bid at or prior to the time fixed for the opening of bids constitutes a waiver by the bidder of the bidder's right to withdraw the bidder's bid due to an error or mistake.

- D. Pursuant to section 21-53(e) of the Code of the City of Richmond, no bid shall be withdrawn under this section when the result would be the awarding of the Contract on another bid of the same bidder or of another bidder in which the ownership of the withdrawing bidder is more than five percent.
- E. Pursuant to section 21-53(f) of the Code of the City of Richmond, if a bid is withdrawn in accordance with this section 3.6.2, the lowest remaining bid shall be deemed to be the low bid.
- F. Pursuant to section 21-53(g) of the Code of the City of Richmond, no bidder who is permitted to withdraw a bid shall, for compensation, supply any material or labor to or perform any subcontract or other work agreement for the person to whom the Contract is awarded or otherwise benefit, directly or indirectly, from the performance of the project for which the withdrawn bid was submitted. The person or firm to whom the Contract was awarded and the withdrawing bidder are jointly liable to the Owner in an amount equal to any compensation paid to or for the benefit of the withdrawing bidder.
- G. Pursuant to section 21-53(h) of the Code of the City of Richmond, the Director of Procurement Services shall notify the bidder in writing within five business days of the Director's decision regarding the bidder's request to withdraw the bidder's bid. If the Director of Procurement Services denies the withdrawal of a bid under the provisions of this section 3.6.2, the Director of Procurement Services shall state in such notice the reasons for the decision and award the Contract to such bidder at the bid price, provided such bidder is a responsible and responsive bidder. At the same time that the notice is provided, the Director of Procurement Services shall return all work papers and copies thereof that have been submitted by the bidder.

3.6.3 Consequence if Bid Not Withdrawn. If the bidder does not withdraw the bidder's bid as provided in this section 3.6, or if the bidder is not permitted to withdraw the bidder's bid as described in section 3.6.2(G), the Owner shall not be liable for any costs associated with mistakes or errors in the bid, and in no event may the amount of the Contract, without adequate consideration, be increased for any purpose, including, but not limited to, relief of the bidder from the consequences of an error in the bidder's bid or offer.

3.7 Bidders Present

At the time and place fixed for the opening of the bids, the contents of the bids will be read aloud and made public information for bidders and others properly interested who may be present either in person or by representative. Bid tabulations will be available on the website the Monday following the date set for the opening of bids. Otherwise access to public information shall be in accordance with §21-5 of the Code of the City of Richmond.

3.8 Addenda

From time to time, addenda may be issued that will provide clarifications or supplemental information about the bid documents. All firms receiving bid documents issued by the Owner will be provided copies of addenda. Failure to acknowledge any addendum that has a material effect on the bid: that is on price, quantity, quality or delivery, and is not merely administrative may result in

your bid being rejected as non-responsive. Addenda must be acknowledged as indicated on the Bid Form. The bidder is responsible for verifying the existence of addenda items.

3.9 Regulations Governing Contractors

Bidders are required under Title 54.1, Code of Virginia, to show evidence of licensing as appropriate before bid may be received and considered on a general or Subcontract as follows:

"Class A Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is \$70,000 or more, or (ii) the total value of all such construction, removal, repair, or improvements undertaken by such person within any twelve-month period is \$500,000 or more.

"Class B Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is \$7,500 or more, but less than \$70,000, or (ii) the total value of all such construction, removal, repair or improvements undertaken by such person within any twelve-month period is \$150,000 or more, but less than \$500,000.

"Class C Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is over \$1,000 but less than \$7,500, or (ii) the total value of all such construction, removal, repair, or improvements undertaken by such person within any twelve-month period is less than \$150,000. The Board shall require a master tradesmen license as a condition of licensure for electrical, plumbing and heating, ventilation and air conditioning contractors.

"Contractor" means any person, that for a fixed price, commission, fee, or percentage undertakes to bid upon, or accepts, or offers to accept, orders or contracts for performing, managing, or superintending in whole or in part, the construction, removal, repair or improvement of any building or structure permanently annexed to real property owned, controlled, or leased by him or another person or any other improvements to such real property.

3.10 Laws, Permits and Regulations

The Contractor must comply with all local, State and Federal laws, rules, ordinances and regulations applicable to the Contract and to the Work done hereunder, and must obtain at its own expense all permits, licenses or other authorization(s) necessary for the prosecution of the Work. If the Contractor ascertains at any time that any provisions of this Contract are not in compliance with applicable laws, rules, ordinances or regulations, it shall promptly notify the Architect or Engineer and confirm the findings in writing.

3.10.1 Building Permit. The Contractor will apply for and pay for a building permit and complete all necessary forms (unless otherwise notified). (Contractor to apply and pay for all other permits also).

3.11 Minority Business Utilization

It shall be the official policy of the City of Richmond to increase the number of minorities who participate meaningfully in all City construction Contracts. To this end, the City shall use good faith efforts and shall encourage good faith efforts by all parties who engage in governmental construction

contracting with the City to the following ends:

- a) To stimulate the creation and development of minority contractors and subcontractors, and to advance in reasonable and responsible ways, and deliberately and consistently over the long term, their entrance into and participation in the construction industry.
- b) To advance in reasonable and responsible ways, and deliberately and consistently over the long term, the participation of minority individuals at higher skill and responsibility levels within non-minority firms engaged in construction contracting and subcontracting.
- c) To encourage voluntary efforts by the construction industry to increase the participation of minority individuals and businesses in the industry.

All actions taken by the City in construction contract procurement shall be consistent with this policy.

3.12 Examination of Plans, Specifications, Contract Documents and Project Site

By submitting a bid, the bidder represents that it has visited the site of the proposed Work; is fully acquainted with conditions relating to the proposed construction; has correlated its observations with the requirements of the Contract Documents and all matters which may in any way affect the Work or its performance. The Contractor fully understands the extent of the Work required by the Contract Documents as a result of such examination and investigation. The failure or omission of any bidder to review or examine any form, instrument, addendum or other document, or to visit the site and become acquainted with existing conditions, shall not relieve the bidder from any or all obligations with respect to its bid or the Contract. The submission of a bid shall be taken as a prima facie evidence of compliance with this paragraph and no plea of ignorance or misunderstanding as to what is anticipated under the terms of the bid or the Contract Documents shall be available as a defense for failure to perform.

Further, by submitting a bid for this project the Contractor certifies that all his Subcontractors are familiar with the Contract Documents as they may affect each Subcontractor. The Contractor further agrees that it is as fully responsible to the Owner for the acts or omissions of its Subcontractor, either directly or indirectly employed by them, as it is for the acts and omissions of persons directly employed by it.

3.13 Supplemental Specifications

Special provisions applicable to the project may be used to supplement or clarify these General Conditions, but no item of the General Conditions may be amended nor deleted, or its intent changed without prior written approval of the Owner.

3.14 Subsurface Investigation

Subsurface investigation data indicated on the drawings or incorporated in the specifications are intended by the Owner as a guide to acquaint the bidder with conditions that may be encountered during the course of Work. The Owner does not guarantee these conditions are representative of the entire project. The bidder may make, at its own expense, sufficient investigations necessary to verify the quantities and materials that may be encountered.

3.15 Trade Names and Alternatives

When the drawings or specifications specify one or more manufacturers' brand names or makes of materials, devices or equipment as indicating a quality style, appearance or performance, the bidder shall base its bid on any of the specified brands or an alternate brand which is intended as a substitute. Use of an alternate shall not be permitted unless it is found to be equal or better and approved by the Architect or Engineer and at no additional cost to the Owner. The Bidder shall determine and certify that any substitute will fit in the space provided so that it will be accessible for maintenance and that it shall produce the capacity specified.

3.15.1 Burden of Proof. The burden of proof as to the comparative quality and suitability of alternative equipment, articles or materials shall be upon the bidder who shall furnish at his or her own expense such information relating thereto as may be required by the Architect or Engineer. The Architect or Engineer shall be the sole judge as to comparative quality and suitability of alternative equipment, articles or materials and whose decisions shall be final.

Any other brand, make of material, device or equipment which, in the opinion of the Architect or Engineer is recognized the equal of that specified, considering quality, workmanship and economy of operation and maintenance, and is suitable for the purpose intended, may be accepted.

3.15.2 Substitution. Substitution of equipment, articles or materials for specified items or approved alternates after bid opening may not be made without the prior written approval of the Architect or Engineer.

3.16 Contractor's Insurance

3.16.1 Builder's Risk Insurance. Contractor's or Builder's Risk Insurance in the all-risk form shall be provided by the Contractor to the extent of 100 percent of the bid on which the Contract is awarded to the Contractor covering damage to or loss of work performed under the Contract caused by fire, explosion, wind, lightning, vandalism, malicious mischief and any similar other casualty, risk or peril. The insurance shall be payable to the Owner and Contractor as their respective interests may appear. THIS PARAGRAPH NOT APPLICABLE TO SEWER, STREETS AND UNDERGROUND UTILITIES PROJECTS.

3.16.2 Blasting Insurance. Should any blasting become necessary to perform the Contract, liability insurance shall be provided by the Contractor in the amount of at least \$1,000,000 per occurrence, directly or indirectly arising from or during the time blasting is done. Such insurance may be provided either under a separate blasting insurance contract, by endorsement of the Commercial General Liability Insurance contract, or by any other insurance contract. Such insurance shall cover the General Contractor and shall extend to provide coverage of any Subcontractor doing blasting. No blasting shall be done until the insurance covering blasting is provided as required by this subsection or in greater amounts if so required by the Owner, provided, however, that in the event the blasting is solely and exclusively to be carried out by and under the supervision and direction of a Subcontractor's policy. The furnishing of insurance by the Subcontractor shall not create any contractual relationship between the Owner and Subcontractor. If the Owner requires greater

amounts of insurance, notice of such requirements shall be given to all bidders not less than fifteen (15) days prior to the bid receipt date.

3.16.3 Insurance Required of Subcontractors. The Contractor shall not allow any Subcontractor to commence work on his subcontract until insurance as specified herein has been obtained covering the operations of said Subcontractor.

3.16.4 Non-Release of Obligations. The carrying by the Contractor or Subcontractor of the insurance required shall in no way be interpreted as relieving the Contractor or Subcontractor of any obligations it may have under this Contract.

3.17 Bid Security

Except in an emergency, all bids for construction Contracts in excess of \$100,000 shall be accompanied by a bid guarantee of not less than five percent (5%) of the bid amount set forth in item 14 of the Bid Form. Such security may be a certified check or a cashier's check or a Bid Bond made payable to the Owner. The Owner may require bid security for lesser bid amounts, however, this will be so stated in the Invitation for Bid.

Such Bid Bond or check shall be submitted with the understanding it shall guarantee that the bidder will not withdraw its bid during the acceptance period indicated in the Invitation for Bids except as defined in paragraphs 2.42 and 3.1 of the Contract Documents; that if the bid is accepted, the bidder will enter into a formal Contract with the Owner in accordance with the Contract Documents; and that Performance and Payment Bond, and Certificate of Insurance will be given; and that in the event of the failure to enter into said Contract and give said Bonds and Certificate of Insurance within fifteen(15) days after it has received notice of acceptance of its bid, the bidder shall be liable to the Owner for the full amount of the bid guarantee or the difference between the bid for which the bond was written and the next low bid as representing the damage to the Owner. Forfeiture under a Bid Bond shall not exceed the lesser thereof. The Bid Bonds and checks shall be returned to all except the three lowest bidders after the formal opening of bids. The remaining bid bonds and checks will be returned to the three lowest bidders after the accepted bidder has executed the Contract, Performance and Payment Bonds and Certificate of Insurance and the Owner has approved them.

If the required contract has not been executed within sixty (60) days after the date of the opening of bids, or any extension agreed to in writing by both parties, then bond or check of any bidder will be returned upon request, provided it has not been notified of the acceptance of its bid prior to the date of such request. No plea of mistake in the bid shall be available to the bidder for the recovering of a bid security or as a defense to any action based upon the neglect or refusal to execute a Contract except as provided in paragraphs 2.27 and 3.5 of the Contract Documents.

A bid bond will be accepted if executed on the official form furnished by the Owner or other form as may be approved by the Owner. Bid bonds must be in an original form and contain original signatures. Any bid accompanied by a bond executed as a copy, duplicated or facsimile will be rejected.

3.18 Preparation and Submission of Bids

Bids shall be submitted on the forms furnished. All unit or lump prices shall be shown in numbers and written characters. Where discrepancies occur between the numbers and written, the numbers shall govern. Erasures or other changes in bid must be annotated and initialed by the individual signing the bid. Bids containing any conditions, omissions, unexplained erasures or alterations, or items not called for on the bid sheet, may be rejected by the Owner as being incomplete.

Bidders shall bid on all items as shown on the bid sheet, if required by the Owner. Bids submitted in lead pencil may be cause for rejection. Should any additions or deductions, or changes in price or specifications be written or otherwise set forth on the outside of any sealed envelope purporting to contain a bid, such envelope shall be returned unopened to the bidder.

Each bid must give the full business address of the bidder and be signed in ink with his or her usual signature where signature by the bidder is indicated.

Bids by partnerships must furnish the full name of all partners and must be signed in the partnership name by one of the members of the partnership. Bids by corporations must be signed with the legal name of the corporation followed by the name of the state in which they are incorporated and by the signature and designation of the president, secretary, or other person authorized to bind it in the matter. The name of each person signing shall be typed or printed below the signature. A bid by a person who affixes to his or her signature the word "President", "Secretary", "Agent", or other designation, without disclosing his or her principal, may be held to be the bid of the individual signing. Satisfactory evidence of the authority of the officer signing on behalf of the corporation shall be furnished if signed by other than the president.

Bids along with the bid guarantee shall be enclosed in a sealed envelope that shall be marked and addressed as indicated by the Invitation for Bid. Bidders are required under Title 54.1 of the Code of Virginia to show evidence of licensing as a Class "A" Contractor before bid may be received and considered (1) on a general or subcontract of \$70,000 or more, or (2) Class "B" Contractor for projects of \$7500 to \$70,000, and (3) repair or improvements undertaken by such person within any twelve-month period is Five Hundred Thousand dollars (\$500,000) or more. When a license is required for either of the foregoing reasons, or whether or not so required, if the bidder is the holder of a license, the bidder shall place on the outside of the envelope containing its bid and in its bid over the bidder's signature the following notation: "A licensed Virginia Contractor No. _____.
When a license is not so required and a person who is not the holder of a license enters a bid, such person shall place on the outside the envelope containing his or her bid and shall place in his or her bid over his or her signature the following notation: "Licensing not required under Title 54.1, Code of Virginia."

If forwarded by mail the sealed envelope containing the bid shall be enclosed in another envelope addressed to the Contract Specialist, 900 E. Broad Street, 11th Floor, Richmond, Virginia 23219. If forwarded otherwise than by mail, it shall be delivered to the above address prior to the time set for receiving or opening bids.

3.19 Receipt and Opening of Bids

Bids will be opened publicly at the time and place stated in the Invitation for Bid. The officer whose duty it is to open them will decide when the specified time has arrived. No responsibility will be attached to any officer for the premature opening of a bid not properly addressed and identified. It is the responsibility of the bidder to assure that its bid is delivered to the designated place of receipt prior to the time set for the receipt of bids. Any bid received after the time designated for receipt of bids will not be opened or considered and will be returned to the bidder.

3.20 Minor Irregularities

The Owner reserves the right to waive minor informalities and irregularities. A minor informality or irregularity is one that is merely a matter of form and not of substance or some immaterial defect in a bid or variation of a bid form that can be corrected or waived without being prejudicial to other bidders. The defect or variation is immaterial when the effect on price, quantity, quality or delivery is negligible. Any clerical mistake, apparent on its face in the bid, may be corrected by the Procurement Officer upon verification of the bid intended.

3.21 Rejection of Bids

The Owner reserves the right to reject any or all bids. Any bid that fails to conform to the essential requirements of the solicitation or the specification or is unreasonable as to price may be rejected. In cases of unit priced bids, any bid may be rejected if the prices for any line items or sub line items are materially unbalanced.

3.22 Royalties and Patents

Contract prices must include all royalties and costs arising from patents, trademarks, and copyrights in any way involved in the Work. Whenever the Contractor is required or desires to use any design, device, material or process covered by letters, patent or copyright, the Contractor shall indemnify and save harmless the Owner, its officers, agents and employees from any and all claims for infringement by reason of the use of any such patented design, device, tool, material, equipment or process to be performed under the Contract, and shall indemnify the said Owner, its officers, agents, and employees for any costs, expenses and damages which it may be obliged to pay, by reason of any such infringement, at any time during the prosecution of, or after completion of the project.

4.0 Award and Execution of Contract

4.1 Award of Contract

The contract will be awarded to the lowest responsive, responsible bidder who shall be determined by the Director of Procurement Services in accordance with the provisions of the City Code and the laws of the Commonwealth of Virginia. To be responsive, a bid must comply in all material respects with the Invitation for Bids. Bids must be filled out, executed and submitted in accordance with the Instructions to Bidders. Award shall be made to responsible contractors only. To be determined responsible, a prospective contractor must meet the following conditions:

- a) Have adequate financial resources to perform the contract, or the ability to obtain them.

- b) Be able to comply with the proposed performance or delivery schedule considering all other business commitments.
- c) Have a satisfactory performance record in the City or other governmental localities. However, a prospective contractor shall not be non-responsible solely on the basis of a lack of relevant performance history.
- d) Possess the necessary construction and technical equipment and facilities to perform the Work.
- e) Comply with the City's Human Rights conditions.

4.2 Executing the Contract

Upon notice of award of the Contract, the bidder shall sign the contract on receipt and furnish the Performance and Payment Bonds as prescribed in paragraph 4.5 and the Certificate of Insurance as prescribed in paragraph 3.16, which are required to be procured by the contractor within fifteen (15) calendar days after the date of the notice of award or within such further time as the Owner may allow.

4.3 Contract Obligation

No Contract shall result from the submission of any bid and no liability shall accrue with respect thereto until a written Contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner. However, failure by the successful bidder to enter into a written Contract shall cause the successful bidder to forfeit the full amount of the bid guarantee to the Owner subject to the terms and conditions of the Contract Documents.

4.4 Execution of Documents

All documents that the bidder is required to execute under these General Conditions shall carry the signature of the president of the corporation, the corporate seal and shall be attested by the secretary of the corporation provided. If the board of directors of a corporation authorizes another officer to act for the corporation, then a sealed and attested copy of such authorization shall accompany the signature of such other officer. In the case of an individual or partnership, the individual to be bound shall sign, and each partner to be bound shall sign the document or documents, which signature shall be duly witnessed.

4.5 Contract Security

4.5.1 For contracts with a value exceeding one hundred thousand dollars (\$100,000), the Contractor shall deliver to the Owner or its designated representative a Performance Bond and a Labor and Material Payment Bond, each fully executed by the Contractor and one or more surety companies legally licensed to do business in Virginia and each in an amount equal to the sum of the contract amount. If more than one Surety executes a bond, each shall be jointly and severally liable to the Owner for the entire amount of the bond. Sureties shall be selected by the Contractor, subject to approval by the Owner. No payment on the Contract shall be due and payable to the Contractor until the bonds have been approved by the Owner and the Office of the City Attorney

4.5.2 The contractor may submit alternative forms of security in lieu of the bonds described in subsection 4.5.1 above in accordance with City Code § 21-51.

4.5.3 For contracts with a value of less than one hundred thousand dollars (\$100,000), the Contractor will not be required to provide a Performance Bond or a Labor and Material Payment Bond as described above unless the Invitation for Bids states that such bonds will be required. If the Invitation for Bids specifies that the Contractor is required to provide a Performance Bond or a Labor and Material Payment Bond, or both, the Contractor shall pay the cost thereof. If the Invitation for Bids does not specify that the Contractor is required to provide a Performance Bond or a Labor and Material Payment Bond, or both, but the City nevertheless requests that the Contractor do so, the Contractor shall provide the requested bonds in accordance with this section 4.5, and the Owner shall pay the cost thereof, which shall be added to the contract amount by change order.

4.6 Subcontracts

Within 15 days after notification of contract execution and before making any subcontract or issuing any purchase order, the contractor must submit the all subcontracts to the Owner for approval. The Owner will notify the contractor in writing the names of all approved Subcontractors, but such approval shall not entitle Subcontractors recognition for any direct contractual relationship with the Owner, nor shall it constitute approval of the use of materials other than those specified. The Contractor shall be responsible for all acts of Subcontractors and for all contract work regardless of any subcontract. The Owner and the Architect or Engineer may request approval of any Subcontractor be revoked for good cause. Notice of such revocation of approval will be in writing to the Architect or Engineer by the Owner for transmittal to the Contractor.

4.6.1 Additional Requirements. Nothing in this section shall preclude such Contractor from requiring each Subcontractor to furnish a Performance Bond and a Payment Bond with surety thereon in the sum of the full amount of the contract with such Subcontractor conditioned upon the faithful performance of the contract and the payment to all persons who have fulfilled contracts which are directly with the Subcontractor for performing labor and furnishing materials in the prosecution of the work provided for in the subcontract.

4.6.2 Subcontractor Obligations. Nothing in the Contract Documents shall create any obligation on the part of the Owner to pay or see to the payment of any sums directly to any subcontractor.

4.7 Separate Contracts

The Owner reserves the right to let other contracts in connection with the project, the work under which will proceed simultaneously with the execution of this Contract. The Contractor shall afford other separate Contractors reasonable opportunity for the introduction and storage of their materials and the execution of their work. The Contractor shall take all reasonable action to coordinate its work with their work.

If the work performed by the separate Contractor is defective or so performed as to prevent the Contractor's own progress, the Contractor shall immediately notify the Architect or Engineer upon discovering such conditions. Upon receiving notification, the Architect or Engineer shall take such appropriate steps as are necessary to allow the Contractor to carry out its work under this Contract,

and appropriate extensions of time and change orders shall be given to the Contractor pursuant to the terms of the Contract Documents for any delays and extra costs caused by the separate Contractor's failure to properly perform.

4.8 Taxes

The contractor shall pay all taxes by law resulting from the work or traceable thereto except taxes and assessments on real property comprising the site of the project. The City shall not be liable for the payment of any taxes levied by any local, state, or federal governmental entity against the Contractor, and the Contractor shall pay all such taxes; however, should the City nevertheless pay any such taxes, the Contractor shall reimburse the City therefore.

4.9 Compliance with Laws

The Contractor shall be fully responsible for knowledge of and shall abide by each and every law, rule or regulation of the City of Richmond, the Commonwealth of Virginia, and the United States government covering such project and in force at the time of the Contract execution. It shall not be entitled to claim any damages for delay occasioned by compliance with such laws. Where such laws are changed during the course of the Contract and impact the performance of the Work, such changes shall be made effective through Change Order prepared in accordance with the terms of the Contract Documents.

4.10 Indemnity

The Contractor shall defend, indemnify, reimburse and keep and hold the Owner and its employees free and harmless from liability on account of injury or damage to persons, including the Contractor's employees and employees of each subcontractor and property, growing out of or directly or indirectly resulting from the performance of the contract or any subcontract and the failure, refusal or neglect to comply with the provisions of the Contract.

In the event that any suit or proceeding is brought against the Owner, at law or in equity, either independently or jointly with the Contractor or a Subcontractor on account thereof, the Contractor shall defend the Owner in any such suit or proceeding at the cost of the Contractor. In the event of a final judgment or decree being obtained against the Owner, either independently or jointly with the Contractor or Subcontractor, then the Contractor shall pay such judgment or comply with such decree with all costs and expense of whatever nature and hold the Owner harmless there from. The Contractor shall insure the liability assumed by him under this Contract and have evidence of such insurance certified to the Owner on forms provided by the Owner. Nothing in the section shall be deemed to be in conflict with the Code of Virginia, as amended.

4.11 Notice

4.11.1 Any written notice by either party to the Contract shall be sufficiently given by any one or combination of the following, whichever shall first occur: (1) delivered by hand to the last known business address of the person to whom the notice is due; (2) delivered by hand to the person's authorized agent, representative or officer wherever they may be found; or (3) enclosed in a postage prepaid envelope addressed to such last known business address and delivered to a United States Postal Service official or mailbox. Notice is effective upon such delivery. All notices to the Owner should be directed to the Project Manager.

4.11.2 If the Owner and the Contractor agree in writing that Notices transmitted by facsimile transmission (“Fax”) are acceptable for the Project, such Notices shall be transmitted to the Fax number listed in that agreement and shall have a designated space for the Faxed Notice recipient to acknowledge his receipt by authorized signature and date. The Faxed Notice with authorized signature acknowledging receipt shall be transmitted back to the sender. The Faxed Notice shall be effective on the date it is acknowledged by authorized signature. All Faxed Notices shall also be sent by hard copy, which shall be effective upon delivery, as provided herein. Notice shall be effective upon the date of acknowledgment of the Faxed Notice or the date of delivery, whichever occurs first.

4.12 Contract Amount

4.12.1 Generally

The term “contract amount,” as used in these General Conditions of the Contract, means the Maximum Authorized Contract Amount for this Contract as stated on the contract page signed by the authorized representatives of the Owner and the Contractor. The Maximum Authorized Contract Amount may be increased or decreased as authorized by these General Conditions of the Contract. The total aggregate or cumulative liability of the Owner in connection with this Contract or with any work thereunder shall not under any circumstances exceed the Maximum Authorized Contract Amount. Each payment made to the Contractor pursuant to this Contract reduces the portion of the Maximum Authorized Contract Amount available for payment to the Contractor.

4.12.2 Lump Sum Contracts

If this Contract is awarded on a lump sum basis, as evidenced by the Bid Form, the Maximum Authorized Contract Amount is the amount of the lump sum base bid plus the amounts of any additive bid items chosen by the Owner, unless an adjusted bid price is negotiated pursuant to section 21-55(b) of the Richmond City Code.

4.12.3 Unit Price Contracts

If this Contract is awarded on a unit price basis, as evidenced by the Bid Form, the Maximum Authorized Contract Amount is an amount estimated by the Owner to be available for expenditure for this Contract through the June 30 immediately following the date of this Contract as shown on the contract page signed by the authorized representatives of the Owner and the Contractor. The Maximum Authorized Contract Amount may be more or less than the Total Computed Price on the Bid Form.

5.0 Performance of Contract

5.1 Order of Precedence

The Contract Documents shall be accorded the following order of precedence unless specifically changed elsewhere in these specifications:

- Change Orders
- The Contract
- Addenda
- Division 01010 General Conditions of the Contract
- Special Provisions of the Contract
- Technical Specifications
- Drawings
- Supplementary Drawings
- The Invitation for Bid
- The Request for Qualification

5.2 Commencement of Work

The Contractor shall mobilize forces and commence work within fifteen (15) days from Notice to Proceed or as may be mutually agreed to at the pre-construction meeting. The contractor shall prosecute the Work so as to prevent delay to other contractors or to the general completion of the project. Time being the essence of this Contract, the contractor shall prosecute the Work diligently, using such means and methods of construction as will secure its final completion in accordance with the requirements of the Contract Documents, not later than the date specified in Invitation for Bid or on the date to which the time for completion may be extended.

5.3 Critical Materials

Contractor understands that completion of the project at the earliest possible date is of extreme importance to Owner. Based on drawings as and when issued to it by Architect/Engineer, Contractor therefore undertakes and agrees to use its best efforts to arrange for the purchase of critical materials, directly or through subcontractors, far enough in advance of the time when they will be needed so that the orderly completion of the project at the earliest possible date will not be delayed. Contractor shall furnish Architect/Engineer and Owner with a report based on drawings issued to it by Architect/Engineer of critical materials required for the project in such detail as they may require.

5.4 Change Orders

Construction Change Orders are to be initiated when any material or substantive change within the original specifications or project scope is proposed or is deemed necessary by the City or the Contractor. The change must be of a nature that corrects errors in drawings; considers unforeseen site conditions; captures previously unknown conditions not recorded in official documentation registered with the appropriate public institutions; changes that capture obvious omissions necessary for the projects successful completion, or; changes in materials, approach, or other fundamental deviations from the original specifications or project scope. Change Orders that increase or expand the scope of the project in any way shall not proceed or initiate any work until the said change is approved in writing by the Director of the responsible department , the Director Procurement Services and, if applicable, the City Chief Administrative Officer.

Non Construction Change Orders are to be initiated for administrative changes; project time extensions; price and labor rates increases due to regulations or other external considerations; changes in code, regulations, changes in policies and procedures; and other unforeseen or unanticipated administrative circumstances not considered at project initiation.

The City or the Contractor may initiate change orders. A request initiated by the City will contain a description of the intended change with supplementary revised drawings, project scope, specifications and a revised projected time for completion if necessary. An expansion of project scope, project design, or increases in quantities or reduction in time must be initiated with the submission of a project concept change memo to be approved by the responsible Department Director, the Director of Procurement Services, and the City CAO. The approved memo shall be attached to the subsequent proposed change order request.

The Contractor may only initiate a change order request within the established project scope and specification parameters. A request initiated by the Contractor will provide all supporting documentation which must include a written statement of the reason for the change, a statement addressing the reason the work was not included in the original bid and the effect the proposed change will have on the project timeline, price, and associated factors. The Contractor shall not proceed with any changes unless pre-approved by the appropriate City officials. The City will not be liable for the cost of changes orders not formally approved before the work begins.

Overhead and profit shall be limited to the amounts established in the contract. Overhead is defined as cost of administration, field office and home office costs, general and project superintendence above the level of general foreman, surveying, office engineering and estimating costs, other required insurance, materials used in temporary structures (not including for work), the use of small tools, scheduling costs, and all other costs incidental and non-direct to the performance of the change or the cost of doing business. Small tools are defined as any tool with a replacement value less than \$1,000 (one thousand dollars).

Regardless of the manner in which the adjustment to the contract for extra work is determined, such adjustments shall include all amounts, direct or indirect or consequential, resulting from the performance of the extra work, including but not limited to, overhead, profit, taxes, allowances made to any subcontractors, rent for tools and equipment (whether for use in performing the extra work or remaining idle during the performance of such extra the work), licenses, fees, or other charges related to the cost of doing business. The adjustment in the Contract Price, if any, shall constitute full and mutual accord and satisfaction for all costs related to the change.

5.4.1 Changes in the Work and Extras. At the request of the Architect or Engineer, the Contractor shall perform any related work not covered by plans and specifications or unit prices that may arise during construction. The Extra Work shall be on the basis of a lump sum negotiated between the Contractor and Architect or Engineer. Additional compensation shall be broken down into its component parts for actual labor, materials and equipment rental plus an agreed to overhead and profit percentage stipulated in the Bid; or in accordance with the contingent items schedule included in the Bid for Street, Sewer and Underground Utility Projects. The Owner must approve in writing any changes in the Work.

All changes in the work or extra work made pursuant to a written order shall be performed under the terms of the Contract Documents. The provisions of Claims for Consequential Damages shall not be applicable to Changes in the Work and Extras. The overhead and profit percentage shall not exceed the amount listed in the Invitation for Bid. **Should the percentage be divided between the Contractor and one or more subcontractors, the Contractor shall add its portion of the percentage to the actual cost of the work and not to the Subcontractor's total.**

Whenever the City initiates changes, alterations, additions, omissions or revisions for which the necessary drawings and details have been completed and submitted to the Contractor, the Contractor is to submit the proper cost and price documentation including an itemized statement of quantities and prices incidental to such revisions, changes, additions and omissions to facilitate the checking of the quantities involved in a manner as stated hereafter.

All changes and extra work shall be reduced to written form and approved by the City within the same billing period in which the Work was performed. Payment for changes and extra work may not be billed or paid until the change order has been approved by the City and the change or extra work has been completed.

5.4.2 Labor and Equipment Costs. The cost for labor and equipment for building and structures projects shall cover all actual costs including but not limited to all insurance costs, all taxes (including payroll taxes), Social Security, Worker's Compensation, Old Age Benefits, and Bonuses, FICA, and Fringe Benefits.

5.4.3 Change Order Form and Format. The Contractor shall use the City's Proposed Change Order Form (PCO Form) when submitting for change orders except when the contract is based upon a Unit Price Schedule such as those included in the Bid for Street, Sewer and Underground Utility Projects. The form shows a summary of 1st tier subcontractor's Labor, Material, Equipment, and Overhead & Profit, along with the Contractor's Overhead & Profit on the Subcontractor's Labor, Material, and Equipment along with the Contractor's Labor, Material, Equipment, Overhead & Profit, and additional Bond Premiums of the Performance Bond not to exceed 1%. The form shall be provided to the Contractor in an electronic format upon contract award.

5.4.3.a Back-Up Documentation. The Contractor shall provide additional written supporting documentation on company letterhead with an appropriate signature of an authorized representative for the contractor with all PCO forms prior to the approval of the change order. Back-up documentation to be provided must include the reasons for the change order, why the work was not included in the original bid, the effect of the changes on project delivery (expressed in calendar days), and 1st tier subcontractor's price breakdowns, in detail on company letterhead as aforementioned. The Contractor must also provide a detailed price breakdown for all Contractor performed work on company letterhead which shall include all labor (hours and rates), material (material counts, etc), equipment (quotes from rental companies, time duration of rental, etc.), and overhead & profit (percentages).

5.4.3.b Inaccurate Back-Up Documentation. Back-up documentation submitted containing mathematical errors or information that does not reflect the information demonstrated on the PCO Form shall be rejected and returned to the Contractor for revision. The City of Richmond will not be liable for delay of the project or financial hardships caused by inaccurate back-up documentation. Rounding of numbers is not allowed and will not be accepted. Dollar amounts shall be exact and accurate.

5.5 Unforeseen Site Conditions

The Contractor shall promptly, and before the conditions are disturbed, give a written notice to the Architect or Engineer of any subsurface or latent physical conditions at the site or in the existing structure which differ materially from those indicated in Contract Documents; or of any unknown physical conditions at the site, of an unusual nature, which differ materially from those ordinarily encountered and generally recognized as inhering in work of the character provided for in the Contract Documents.

The Architect or Engineer shall investigate the site conditions promptly after receiving the notice and must advise the City in writing if further investigation or tests are necessary. Should the results of such investigation indicate conditions differ materially from the Contract Documents, an equitable adjustment may be negotiated and the contract shall be modified to reflect any negotiated changes through the means of Construction Change Order.

5.6 Completion

The Owner, with concurrence by the Architect or Engineer, shall solely judge whether the work hereunder has been completed within the time stipulated.

5.6.1 Completion Date. Unless the date of completion is extended pursuant to the provisions herein, the Contractor must complete the work covered by this contract not later than the number of days specified in the Invitation for Bid.

5.6.2 Penalty of Non Completion. There will be on the part of the Owner substantial monetary damage in the event the Contractor shall fail to complete the work within the time fixed for completion in the Invitation for Bid, or within the time to which such completion may have been extended. The amount per day set forth in the Invitation for Bid is hereby agreed upon as the liquidated damages for each and every calendar day that the time consumed for substantial completion of the work exceeds the time allowed therefore. This amount of liquidated damages shall in no event be considered as a penalty or otherwise than as liquidated and adjusted damages to the Owner because of the said delay. The Contractor and its surety agree that the said sum per day for each such day shall be deducted and retained out of the monies which may become due hereunder, and, if not so deductible, the Contractor and its surety shall be liable therefore.

5.6.3 Final Completion. Date of final completion shall be the date as certified by the Owner when the performance of the Work is complete in accordance with the Contract Documents, such that no further work remains to be done at the site or otherwise. The certification of final completion shall serve as the date when the Contractor has fulfilled all requirements for final payment as described in elsewhere in the General Conditions of the Contract. Certification of final completion shall be

achieved within the time fixed for completion in the Contract or within the time for completion as modified through a change order to the Contract.

5.7 Extension of Time

No extension beyond the date of completion fixed by the terms of the Contract shall be effective unless granted in writing by the Director of Procurement Services and concurred with by the representative of the Department. A request by the Contractor for extension of time must be in writing; must set forth in detail the reasons and causes of delay; shall identify the particular construction operation(s) affected; and must be submitted to the Owner within fifteen (15) days following the occurrence of each delay. The Owner shall acknowledge the Contractor's request and within fifteen (15) days the Owner shall reply and set forth in detail any findings or recommendations and the reasons therefor.

An application for extension of time will not be approved unless it can be demonstrated that the Contractor reasonably endeavored to carry out other phases of the work which were not affected by one or more of the conditions as set out herein.

5.7.1 Granting Extensions. If such a request is made, the Contractor shall be entitled to an extension of time for delay in completion of the Work should the Contractor be obstructed or delayed in the commencement, prosecution or completion of any part of said work by an act or delay of the Owner, or by issuance of a permit, or by a riot, insurrection, war, pestilence, acts of public authorities, fire, lightning, hurricanes, earthquakes, tornadoes, floods, extremely abnormal and excessive inclement weather as indicated by weather records preceding the date of the Contract, or by strikes.

The Contractor may be granted an extension of time for other causes, which causes of delay, in the opinion of the Architect or Engineer and approved by the Owner, are entirely beyond the expectation and control of the Contractor, provided such delays are accurately documented in the Contractor's request for an extension of time.

5.7.2 Extension Guidelines. The Contractor shall be entitled to an extension of time for such causes as set out above only for the number of days of delay which are due solely to such causes, and then only upon the approval of the Owner following a determination by the Architect or Engineer that the delays took place due solely to one or more of such causes, and that the conditions cited actually delayed the completion of the project. It is hereby understood that the direction by the Architect or Engineer of the order and sequence of the work shall not in itself constitute a basis for extension of time.

5.7.3 Impact of Extension. The determination made by the Owner on a request for an extension of time shall be binding. In no event shall any delays or extensions of time be construed as cause of justification for extra compensation.

5.8 Claims for Consequential Damages

The Contractor agrees to make no claim for consequential damages for delay in the performance of this Contract occasioned by any act or omission to act of the Owner or any of its representatives, or because of any injunction which may be brought against the Owner or its representatives. The

Owner agrees that the Contractor shall be fully compensated for job site overhead expenses, insurance and taxes related to expenses during the period of total shutdown that may be caused as set out 5.7.2 above, provided, the Contractor furnishes the Owner proof that such expenses did occur. This section shall not apply to changes in the Work as set forth in paragraph 5.4 of these General Conditions. The Contractor agrees to make no claim for damages, direct or consequential, for delay in the performance of this Contract occasioned by any reason whatsoever, and further agrees that any such claim shall be fully compensated for by an extension of time and waives every right to bring an action for any such latter damages.

5.9 Progress Schedule

To enable the Work to be laid out and prosecuted in an orderly and expeditious manner, the Contractor, within three (3) calendar days following the date set for the preconstruction meeting, shall submit to the Owner or Architect/Engineer a proposed progress schedule showing the anticipated time of commencement and completion of each of the various operations to be performed under this Contract, together with all necessary and appropriate information regarding sequence and correlation of work, and an estimated time required for delivery of all materials and equipment required for the project, including a schedule of submission shop drawings and samples. The proposed schedule shall be revised as directed by the Owner or Architect or Engineer until approved, and after such approval, shall be strictly adhered to by the Contractor, unless upon written permission of the Architect or Engineer, it is changed, provided such change is agreed to by the Owner.

5.9.1 Failure to Adhere To Schedule. If the Contractor shall fail to adhere to the approved progress schedule or to the schedule as revised, it must promptly adopt such other or additional means and methods of construction as will make up for the time lost and will assure completion in accordance with such schedule.

5.9.2 Withholding Partial Payments. If the Contractor's progress is more than 10% behind his projected schedule, based on dollars actually earned versus estimated dollar earnings as shown on the accepted progress schedule, partial payments may be withheld until such time as the Work is at least within 90% of the projected schedule and is so maintained for thirty (30) days thereafter.

5.10 Architect/Engineer's or Owner's Representative's Status

All Work shall be done under the general observation of the Architect or Engineer. The Contractor shall carry out the Work in accordance with the Contract Documents. The construction means, methods, techniques, sequences or procedures, or safety precautions and programs in connection with the Work, shall be at the direction and the responsibility of the Contractor. If provided in writing by the Owner, the Architect or Engineer shall have authority to and shall reject any and all Work whenever it is necessary to do so in order to insure the proper execution of the Work in accordance with the Contract Documents. All orders from the Owner and all communications from the Contractor to the Owner shall be transmitted through the Architect or Engineer. Any oral order, direction, requirement or determination given the Contractor shall have no effect unless so confirmed by the Owner and Architect or Engineer shall in writing within fourteen (14) days.

5.10.1 Architect/Engineer Responsibility. It shall be the Architect's or Engineer's responsibility to verify that the Contractor's schedule is adhered to strictly. Should the Contractor's progress fall

behind the schedule established by the Contractor and approved jointly by the Owner and the Architect or Engineer, the Architect or Engineer shall promptly notify the Contractor in writing that the work must get back on schedule and further advise the Owner of the steps which the Contractor has taken to put the project back on project back on schedule and enforce maintenance of the schedule.

5.10.2 Termination of Architect. In case of the termination of the employment of the Architect or Engineer, the Owner shall appoint a capable and reputable Architect or Engineer. The Status under the Contract of the Architect or Engineer so appointed shall be that of the former Architect or Engineer.

5.11 Materials, Services and Facilities

Unless otherwise noted, the Contractor shall provide and pay for all labor, materials, equipment, barricades, tools, construction equipment and machinery, water, heat, utilities, transportation, sanitary facilities and other services necessary for the proper completion of the Work.

5.12 Protection of Work

During performance and until final acceptance, the Contractor shall provide absolute protection of the finished and unfinished Work against any damage, loss, or injury. Such precaution shall not relieve the Contractor from any and all liability and responsibility for loss or damage to the Work occurring before certification of final completion. In the event of any such loss or damage, repair, replace and make good the work without extension of time therefore except as may be otherwise specified.

5.13 Drawings and Specifications

The general character and scope of the work is illustrated by the drawings and specifications. Omissions from the drawings and specifications shall not relieve the Contractor from the responsibility of furnishing, making or installing all items required by law or usually furnished, made or installed in a project of the scope and general character indicated by the drawings and specifications. Reference to standard specifications of any professional society, institute, association or governmental authority, or similar body is a reference to the standard specifications of such organization in effect at the date of the bidding documents, unless otherwise specified.

5.13.1 Limitations of Drawings. The drawings show conditions as they are supposed or believed by the Owner to exist, but are not intended to be or inferred to be that the conditions as shown thereon constitute a representation or warranty expressed or implied by the Owner that such conditions actually exist. The Owner shall not be liable for any loss sustained by the Contractor as a result of any variance between the conditions as shown on the drawings and the actual conditions revealed during the progress of the work, except as indicated in paragraph 5.16. In case of difference between small- and large-scale drawings, the large-scale drawings shall govern. In cases of difference between drawings and specifications, the specifications shall govern.

Where on any of the drawings a portion of the work is drawn out and the remainder is indicated in outline, the parts drawn out shall apply also to all other like portions of the work.

5.13.2 Separation of Drawings. Drawings and specifications are separated into titled divisions and sections for convenience, and do not necessarily dictate or determine the craft or trade involved. Inasmuch as each Contractor has presented by the submission of its bid, that all parts of the bidding documents have been examined, he shall be responsible for performing all the work specifically required of him by any part of the bidding documents, including all drawings and specifications for the entire project even though such work may be included under various headings or in divisions or sections of the project documents.

5.13.3 Measurements. Measurements or dimensions shown on the drawings shall be verified at the site by the Contractor. Measurements or dimensions from the drawings shall **NOT** be obtained by scaling. Where discrepancies are discovered, the Owner shall be notified immediately for clarification.

5.13.4 Maintenance of Drawings By Contractor. The Contractor shall keep on site a record set of drawings and specifications on which all changes or as-built conditions shall be noted, including electrical mechanical, and shall at all times give the Owner, Architect or Engineer and their authorized representatives access thereto.

The Architect/Engineer or his duly authorized representative shall inspect the record set of drawings and specifications on a monthly basis prior to preparation of the monthly progress payment. In the event said drawings and specifications are not up-to-date, the monthly progress payment may be withheld until the record set of drawings and specifications are brought up-to-date.

5.13.5 Ownership of Drawings. All drawings, specifications and copies furnished the Contractor for this project are to be turned over to the Owner at completion of the work.

5.13.6 Copies Furnished The Contractor. After the contract has been executed the Contractor will be furnished eight (8) sets of the contract drawings and specifications. Additional copies of the drawings and specifications will be furnished the Contractor at the cost of reproduction. It shall be the Contractor's responsibility to furnish each of its Subcontractors, manufacturers, and material suppliers such copies of the Contract Documents as may be required for its portion of the work.

5.13.7 Detail Drawings and Instructions. The Contractor will be furnished additional instructions and detail drawings as may be necessary to carry out the work included in the Contract. The additional drawings and instructions, thus supplied to the Contractor, shall be consistent with Contract Documents, true developments thereof and shall be so prepared that they can be reasonably interpreted as a part thereof. The Contractor shall carry out the Work accordance with the additional detail drawings and instruction.

5.13.8 Special Drawing Provisions. The Contractor and the Architect or Engineer shall prepare jointly:

- a) A schedule fixing the dates at which special detail drawings will be required; and
- b) A schedule fixing the respective dates for the submission of shop or setting drawings, the beginning of manufacture, testing and installation of materials, supplies and equipment, and

the completion of the various parts of the work, each such schedule to be subject to change from time to time in accordance with the progress of the work.

5.14 Shop Drawings

Shop drawings are drawings, illustrations, schedules, performance charts, brochures and other data which are prepared by the Contractor or any Subcontractor, manufacturer, supplier or distributor, which illustrates some portion of the work to the Architect or Engineer for review for compliance with the Contract Documents.

The Contractor shall review and submit shop and setting drawings and schedules required by the specifications or that may be requested by the Architect or Engineer, and no work shall be fabricated by the Contractor, save at his own risk, until such review has been completed and the submittal approved. The Architect or Engineer shall not assume responsibility for correctness of dimensions or details.

Drawings and schedules shall be submitted in quadruplicate (unless otherwise specified) accompanied by letter of transmittal which shall give a list of the numbers and dates of the drawings submitted. Drawings shall be complete in every respect and bound in sets.

The Contractor shall submit all drawings and schedules sufficiently in advance of construction requirements to allow ample time for checking, correcting, re-submitting and checking. The Architect or Engineer shall, within fourteen (14) days after receipt, return such drawings and schedules to the Contractor indicating his approval or disapproval. On complex drawings and equipment, the Architect shall acknowledge receipt within fourteen (14) days and advise the Contractor when the submittal will be returned, approved or disapproved.

If a drawing as submitted indicates a departure from the contract requirements which the Architect or Engineer finds to be in the interest of the Owner and to be so minor as not to involve a change in the Contract price or time for performance, it may approve the drawing and confirm in writing the change or changes.

The approval of shop and settling drawings will be general, and except as otherwise provided shall not be construed:

- a) As permitting any departure from the contract requirements;
- b) As relieving the Contractor of the responsibility for any error in details, dimensions or otherwise that may exist; and
- c) As approving departures from additional details or instructions previously furnished by the Architect or Engineer.

5.15 Omissions, Errors, Discrepancies

Work reasonably anticipated and usually incidental to the project although not specifically referred to in the Contract Documents shall be furnished and performed by the Contractor. Labor, materials and equipment directly or indirectly necessary to complete the construction of the project, whether

or not the same may have been expressly provided for in the Contract Documents, shall be furnished and performed by the Contractor at no additional cost to the Owner provided that such labor, materials and equipment are reasonably anticipated and usually incidental to the project.

The Contractor shall notify the Owner or Architect or Engineer immediately and confirm in writing the discovery of any error or omission in the reference point; data furnished by the Architect or Engineer in the layout; any discrepancy in the Contract Documents; or any part thereof; or between the drawings as furnished and the conditions on the site. After such discovery, the Contractor shall proceed with the performance of the Contract only after receiving written instructions from the Owner or Architect or Engineer.

5.16 Performance of Work by the Contractor

To assure adequate interest in and supervision of all work involved in projects exceeding \$1,000,000, the contractor shall be required to perform a portion of the Work with its own forces. The minimum amount of work the contractor must perform with its own forces is 15%.

6.0 Control of the Contract

6.1 Materials and Workmanship

The Contractor shall supervise all workmanship, including that of all Subcontractors, to insure that it is of the highest grade and according to best standard practice. Where necessary, skilled artisans shall perform all work.

For every trade and for every product the installation and application techniques shall be in strict accordance with the highest quality prescribed by the applicable trade standards and by such specific recommendations of the manufacturer.

6.2 Access to the Project

The Architect or Engineer and the Owner shall have access at all times to the work for inspection wherever it is in preparation or progress, and the Contractor shall provide proper facilities for such access and inspection. Other Contractors of the Owner shall be permitted access to the site of the project when it is required for performance of their respective contracts.

6.3 Inspection

All material and workmanship shall be subject to inspection, examination and test by the Owner or Architect or Engineer at any and all times during manufacture or construction. The Architect or Engineer shall have the authority to approve materials and workmanship which are determined not to be in strict accordance with the terms and conditions as set forth in the Contract Documents provided that the Architect or Engineer determines that such materials and workmanship are workable and will cause no significant harm either functionally, structurally or aesthetically to the project. The Owner shall be entitled to a credit based upon the Architect's or Engineer's determination as to the diminished value of the project. The Architect or Engineer shall immediately notify the Owner and the Contractor following his decision that a credit as to the diminished value is due.

The Contractor shall expose any work that has been covered or concealed which the Architect or Engineer has not specifically requested to observe prior to being covered or concealed, the Architect or Engineer may request to see such work. If such work is found to be in accordance with the Contract Documents, payment for the cost of opening or uncovering and replacement shall be handled in accordance with the provision as set forth in Changes in Work and Extras.

If such work is found to be not in accordance with the Contract Documents, the Contractor shall pay the cost of opening or uncovering and replacement and shall at no cost to the Owner make the necessary corrections to bring the Work into accord with the Contract Document. In the event the Contractor can demonstrate that someone other than the Contractor or Subcontractor or someone not acting through or at the direction of either, caused the work in question not to be in accordance with the Contract Documents, then the Contractor shall not be responsible for the aforesaid costs.

If any work has been covered or concealed which the Architect or Engineer had specifically requested to observe prior to its being covered or concealed, the Contractor shall expose same and, where required, replace it entirely at its own expense.

6.3.1 Defective Material. The Architect or Engineer shall have the right to reject defective material and workmanship that does not conform to the terms of the Contract Documents or require their correction. Rejected workmanship shall be satisfactorily corrected and rejected material shall be satisfactorily replaced with proper material without charge to the Owner. The Contractor shall promptly segregate and remove the rejected materials from the premises. If the Contractor fails to proceed at once with replacement of rejected material or the correction of defective workmanship, the Owner may, by contract or otherwise, replace such material or correct such workmanship and charge the cost to the Contractor, or may terminate the right of the contractor to proceed as provided for in the Contract Documents. The Contractor and surety shall be liable for any damage to the same extent as provided for in termination.

6.4 Samples and Test Specimens

The Contractor shall promptly furnish sufficient labor and material necessary for the testing of samples taken by the Architect or Engineer at no cost to the Owner as may be designated in the Contract Documents. All work shall be performed using material represented by the approved samples.

6.5 Superintendence by the Contractor

The Contractor shall give his personal superintendence to the work, or have a competent superintendent satisfactory to the Owner, on the project at all times during progress of the Work until final acceptance, and who shall have authority to make decisions for him or her.

The Contractor shall, at all times, enforce strict discipline and order among the workers on the project and shall not employ any unfit person or anyone not skilled in the assigned work.

The Owner reserves the right to suspend the work until such time as a competent supervisor satisfactory to the Owner is assigned to the project. Contract time shall not be extended for such suspension nor shall the Contractor be entitled to any additional payment of any kind whatsoever as a result of such suspended work.

6.6 Surveys and Layouts

The Architect or Engineer shall furnish all necessary drawings showing property lines, and the location of the building structure, storm or sanitary sewer, inceptor sewer, water, gas or utility line. The Contractor shall provide necessary stakes and competent engineering service to execute the work in accordance with the Contract Documents and shall be responsible for the accuracy of its work.

6.6.1 Reference Points and Bench Marks. The Owner has established or will establish such general reference points and bench marks on the building site or base lines and bench marks for other work as will enable the Contractor to proceed with the project. The Contractor shall protect and preserve the established bench marks and monuments and shall make no changes in locations without the written approval of the Owner. If the Contractor finds that any previously established reference points have been destroyed, misplaced or damaged through his fault, he shall promptly notify the Owner, who will replace such general reference points and bench marks at the Contractor's expense.

6.7 Safety and Maintenance of Traffic

6.7.1 Traffic Control. All traffic control shall conform to the requirements of the "TRAFFIC CONTROL SPECIFICATIONS FOR STREET AND SIDEWALK CONSTRUCTION" City of Richmond, Bureau of Traffic Engineering. The Contractor shall employ such methods in the performance of the Contract and provide such barriers, guards, temporary bridges, detours, notices, lights, warning and other safeguards as may be necessary to prevent injury to persons and property.

The Contractor shall define the line of safe passage with suitable lights, wherever the public may have access to the site of the project, during the hours from one-half hour before sunset to one-half hour after sunrise.

6.7.2 Signs And Barricades. The Contractor shall maintain at each end of the project or on a building site an approved sign giving the name of his company and emergency telephone number, and the name and telephone number of a designated person who may be called when the Contractor cannot be reached. In addition the contractor shall erect such barricades and warning lights may be required by governmental regulation for the protection of employees and the public. The signs and barricades shall be properly lighted and maintained at all times at the Contractor's expense.

6.7.3 Accident Prevention. Precaution shall be exercised at all times for the protection of persons, including employees, and property. The safety provisions of applicable laws and building construction codes shall be observed, and all work done under this Contract shall be in accordance with the provisions of all Federal, State and local regulations.

6.8 Protection of Vegetation, Utilities and Existing Property.

The Contractor shall continuously maintain adequate protection of all his work from damage from any cause and shall protect the Owner's property from injury or loss arising in connection with the Contract. The Contractor shall protect from damage all existing improvements and utilities. It shall make good any such damage, injury or loss, except such as may be directly caused by agents or employees of the Owner. The Contractor shall notify the Owner promptly in writing when any

damage, injury or loss is experienced on the project. THE CONTRACTOR SHALL ADEQUATELY PROTECT ADJACENT PROPERTY AS PROVIDED BY LAW AND THE CONTRACT DOCUMENTS.

The Contractor shall preserve and protect all structures, equipment, and vegetation (such as trees, shrubs, and grass) on or adjacent to the work site, which are not to be removed and which do not unreasonably interfere with the work required under this contract. The Contractor shall only remove trees when specifically authorized to do so, and shall avoid damaging vegetation that will remain in place. If any limbs or branches of trees are broken during contract performance, or by the careless operation of equipment, or by workmen, the Contractor shall trim those limbs or branches with a clean cut and paint the cut with a tree-pruning compound as directed by the Owner.

In an emergency affecting the safety of life or of the work of adjoining property the Contractor, without special instruction or authorization from the Architect, Engineer or Owner, is hereby permitted to act, at its discretion, to prevent such threatened loss or injury. Any compensation claimed by the Contractor on account of such emergency work shall be verified and approved by the Owner.

6.9 Use of Premises and Removal of Debris

The Contractor shall maintain the project in an orderly and clean condition, and shall at suitable intervals remove accumulations of rubbish or refuse materials, surplus concrete, mortar and excavated materials not required or suitable for backfill but not more than four (4) days after the day in which spoil excavation or debris occurs. Washings from concrete mixers or mixing boxes shall not be deposited directly or indirectly in the drainage of sewer system of the Owner or on paved streets. The Contractor shall keep the site, inclusive of vehicular and pedestrian traffic routes through the site, free of dirt and dust by periodic blading, power brooming, watering or other approved means.

The Contractor shall confine all operations (including storage of materials) to areas approved by the Owner.

The Contractor shall, use only established roadways, or use temporary roadways constructed by the Contractor when and as authorized by the Contract Documents. When materials are transported in prosecuting the work, vehicles shall not be loaded beyond the loading capacity recommended by the manufacturer of the vehicle or prescribed by any Federal, State, or local law or regulation. When it is necessary to cross curbs or sidewalks, the Contractor shall protect them from damage. The Contractor shall repair or pay for the repair of any damaged curbs, sidewalks, or roads.

Upon completion and before final acceptance of the work performed under the Contract, the Contractor shall remove all rubbish, surplus or discarded materials, falsework, forms, temporary structures, sanitary facilities, field office, project signs, signs not a part of the project, equipment and machinery, and shall leave the site and ground occupied by him in connection with the performance of the Contract in an orderly and clean condition satisfactory to the Owner. Buildings constructed, altered, or worked in by the Contractor in the performance of the Contract shall be left "broom clean", and stains and other blemishes resulting from his operations, such as drooped or

splattered concrete or mortar and paint, shall be removed from floors, walls, ceilings, windows, pavements, walks and all other exposed surfaces.

6.10 Stored Material

When payment for stored materials is permitted, the Contractor shall submit a separate schedule for stored materials showing the line item, description, and value of the material. Paid invoices demonstrating proof of ownership, proof of insurance, and evidence of secured storage shall be provided in conjunction with any stored material for which the Contractor is requesting payment.

6.11 Final Inspection

When the Work in the opinion of the Contractor is substantially completed, the Contractor shall notify the Owner and the Architect or Engineer in writing at least ten (10) days in advance that the work will be ready for final inspection and test on a specified date, which date shall be stated in such notice.

If the work is completed in accordance with the requirements of the Contract Documents, the date of completion will be fixed as the date of final inspection rather than the date of receipt of the written request for the final inspection.

If such inspection reveals work not performed in accordance with the requirements of the Contract Documents, or uncompleted work, the Contractor shall be notified in writing and it shall promptly perform the work required. The Contractor shall then request a re-inspection, which will be made within ten (10) days after receipt of such request. When it has been determined by any re-inspection that the work is completed in accordance with the requirements of the Contract Documents, the date of completion will be fixed as the last day of such re-inspection.

After the project has been given final inspection and accepted by the Owner, the Architect or Engineer shall submit one set of reproducible "as built" drawings and specifications to the Owner together with operating manuals and instructions as required by specifications. THIS PARAGRAPH NOT APPLICABLE ON SEWER, STREET OR UNDERGROUND UTILITY PROJECTS UNLESS SPECIFICALLY STATED IN THE SPECIAL PROVISIONS.

6.12 Guarantee

The Contractor shall guarantee all workmanship, materials, equipment, and completed products for a minimum time period of one (1) year from the date of completion in addition to and not in limitation of any obligations or specific guarantee, warranties contained in the Contract Documents or in any applicable subcontract, or implied by operation of law.

The Contractor warrants to the Owner that all materials and equipment provided under this Contract will be new and unused unless otherwise specified, and that all work will be of good quality, free from faults and defects and in conformance with the Contract Documents. All work not conforming to these standards may be considered by the Owner as defective.

By executing the Contract, the Contractor agrees that it will upon receipt of written notice promptly visit the site in the company of the Owner's representative to determine the extent of all defects or non-conformities and with reasonable promptness correct them.

The correction of defects and non-conformities shall also extend to the correction or replacement of all adjacent materials, and workmanship not necessarily provided by the Contractor, but which may have been damaged as a result of such defect or non-conformity or as a result of remedying them. The guarantee period for each feature of the work will begin only after acceptance of the particular feature of the work by the Owner. The Contractor agrees that the Performance Bond shall fully cover all guarantees and warranties of the project.

Any payment provision of the Contract Documents, partial or entire use or occupancy by the Owner shall not constitute an acceptance of any work not in accordance with the Contract Documents. Nor shall it relieve the Contractor of liability in respect to any express guarantee, warranties or responsibility for faulty materials or defects in workmanship.

As a condition to the final payment, the Contractor shall execute, acknowledge and deliver to the Owner a written confirmation of the foregoing guarantee in a form satisfactory to the Owner and containing provisions not inconsistent with the terms of this Section.

If at any time during such guarantee period the Owner shall give notice to the Contractor that a breach of one or more of the obligations under this Section has occurred, the Contractor shall, at its own cost and expense, cure such breach including without limitation the repair or replacement of any portion of the work damaged or adversely affected by the curing of such breach.

6.13 Subcontractor's Guarantee

The Contractor shall require the Subcontractor under each subcontract to execute, acknowledge and deliver to the Contractor a written guarantee of the part of the Work covered by such subcontract including any machinery or equipment installed under the subcontract. Such guarantee shall run expressly to and for the benefit of the Owner individually and jointly with the Contractor, shall be in a form satisfactory to the Owner and shall be for a period of one year after such Subcontractor shall have completed its part of the work or such longer period as may be prescribed by the Contract Documents.

6.14 Guarantee By Others

If any materials, equipment or apparatus incorporated in the project by the Contractor or by any Subcontractor, is or are guaranteed by the suppliers or manufactures thereof, the Contractor shall obtain and deliver to the Owner a written confirmation of such guarantee running to and for the benefit of the Owner.

6.15 Survival of the Contractor's Guarantee

The Contractor's obligations under its guarantee shall not be diminished or released as a result of any guarantee by Subcontractors or others furnished to the Owner. Notwithstanding any guarantee furnished to the Owner by Subcontractors or others, the Owner may proceed against the Contractor under its guarantee without prejudice to its right to proceed singularly or simultaneously against any such Subcontractor or other party on any guaranty furnished by any of them.

Prior to the expiration date of the Contractor's one-year guarantee period but not before nine months of this period have elapsed, City representatives will make an inspection of the project to determine

whether any defects in materials or workmanship have developed. The Owner, with copy to the Department of Procurement Services, will provide the Contractor with written notice of such defects and will notify the Architect or Engineer for advice in the correction of defects. These actions shall be coordinated with the Director of Procurement Services.

The obligations of the Contractor under this Section shall be in addition to and not in limitation of any obligations imposed by special guarantees required by the Contract Documents or otherwise prescribed by law or in equity.

7.0 Payments

7.1 Schedule of Values

The Contractor shall submit to the Architect or Engineer a Schedule of Values before the first Application for Payment. The Schedule may be modified, expanded or reproduced to include quantities or a more detailed itemization of the basic items listed as may be applicable for the particular project unless a unit price contract as set forth herein is involved. The Schedule of Values shall aggregate the total Contract sum; shall be supported by such data to substantiate its correctness as may be required; and shall include its proper shares of overhead and profit. Only this approved Schedule shall be used as a basis for Contractor's Application for Partial Payment.

7.2 Payments to Contractor

Unless otherwise provided in Contract Documents, the Owner will make monthly progress payments to the Contractor on the basis of percentage of completion of the work performed during the preceding calendar month. Such percentage shall be duly certified and approved by the Architect or Engineer and the Owner. The Owner will process this payment expeditiously.

All Applications for Partial Payment shall be on a form approved by the Owner. Such Applications must contain a cost breakout showing the amount of monies due to all Subcontractors and suppliers performing work during the preceding calendar month. The costs shall further describe whether the Subcontractor or supplier is a minority firm.

Monthly partial payments will not be made on any monthly estimate whenever it shows that the value of work completed during the previous month does not exceed one thousand dollars (\$1,000.00) or when the performance time shall not exceed 45 days, except for final payment.

After the time allowed for completion of the Contract is reached and unless an extension of time is allowed, the Owner may withhold partial payments until final payment is made. All amounts withheld may be included in the final payment.

7.2.1 Retainage. Under the provisions of § 2.2-4333, Code of Virginia, the contractor shall be paid at least ninety-five percent of the earned sum when payment is due, with no more than five percent being retained to ensure faithful performance of the contract. All amounts withheld may be included in the final payment. Any subcontract for a public project that provides for similar progress payments shall be subject to the provisions of this section. The Contractor may request release of

retainage for any portion of the Work completed and accepted provided, however, that adequate progress is being made and the Owner approves such release.

7.2.2 Partial Payments. Partial payment will not be made for any materials or equipment before they are incorporated in the work in a permanent manner as required by the Contract Documents, excepting as specified below. The delivered cost of equipment and non-perishable materials delivered at the site of the Work, or in a certified bonded, adequately insured warehouse and approved by the Owner, and tested for adequacy, may be included in the contractor's Application for Partial Payment. The Contractor shall furnish written evidence satisfactory to the Owner that the Contractor is the unconditional owner of such material or equipment, and that such material and equipment will be utilized on the work covered by the Contract.

All material, equipment and work covered by partial payments made shall become the sole property of the Owner. This provision shall not be construed as relieving the Contractor from the sole responsibility for the safety and protection of all materials, equipment and work upon which payments have been made, or the restoration or replacement of any damaged or stolen work, equipment or property, or as a waiver of the right of the Owner to require the fulfillment of all the terms of the Contract Documents.

7.2.3 Final Payment. The final payment, which will include the retainage, less any amounts due to or claimed by the Owner, shall not become due until the Contractor shall deliver to the Owner through the Architect or Engineer a record set of as-built drawings and specifications and an Affidavit of Payment of Claims duly certified in the presence of a Notary Public. The final payment will not be made until such time as a properly executed Affidavit is received. Failure to submit the Affidavit will result in a delay in payment. Failure to properly pay subcontractors and suppliers will result in the Contractor being adjudged in Default of the Contract Documents.

Upon completion and acceptance of the work required by the Contract Documents and the filing of the required Affidavit, the Architect or Engineer shall file a written Certificate of Completion with the Owner and Contractor as to the entire amount of work performed and compensation earned by the Contractor including extra work and compensation.

Within thirty (30) days from the date of the Certificate of Completion, the Contractor shall deliver to the Architect or Engineer, a complete set of record drawings and specifications on which all changes or as-built conditions are noted. Final payment will not be processed until such time as record drawings and specifications satisfactory to the Architect or Engineer are provided. *THIS PARAGRAPH NOT APPLICABLE TO SEWER, STREETS AND UNDERGROUND UTILITY PROJECTS.*

Within thirty (30) days after delivery of satisfactory as-built drawings and specifications or acceptance by the Owner for sewer, streets and underground utility projects, the Owner shall pay to the Contractor the amount therein stated, less all prior payments and advances. All prior estimates and payments including those relating to extra work shall be subject to correction by this payment, which is throughout this Contract called Final Payment.

7.2.4 Payment by EDI. Prior to the City's execution of the Contract, the Contractor shall execute and furnish the City with an EDI Payment Agreement for Contractors in the form attached to this solicitation in order to facilitate the City's payment, at its option, of any or all amounts due under this Contract through electronic data interchange.

7.3 Release of Claims

The acceptance by the Contractor of the Final Payment shall be a Release of Claims to the Owner for all claims and liability to the Contractor for all performance done or furnished in connection with this project. This Release shall exclude the Contractor's right for claims for interest upon Final Payment if this payment is improperly delayed. No certificate for payment issued by the Architect or Engineer and no payment whatsoever, or partial or entire use or occupancy of the project by the Owner, shall be an acceptance of any equipment or materials not in accordance with the Contract Documents. It shall not relieve the Contractor of responsibility for faulty materials, equipment or workmanship, or operate to release the Contractor or its surety from any obligation under the Contract or the Performance and Payment Bonds.

7.4 Liens

Neither the final payment nor any part of the retained amount shall become due until the Contractor shall deliver to the Owner a notarized Lien Affidavit that, so far as he has knowledge or information, all the labor and materials for which a lien could be filed have been paid. If any Subcontractor or supplier refuses to furnish a release or receipt in full, the contractor may, subject to the approval of the Owner, furnish a bond satisfactory to the Architect or Engineer for delivery to the Owner, to indemnify the Owner against any lien.

7.5 Payments Withheld

The Owner may decline to approve or because of subsequent discovered evidence nullify in whole or part of any Certificate of Payment to such extent as may be necessary to protect the Owner from loss on account of:

- a) Failure to submit a project Schedule;
- b) Defective work not remedied;
- c) Claims filed or reasonable evidence indicating probable filing of claims against the Contractor;
- d) Failure of the Contractor to make payments properly to Subcontractors, or for materials, labor or equipment;
- e) A reasonable doubt that the Contract can be completed for the balance then unpaid;
- f) Damage to another contractor;
- g) Failure to provide the Architect or Engineer as-built drawings and specifications within thirty calendar (30) days from the date of the certificate of Completion;
- h) Unsatisfactory prosecution of the work by the Contractor;
- i) Reasonable indication that the work will not be completed within the Contract time; or
- j) Failure to maintain as-built drawings up to date on a monthly basis.

When the above conditions are corrected or removed to the satisfaction of the Owner payment shall be made for amounts withheld because of them.

7.6 Payments by Contractor

Except in cases of bona fide disputes, or where the Contractor has some other justifiable reason for delay, the Contractor shall pay:

- a) For all transportation and utility services not later than the end of the calendar month following that in which the services are rendered;
- b) For all materials, tool and other expendable equipment to the extent of 95% of the cost thereof no later than the end of the calendar month following that in which such materials, tools and equipment are delivered at the site of the project; and
- c) To each subcontractor, not later than the end of the calendar month in which payment is made to the Contractor, the representative amount allowed the Contractor on account of the work performed by its Subcontractors to the extent of each Subcontractor's interest therein. Full payment may be made for the completion of all work performed by each Subcontractor and accepted by the Owner.

8.0 Remedies

8.1 Owner's Right to Terminate Contract for Cause.

- 8.1.1** If the Contractor should be adjudged as bankrupt, or if it should make a general assignment for the benefit of its creditors, or if a receiver should be appointed on account of its insolvency, the Owner may terminate the Contract. If the Contractor should refuse or should repeatedly fail, except in cases for which extension of time is provided, to supply enough properly skilled workmen or proper materials and equipment, or if it should fail to make prompt payment to Subcontractors or Suppliers of material or labor, or if it should disregard laws, ordinances or the written instructions of the Architect or Engineer or the Owner, or otherwise be in substantial violation of any provision of the Contract, then the Owner may terminate the Contract.
- 8.1.2** Prior to termination of the Contract, the Owner shall give the Contractor and its surety ten (10) calendar days' written notice pursuant to Section 4.11 herein, during which the Contractor and its surety, either or both, may rectify the basis for the notice. If rectified to the satisfaction of the Owner within said ten (10) days, the Owner may rescind its notice of termination. If not, the termination for cause shall become effective at the end of the ten (10) day notice period. In the alternative, the Owner may, in writing, postpone the effective date of the termination for cause, at its sole discretion, if it should receive reassurances from the Contractor and its surety, either or both, that the basis for the termination will be remedied in a time and manner which the Owner finds acceptable. If at any time after such postponement, the Owner determines that Contractor and its surety, either or both, has not rectified or is not likely to rectify the causes of termination in an acceptable manner or within the time allowed, then the Owner may immediately terminate the Contract for cause, without the necessity of further ten (10) days' notice, by notifying the Contractor and his surety in

writing of the termination. In no event shall termination for cause terminate the obligations of the Contractor's surety on its payment and performance bonds.

8.1.3 Upon termination of the Contract, the Owner shall take possession of the site of the Work and of all plant, materials, tools, equipment and other property thereon. The Owner may take any such action necessary to ensure the cleanup of the site, protection of serviceable materials, removal of hazards, and other action necessary to leave a safe and healthful site. If no security has been provided pursuant to Section 4.5 herein, the Owner shall finish the Work by whatever method he may deem expedient. In such case the Contractor shall not be entitled to receive any further payment. If the expense of finishing the Work, including compensation for additional managerial, administrative, Architect's and Engineer's services, shall exceed the unpaid balance of the contract amount, the Contractor shall pay the difference to the Owner, together with any other expenses of terminating the Contract and having it completed by others. The Architect or Engineer shall certify the cost incurred by the Owner. If security has been provided pursuant to Section 4.5 herein, the Owner shall provide Notice to the Surety as set forth in Subsection 8.1.2 herein and proceed as set forth in the Performance Bond and the Terms and Conditions therein.

8.1.4 In the event of a breach by the Contractor leading to termination of the Contract by the Owner under this Section and subsequent litigation, the Contractor and its surety shall be liable for all legal fees in connection with such termination and subsequent litigation. Such liability for legal fees shall be in addition to any and all damages for the breach that may be allowed. If it should be judicially determined that the Owner improperly terminated this Contract for cause, then the termination shall be deemed to be a termination for the convenience of the Owner under Section 8.2 herein.

8.1.5 Termination of the Contract under this Section is without prejudice to any other right or remedy of the Owner.

8.2 Termination by Owner for Convenience.

8.2.1 Owner may terminate this Contract, in whole or in part, at any time without cause upon giving the Contractor written notice of such termination pursuant to Section 4.11 herein. Upon such termination, the Contractor shall immediately cease Work and remove from the site all of its labor forces and such of its materials as Owner elects not to purchase or to assume in the manner hereinafter provided. Upon such termination, the Contractor shall take such steps as Owner may require to assign to the Owner the Contractor's interest in all Subcontracts and purchase orders designated by Owner. After all such steps have been taken to Owner's satisfaction, the Contractor shall receive as full compensation for termination and assignment the following:

8.2.1.1 All amounts then otherwise due under the terms of this Contract,

8.2.1.2 Amounts due for Work performed in accordance with the Contract subsequent to the latest approved Schedule of Values and Certificate for Payment through the date of termination, and

8.2.1.3 Reasonable compensation for the actual cost of demobilization incurred by the Contractor as a direct result of such termination. The Contractor shall not be entitled to any compensation or damages for lost profits or for any other type of contractual compensation or damages other than those provided by the preceding sentence. Upon payment of the foregoing, Owner shall have no further obligations to Contractor of any nature.

8.2.2 In no event shall termination for the convenience of the Owner terminate the obligations of the Contractor's surety on its payment and performance bonds.

8.3 Delivery of Materials

Any contract cancellation notice shall not relieve the Contractor of the obligation to delivery to the City all products of the services for which the Contractor has been or will be compensated. Unless otherwise agreed to in writing, the Contractor shall deliver the materials to the City within 30 days of the Notice of Termination.

8.4 Compensation Due the Contractor

Upon termination, the Contractor shall be entitled to the compensation accrued to the date of termination unless otherwise provided for in the Contract Documents. Payment of the balance of the accrued compensation shall be dependent on the Contractor providing the required materials to the City. Said fees which have been earned shall be billed to the City in accordance with normal billing processes, but in no case later than 60 days after the last work is performed.

8.5 Liquidated Damages.

Liquidated damages in the amount as set herein and under the provisions contained in these General Conditions shall be withheld by the Owner, and any payment to the contractor shall be reduced by the full amount of such liquidated damages.

9.0 Unit Price Contracts

9.1 Bid Form

Where a Unit Priced Bid is specified, each bid shall be submitted upon the prescribed form(s). All blank spaces for bid prices must be filled in with numbers, using ink, with the unit or total sum or both for which the Bid is made.

Unit prices will be carefully examined and compared with current values before recommending the award of the Contract. If in the opinion of the Director of either the department for which work is to be performed or Department of Procurement Services, the unit prices submitted are substantially over or under accepted current values, it will be deemed sufficient reason to recommend rejection of the Bid and further to recommend the award of the Contract to another responsible bidder.

Quantities and measurements supplied or placed in the Work and verified by the Owner and recorded in his daily report shall determine the payment. If actual Work requires more or fewer quantities than indicated in the bid, the additional quantities will be provided at the bid price.

9.2 Quantities Estimated Only

The bidder is advised that the quantities of work to be done and materials to be furnished under the specifications, as shown on the drawings or accompanying unit price bid sheet(s), are approximate and are given only as a basis of calculation for comparing bids and awarding the Contract. The Owner does not assume any responsibility that the quantities given will be obtained in the construction.

9.3 Comparison of Bids

Bids will be compared on the basis of a total computed price arrived at by taking the sum of the estimated quantities of each item, multiplied by the corresponding unit prices and including any lump sum bids on individual items in accordance with the estimate of quantities set forth in the Bid sheet(s). Except as noted in this section, all other requirements of these General Conditions shall prevail, where applicable.

9.4 Term of Unit Price Contracts

9.4.1 Initial Term

The contract page signed by the authorized representatives of the Owner and the Contractor should specify an initial term for each unit price contract. If the contract page signed by the authorized representatives of the Owner and the Contractor does not specify an initial term, the initial term is for 365 calendar days commencing on the date written first on the contract page signed by the authorized representatives of the Owner and the Contractor.

9.4.2 Renewal Terms

The contract page signed by the authorized representatives of the Owner and the Contractor should specify the number and duration of optional renewal terms for each unit price contract. If the contract page signed by the authorized representatives of the Owner and the Contractor does not specify the number and duration of such renewal terms, then there are four optional renewal terms, each for 365 calendar days commencing the day immediately following the day on which the preceding term expires.

9.4.3 Exercise of Renewal Option

The Owner may, but is under no obligation to, exercise any one or all of these optional renewal terms, with the Contractor's agreement for each renewal term. No renewal term will be effective until the Owner and the Contractor have signed a document, in a form prescribed by the Owner, setting forth the dates of the renewal term and the contract amount for that renewal term and until the Contractor has provided a Labor and Material Payment Bond and a Performance Bond in accordance with section 4.5 in an amount equal to the contract amount for the renewal term.

9.4.4 Contract Amount for Renewal Terms

Each renewal term has its own contract amount for purposes of these General Conditions of the Contract. The contract amount for the initial term and for each renewal term commences at the beginning of the first day of such term and expires at the end of the last day of such term. The contract amount for each renewal term will be set by the Owner at the time the option to renew the Contract is exercised and will be documented as set forth in subsection 9.4.3.

10.0 Dispute Resolution

10.1 Rights of Subcontractors and Material Suppliers

Notwithstanding any other provision of these General Conditions, no right of any kind whatsoever shall exist to Subcontractors or material suppliers against the Owner in the event the Owner fails to pay the Contractor for any reason, or the Contractor fails to pay the Subcontractor or material supplier for an reason.

10.2 Disputed Work

If the Contractor is of the opinion that any work required, necessitated or ordered violates the terms and provisions of this Contract, he shall promptly notify the Architect or Engineer, in writing, of his contentions with respect thereto and request a final determination. If the Architect or Engineer determines that the work in question is Contract Work and not a change in work or that the order is proper, the Contractor shall promptly comply and proceed as directed. The Contractor shall within 15 working days after receiving notice of the Architect or Engineer's determination and direction, notify the Owner in writing that the work is being performed or that the direction is being complied with under protest. Failure of the Contractor to so notify shall be deemed as a waiver of claim for extra compensation or damages therefor.

Before final acceptance by the Owner, all matters of dispute must be adjusted to the mutual satisfaction of the parties thereto.

10.3 Governing Law

All issues and questions concerning the construction, enforcement, interpretation and validity of this Contract, or the rights and obligations of the Owner and the Contractor in connection with this Contract, shall be governed by, and construed and interpreted in accordance with, the laws of the Commonwealth of Virginia, without giving effect to any choice of law or conflict of laws rules or provisions, whether of the Commonwealth of Virginia or any other jurisdiction, that would cause the application of the laws of any jurisdiction other than those of the Commonwealth of Virginia.

10.4 Construction and Interpretation

Each of the parties has had the opportunity to have its legal counsel review this Contract on its behalf. If an ambiguity or question of intent arises with respect to any provision of this Contract, this Contract will be construed as if drafted jointly by the parties. Neither the form of this Contract, nor any language herein, shall be construed or interpreted in favor of or against any party hereto as the sole drafter thereof.

10.5 Contractual Claims

10.5.1 Notice and Submission

The Contractor shall give written notice of its intention to file a contractual claim at the time of the occurrence or the beginning of the work upon which the claim is based. In addition to such notice of its intention to file a claim, the Contractor shall submit all contractual claims, whether for money or other relief, in writing to the City's Director of Procurement Services no later than 60 calendar days after final payment. (See City Code § 21-167(a); see also Va. Code § 2.2-4363(A).)

10.5.2 Required Contents of Claim Submission

The Contractor's claim submission shall (i) set forth the primary, secondary and indirect claim issues in a clear, concise manner, (ii) identify the specific contract provisions, schedule impact and cost consequences related to each claim issue, and (iii) include all factual data supporting the claim as well as all supporting cost and delay data. The City's Director of Procurement Services, in the Director's sole discretion, may return claim submissions lacking any of the elements enumerated in the preceding sentence for resubmission or review the claim as though the missing elements are not factually present to support the claim. Such return of a claim submission shall not toll the 60-day period within which the Contractor must submit a claim.

10.5.3 Procedures and Time Limit

The procedures set forth in this section 10.5 ("Contractual Claims") and in City Code § 21-167 shall govern the consideration of contractual claims. The City's Director of Procurement Services shall issue a written decision on a claim no later than 90 calendar days after receipt of such claim in writing from the Contractor. (*See* City Code § 21-167(b); *see also* Va. Code § 2.2-4363(B).)

10.5.4 No Action before Decision

The Contractor may not invoke administrative procedures as provided in City Code § 21-168 or institute legal action as provided in City Code § 21-169 prior to receipt of the decision on the claim, unless the City's Director of Procurement Services fails to render such decision within the 90-day time limit. A failure of the City's Director of Procurement Services to render a final decision within the 90-day time limit shall be deemed a final decision by the Owner denying the claim. (*See* City Code § 21-167(c); *see also* Va. Code § 2.2-4363(D).)

10.5.5 Finality of Decision

The decision of the City's Director of Procurement Services shall be final and conclusive unless the Contractor appeals within 30 calendar days of the date of the final decision on the claim by the Director either as provided in City Code § 21-168 for administrative appeals or, in the alternative, by instituting legal action as provided in City Code § 21-169. (*See* City Code § 21-167(d); *see also* Va. Code § 2.2-4363(E).)

10.5.6 No Cessation of Performance

Nothing in this section 10.5 ("Contractual Claims") shall be construed to authorize or permit the Contractor, while pursuing, by any available procedure, an appeal of a contractual claim or dispute, to cease performance of the Contract while such claim or dispute is pending. (*See* City Code § 21-167(e).)

10.6 Alternative Dispute Resolution

The City's Director of Procurement Services, with the concurrence of the City Attorney, may agree in writing on behalf of the Owner to submit particular disputes arising from this Contract to arbitration and to utilize mediation and other alternative dispute resolution procedures; however, any such procedures entered into by the Owner shall be nonbinding. (*See* City Code § 21-170; *see also* Va. Code § 2.2-4366.)

10.7 Forum and Venue Choice

Any and all disputes, claims and causes of action arising out of or in connection with this Contract, or any performances made hereunder, shall be brought, and any judicial proceeding shall take place, only in a federal or state court located in the city of Richmond, Virginia. The Contractor accepts the personal jurisdiction of any court in which an action is brought pursuant to this article for purposes of that action and waives all jurisdiction- and venue-related defenses to the maintenance of such action.

10.8 No Third-Party Beneficiaries

Notwithstanding any other provision of this Contract, the Owner and the Contractor hereby agree that: (i) no individual or entity shall be considered, deemed or otherwise recognized to be a third-party beneficiary of this Contract; (ii) the provisions of this Contract are not intended to be for the benefit of any individual or entity other than the Owner or the Contractor; (iii) no individual or entity shall obtain any right to make any claim against the Owner or the Contractor under the provisions of this Contract; and (iv) no provision of this Contract shall be construed or interpreted to confer third-party beneficiary status on any individual or entity. For purposes of this section, the phrase "individual or entity" means any individual or entity, including, but not limited to, individuals, contractors, subcontractors, vendors, sub-vendors, assignees, licensors and sub-licensors, regardless of whether such individual or entity is named in this Contract.

PART 3 – SPECIAL CONDITIONS OF THE CONTRACT

1.0 Bidder Not Debarred

By signing its bid in response to this Invitation for Bids, the bidder warrants and represents that neither its organization nor any of its officers, directors, partners or owners is currently barred from bidding on contracts by agency of the federal government, any agency of the Commonwealth of Virginia, any agency of any other state, or any other public body or agency thereof.

2.0 Minority Business Participation

The City of Richmond has a commitment to the development of its minority and emerging small business communities. We therefore encourage the use of minority and emerging small businesses on all City contracts to the fullest extent reasonably possible. On this particular contract, it has been determined that minority and emerging small business participation of **10%** is reasonably possible given the availability of minority and emerging small businesses for the scope of work covered by this contract. The City's Office of Minority Business Development is available at 646-3985 as a resource in identifying local MBEs and ESBs. Your assistance in helping the City achieve its priorities is greatly appreciated.

CITY OF RICHMOND

AFFIDAVIT OF PAYMENTS OF CLAIMS

This Day, _____, _____ personally appeared before me, a Notary Public in and for the City (County) of _____, and being by me first duly sworn, states that all Subcontractors and suppliers of labor, equipment and materials have been paid all sums due them for work performed or materials and equipment furnished in the performance of the contract between the City of Richmond, Virginia, Owner, and _____, Contractor, dated _____ 20____, for the construction of _____; or arrangements have been made by the Contractor satisfactory to such Subcontractors and suppliers with respect to the payments of such sums as may be due them by the Contractor.

By _____

Title _____

Subscribed and sworn to before me this _____ day of _____ 20____.

My Commission expires on the _____ day of _____ 20____.

Notary Public

CITY OF RICHMOND BID BOND

KNOW ALL MEN BY THESE PRESENTS: That _____, the Contractor (“Principal”), whose principal place of business is located at _____, and _____ (“Surety”), whose address for delivery of ‘Notices’ is located at _____, are held and firmly bound unto the City of Richmond, Virginia, the Owner (“Obligee”) in the amount of five percent of the Total Amount Bid by the Principal, for the payment of which sum the Principal and the Surety bind themselves and their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has submitted a bid in response to Invitation for Bids No. _____ for _____;

NOW, THEREFORE, THE CONDITIONS OF THIS OBLIGATION are as follows:

1. This Bid Bond shall guarantee that:
 - a. The Principal will not withdraw its bid during the period of 60 days following the opening of bids.
 - b. If the Obligee accepts the Principal’s bid, the Principal will enter into a formal contract with the Obligee in the form of the Construction Contract included as part of the Invitation for Bids.
 - c. The Principal will submit the required Certificate of Insurance, any other required insurance documents and, if required by the Invitation for Bids, a properly executed Performance Bond and Labor and Material Payment Bond on the forms for such bonds included as part of the Invitation for Bids or such alternative forms of security as may be permitted under the Contract Documents.
 - d. In the event the Principal either (i) withdraws its bid during the period specified in subsection (a) above or (ii) fails, refuses or neglects to enter into the contract specified in subsection (b) above and give the insurance documents and bonds specified in subsection (c) above within 15 days after the Principal has received notice of the Obligee’s acceptance of its bid, the Principal and the Surety shall be jointly and severally liable to the Obligee for the difference between the amount specified in the Principal’s bid and such larger amount for which the Obligee may contract with another party to perform the work covered by said bid, up to the amount of the bid guarantee.
2. The Obligee, the Principal and the Surety agree that the amount for which the Principal and the Surety shall be jointly and severally liable to the Obligee pursuant to section 1(d) above represents the damage to the Obligee on account of the default of the Principal in any particular of section 1 above.
3. The Surety represents to the Obligee and the Principal that it is legally authorized to transact surety business in the Commonwealth of Virginia.

SIGNATURES AND SEALS ON FOLLOWING PAGE

Signed and sealed this _____ day of _____.

Contractor / Principal (SEAL)

Witness By: _____

Title: _____

Surety (SEAL)

By: _____
Attorney-in-Fact

Typed Name: _____

AFFIDAVIT AND ACKNOWLEDGEMENT OF ATTORNEY-IN-FACT

COMMONWEALTH OF _____

CITY of _____

I, the undersigned notary public, do certify that _____, whose name is signed to the foregoing bid bond in the amount of five percent of the Total Amount Bid and which names the City of Richmond, Virginia, as Obligee, personally appeared before me today in the above jurisdiction and made oath that such individual (i) is the attorney-in-fact of _____, a _____ corporation which is the Surety in the foregoing bond, (ii) is duly authorized to execute on the above Surety's behalf the foregoing bond pursuant to the Power of Attorney noted above, and (iii) acknowledged, on behalf of the above Surety, the foregoing bond before me as the above Surety's act and deed. Such individual has further certified that such individual's Power of Attorney has not been revoked.

Given under my hand this _____ day of _____.

Notary Public (SEAL)

My name (printed) is: _____.

My Notary Registration No. is: _____.

My commission expires: _____.



Contract No. [###]

CONTRACT

This contract, made this # day of [month] A.D., 2022, between the City of Richmond, Virginia, by the Department of Procurement Services, hereinafter referred to and designated as "City", and

[contractor name]	phone:
[address]	fax:
[city, state, zip]	email:
[Federal ID#]	contact name:

or his, its or their successors, executors, administrators and assigns, hereinafter referred to and designated as "Contractor";

WITNESSETH: That the said Contractor agrees with the said City, for the consideration herein mentioned, and at his, its or their own proper cost and expense to do all the work and furnish all the materials, equipment and labor necessary to carry out this agreement in the manner and to the full extent as set forth in the notice to bidders, specifications, general and special provisions, proposal, plans and drawings, and all documents referred to, and under security as set forth in the attached contract bond, which are hereby adopted and made part of this agreement as completely as if incorporated herein, and to the satisfaction of the City of Richmond, who shall have at all times full opportunity to inspect the materials to be furnished and the work to be done under this agreement.

It is agreed that the work to be done under this contract for the Construction of City Hall Suite 117 Renovation will consist of but are not limited to selective demolition, asbestos abatement, interior construction, electrical, plumbing, HVAC, and fire protection. Contractor to perform the Work in accordance with the terms of IFB No. 220009914, and all addenda, notice to bidders, specifications, general and special provisions and conditions, bid, plans and drawings and all documents referred to explicitly included and made part of this contract by reference. Notwithstanding section 5.1 of Part 2 - General Conditions of the Contract, section 16.0 ("Project Labor Agreement Requirement") of Part 3 - Special Conditions of the Contract controls in the event of conflict within the Contract. The Maximum Authorized Contract Amount is [written out dollar amount] Dollars (\$[###]) This is a lump sum contract, and the performance time is 180 consecutive calendar days in accordance with the Project Book.

In consideration of the foregoing premises, the City agrees to pay to the Contractor for all items of work performed and materials furnished at the prices and under the conditions set forth in accompanying proposal. In addition, all payments to MBE subcontractors must be verified by indicating date and amount of payment and accompanied by the Affidavit of Claims.

APPROVED:

[contractor name]

CITY OF RICHMOND

NAME (Printed)

(Signature)

Director of Procurement Services

Date

(Title)

(Date)

APPROVED AS TO FORM:

WITNESS: _____

ATTEST: _____

ASST CITY ATTORNEY

CITY OF RICHMOND PERFORMANCE BOND

KNOW ALL MEN BY THESE PRESENTS: That _____, the Contractor (“Principal”) whose principal place of business is located at _____ and _____ (“Surety”) whose address for delivery of ‘Notices’ is located at _____ are held and firmly bound unto the City of Richmond, Virginia, the Owner (“Obligee”), in the amount of _____ Dollars (\$_____) for the payment whereof the Principal and the Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has by written agreement dated _____ entered into Contract No. _____ with Obligee for _____ which contract (the “Contract”) is by reference expressly made a part hereof;

NOW THEREFORE, THE CONDITION OF THIS OBLIGATION is such that, if the Principal shall promptly and faithfully perform said Contract in strict conformity with the plans, specifications and conditions of the Contract, then this obligation shall be null and void; otherwise it shall remain in full force and effect.

Provided, that any alterations which may be made in the terms of the Contract, or in the Work to be done under it, or the giving by the Obligee of any extension of time for the performance of the Contract, or any other alterations, extensions or forbearance on the part of either or both of the Obligee or the Principal to the other shall not in any way release the Principal and the Surety, or either of them, their heirs, executors, administrators, successors or assigns from their liability hereunder, notice to the Surety of any such alterations, extension, or forbearance being hereby waived.

No action shall be brought on this bond unless brought within one year after: (a) completion of the Contract and all Work thereunder, including expiration of all warranties and guarantees, or (b) discovery of the defect or breach of warranty or guarantee if the action be for such.

The Surety represents to the Principal and to the Obligee that it is legally authorized to do business in the Commonwealth of Virginia.

SIGNATURES AND SEALS ON FOLLOWING PAGE

Signed and sealed this ____ day of _____.

Contractor / Principal (SEAL)

Witness
By: _____
Title: _____

Surety (SEAL)

By: _____
Attorney-in-Fact

Typed Name: _____

AFFIDAVIT AND ACKNOWLEDGEMENT OF ATTORNEY-IN-FACT

COMMONWEALTH OF _____
CITY of _____

I, the undersigned notary public, do certify that _____, whose name is signed to the foregoing performance bond in the sum of \$_____, and dated _____ and which names the City of Richmond, Virginia, as Obligee, personally appeared before me today in the above jurisdiction and made oath that such individual (i) is the attorney-in-fact of _____, a _____ corporation which is the Surety in the foregoing bond, (ii) is duly authorized to execute on the above Surety's behalf the foregoing bond pursuant to the Power of Attorney noted above, and (iii) acknowledged, on behalf of the above Surety, the foregoing bond before me as the above Surety's act and deed. Such individual has further certified that such individual's Power of Attorney has not been revoked.

Given under my hand this ____ day of _____.

Notary Public (SEAL)

My name (printed) is: _____.
My Notary Registration No. is: _____.
My commission expires: _____.

APPROVED:

Assistant City Attorney Date

TERMS AND CONDITIONS OF THE PERFORMANCE BOND

1. The Contractor and the Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to the Owner for the prompt and faithful performance of the Construction Contract, which is incorporated herein by reference.
2. If the Contractor promptly and faithfully performs the Construction Contract in strict conformity with the plans, specifications and conditions of the Construction Contract, the Surety and the Contractor shall have no obligations under this Bond.
3. In the event of the Contractor's Default, and subsequent notification to the Surety pursuant to Section 8.1 of the General Conditions of the Construction Contract, the Surety shall, within fourteen (14) days of receipt of such notice, contact the Owner in writing, and arrange a meeting with the Owner to discuss methods of completing the Construction Contract. Paragraph 4, below, sets forth the options to be discussed. If the Surety fails to arrange a meeting or fails to attend such meeting, the Surety shall be deemed to be in default on this Bond and the Owner may, at its sole discretion, take what measures it deems necessary to protect the Owner's interests, without further notice to the Surety, and the Owner shall be entitled to enforce any remedy available to the Owner under the Construction Contract or under Virginia law.
4. Within thirty (30) days after such meeting, during which time the Surety may investigate and otherwise analyze the project, and which period shall neither toll any Construction Contract time periods nor operate as a waiver of any of the Owner's rights, the Surety shall, at its own expense, notify the Owner in writing that it is taking one of the following actions, which shall be acceptable to the Owner, at the Owner's sole discretion:
 - 4.1. By written takeover agreement with the Owner, the Surety itself shall undertake to perform and complete the Construction Contract, which it may do through its licensed agents or through licensed independent contractors. If the Owner, at its sole discretion, consents, the Contractor may serve as the Surety's independent contractor; however, due to conflicts with the City Procurement Code and the Virginia Public Procurement Act, the Owner may not directly contract with an otherwise qualified independent contractor produced by the Surety; or
 - 4.2. The Surety may, if acceptable to the Owner and at the Owner's sole discretion, waive its right to perform and complete the Construction Contract, and with reasonable promptness under the circumstances:
 - 4.2.1. Pay to the Owner all amounts for which it may be liable to the Owner as surety on this Performance Bond, including the damages described in Paragraph 6 below; or
 - 4.2.2. Deny liability, in whole or in part, and provide written notice thereof to the Owner, citing reasons therefor.

5. If, after the meeting described in Paragraphs 3 and 4, above, the Surety does not proceed with reasonable promptness with one of the options provided in Subparagraphs 4.1 or 4.2 (including its subparts) above, the Owner may send additional written notice to the Surety demanding that the Surety perform its obligations under the Bond. If the Surety does not proceed to perform its obligations under the Bond within fifteen (15) days after receipt of said notice, the Surety shall be deemed to be in default on this Bond. Thereafter, the Owner shall be entitled to enforce any remedy available to the Owner under the Bond, the Construction Contract or Virginia law. If the Surety proceeds as provided in Subparagraph 4.2, and the Surety and the Owner are unable to agree as to the amount for which the Surety may be liable to the Owner, or if the Surety has denied liability, in whole or in part, the Owner, without further notice, shall be entitled to enforce any remedy available to the Owner under the Bond, the Construction Contract or Virginia law. In such event, the Owner may immediately proceed to complete the work in any manner authorized by law.

6. After the Owner has terminated the Contractor's right to complete the Construction Contract, and if the Surety elects to act under Subparagraph 4.1 or 4.2.1, above, then the responsibilities of the Surety to the Owner shall not be greater or less than those of the Contractor under the Construction Contract, and the responsibilities of the Owner to the Surety shall not be greater than or less than those of the Owner under the Construction Contract. To the limit of the amount of this Bond, plus the increased cost of any change orders under the Construction Contract, provided the Owner commits the Balance of the Construction Contract Price to the prompt and faithful completion of the Construction Contract, the Surety is obligated without duplication for:
 - 6.1. The responsibilities of the Contractor for correction of defective work and completion of the Construction Contract;
 - 6.2. Additional legal, design professional and delay costs resulting from (i) the Contractor's Default and (ii) the actions or failure to act of the Surety under Paragraph 4; and
 - 6.3. Liquidated damages, or if no liquidated damages are specified in the Construction Contract, actual damages caused by delayed performance or non-performance of the Contractor. The Owner, at its sole discretion, may waive its claim to delay costs and liquidated damages, either or both.

7. The Surety shall not be liable to the Owner for obligations of the Contractor that are unrelated to the Construction Contract, and the Balance of the Construction Contract Price shall not be reduced or set off on account of any such unrelated obligations. No right of action shall accrue on this Bond to any person or entity other than the Owner, its officers, agencies, administrators, successors or assigns.

8. The Surety hereby waives notice of any changes, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations. The

Surety understands and agrees that the penal amount of the bond shall be increased or decreased by any changes to time and amount incorporated into any change orders.

9. The Owner may institute any proceeding, legal or equitable, under this Bond in any court of competent jurisdiction located in the city of Richmond, Virginia, as permitted under the Construction Contract, City Code § 74-67 (Virginia Code § 2.2-4337) and City Code § 74-68 (Virginia Code § 2.2-4340). The Contractor or the Surety may institute any proceeding, legal or equitable, under this Bond in any court of competent jurisdiction located in the city of Richmond, Virginia, as permitted under the Construction Contract or under Virginia law.
10. Notice to the Surety shall be mailed or delivered to the address shown on the Performance Bond in the space for Surety address for delivery of Notices.
11. When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. The intent is that this Bond shall be construed as a statutory bond and not as a common law bond when furnished to comply with statutory requirements.
12. For purposes of these Terms and Conditions, the following words and phrases have the meanings ascribed to them by this paragraph:
 - 12.1. **“Balance of the Construction Contract Price”**: The total amount payable by the Owner to the Contractor under the Construction Contract after all proper adjustments have been made, reduced by all valid and proper payments made to or on behalf of the Contractor under the Construction Contract.
 - 12.2. **“Construction Contract”**: The agreement between the Owner and the Contractor identified on first page of the Performance Bond, including all contract documents and duly executed modifications and change orders thereto.
 - 12.3. **“Contractor’s Default”**: Failure of the Contractor, as defined under Section 8.1 of the General Conditions of the Construction Contract, which has neither been remedied, as permitted under Section 8.1 at the Owner’s sole discretion, nor expressly waived by the Owner, to perform or otherwise to comply with the terms of the Construction Contract.
13. Nothing in these Terms and Conditions shall prevent a surety from becoming involved in the Construction Contract prior to termination, upon notice from the Owner of the Contractor’s failure to promptly and faithfully perform the Construction Contract in strict conformity with the plans, specifications and conditions of the Construction Contract.

CITY OF RICHMOND LABOR AND MATERIAL PAYMENT BOND

KNOW ALL MEN BY THESE PRESENTS: That _____, the Contractor (“Principal”) whose principal place of business is located at _____ and _____ (“Surety”) whose address for delivery of ‘Notices’ is located at _____ are held and firmly bound unto the City of Richmond, Virginia, the Owner (“Obligee”), in the amount of _____ Dollars (\$_____) for the payment whereof the Principal and the Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has by written agreement dated _____ entered into Contract No. _____ with Obligee for _____ which contract (the “Contract”) is by reference expressly made a part hereof;

NOW THEREFORE, THE CONDITION OF THIS OBLIGATION is such that, if the Principal shall promptly make payment to all claimants as hereinafter defined, for labor performed and material furnished in the prosecution of the Work provided for in the Contract, then this obligation shall be void; otherwise it shall remain in full force and effect, subject, however, to the following conditions.

The Principal and the Surety, jointly and severally, hereby agree with Obligee as follows:

1. A claimant is defined as one having a direct contract with the Principal or with a subcontractor of the Principal for labor, material, or both for use in the performance of the Contract. A “subcontractor” of the Principal, for the purposes of this bond only, includes not only those subcontractors having a direct contractual relationship with the Principal, but also any other contractor who undertakes to participate in the Work which the Principal is to perform under the aforesaid Contract, whether there are one or more intervening subcontractors contractually positioned between it and the Principal (for example, a subcontractor). “Labor” and “material” shall include, but not be limited to, public utility services and reasonable rentals of equipment, but only for periods when the equipment rented is actually used at the work site.
2. Subject to the provisions of paragraph 3, any claimant who has performed labor or furnished material in accordance with the Contract documents in the prosecution of the Work provided in the Contract, who has not been paid in full therefor before the expiration of ninety (90) days after the day on which such claimant performed the last of such labor or furnished the last of such materials for which he claims payment, may bring an action on this bond to recover any amount due him for such labor or material, and may prosecute such action to final judgment and have execution on the judgment. The Obligee need not be a party to such action and shall not be liable for the payment of any costs, fees or expenses of any such suit.

3. Any claimant who has a direct contractual relationship with any subcontractor of the Principal from whom the Principal has not required a subcontractor payment bond, but who has no contractual relationship, express or implied, with the Principal, may bring an action on this bond only if he has given written notice to the Principal within one hundred eighty (180) days from the day on which the claimant performed the last of the labor or furnished the last of the materials for which he claims payment, stating with substantial accuracy the amount claimed and the name of the person for whom the Work was performed or to whom the material was furnished. Notice to the Principal shall be served by registered or certified mail, postage prepaid, in an envelope addressed to the Principal at any place where his office is regularly maintained for the transaction of business. Claims for sums withheld as retainages with respect to labor performed or materials furnished shall not be subject to the time limitations stated in this paragraph 3.
4. No suit or action shall be commenced hereunder by any claimant:
 - a. Unless brought within one year after the day on which the person bringing such action last performed labor or last furnished or supplied materials, it being understood, however, that if any limitation embodied in this bond is prohibited by any law controlling the construction hereof, the limitation embodied within this bond shall be deemed to be amended so as to be equal to the minimum period of limitation permitted by such law.
 - b. Other than in a Virginia court of competent jurisdiction, with venue as provided by statute, or in the United States District Court for the district in which the project, or any part thereof is situated.
5. The amount of this bond shall be reduced by and to the extent of any payment or payments made in good faith hereunder. The Surety understands and agrees that the penal amount of the bond shall be increased or decreased by any changes to time and amount incorporated into any change orders.
6. The Surety represents to the Principal and to the Oblige that it is legally authorized to do business in the Commonwealth of Virginia.

SIGNATURES AND SEALS ON FOLLOWING PAGE

Signed and sealed this _____ day of _____.

Contractor / Principal (SEAL)

Witness By: _____
Title: _____

Surety (SEAL)

By: _____
Attorney-in-Fact

Typed Name: _____

AFFIDAVIT AND ACKNOWLEDGEMENT OF ATTORNEY-IN-FACT

COMMONWEALTH OF _____
CITY of _____

I, the undersigned notary public, do certify that _____,
whose name is signed to the foregoing labor and material payment bond in the sum of
\$_____ and dated _____ and which names the City of Rich-
mond, Virginia, as Obligee, personally appeared before me today in the above jurisdiction and made oath
that such individual (i) is the attorney-in-fact of _____, a
_____ corporation which is the Surety in the foregoing bond, (ii) is duly authorized
to execute on the above Surety's behalf the foregoing bond pursuant to the Power of Attorney noted
above, and (iii) acknowledged, on behalf of the above Surety, the foregoing bond before me as the above
Surety's act and deed. Such individual has further certified that such individual's Power of Attorney has
not been revoked.

Given under my hand this _____ day of _____.

Notary Public (SEAL)

My name (printed) is: _____.
My Notary Registration No. is: _____.
My commission expires: _____.

APPROVED:

Assistant City Attorney Date



CITY OF RICHMOND

900 E. Broad Street
Richmond, Virginia 23219

Field Change Order Directive (FCOD)

Vendor Name: _____ FCOD No. _____
Vendor Code: _____ Contract No. _____
Department: _____ Project: _____
Division: _____ Date: _____

This Field Change Order Directive authorizes the Contractor to proceed with the proposed Change Order scope of work (as defined below) for forty-five (45) working days in order to allow for the preparation and completion of final approved and fully documented and executed Change Order documents. By signing this Field Change Order Directive, the parties certify that the work required directly results from unforeseen conditions that impact the project's delivery and schedule. All changes and work is subject to the General Terms & Conditions, Special Provisions, Technical Specifications and Drawings within the Contract Documents for the project.

Project Manager authorized field change orders are limited to \$5,000 per occurrence. Change Orders above this level must be authorized in accordance with policy and procedures established by the Director of Procurement (Purchasing Policy No. 36). In no event shall the sum total of all Change Orders under this contract exceed 20 percent of the original contract value except as provided in the aforementioned policies and procedures.

This Change Order Directive expires on (Date) _____. The Proposed Change Order Amount below is a Not-To-Exceed (NTE) amount. The scope changes to the above contract resulting in this proposed Change Order are summarized as follows:

Fiscal

Original Contract Amount: _____
Previous Adds/Deducts: _____
Current Contract Amount: _____
Proposed C.O. Amount: _____
Revised Contract Amount: _____
C.O. % Increase: _____

Time

Original Start Date: _____
Orig. Contract Period: _____
Orig. Completion Date: _____
Proposed Add: _____
Revised Contract Period: _____
Rev. Contract Comp. Date: _____
% Increase: _____

Outside Approvals

Contractor Firm _____

By: _____
Signature Date

Internal Approvals

Project Manager _____ Date

Project Administrator/Supervisor _____ Date

Agency Director (as needed) _____ Date

Contract Specialist _____ Date

Director of Procurement _____ Date

Proposed Change Order Form (PCO Form)
Instructions to Contractors for Completing the PCO Form

1. The Contractor shall be responsible for filling in accurate and complete information throughout the entire PCO Form.
2. “Change Order Description” shall include a summary of all change order items indicated on the PCO Form for approval. Additional back up documentation shall be provided per specification Section 5.4.3.a “Back-Up Documentation”.
3. “Description” shall include a brief description of the work for the item for which pricing is being provided.
4. “Subcontractor Labor, Materials, Equipment” shall demonstrate the costs associated with each category for the subcontractor.
5. “Subcontractor Overhead & Profit” shall demonstrate the overhead and profit due to the Subcontractor on all the labor performed and material and equipment supplied. This cell is a locked cell with a calculation including a pre-determined percentage of overhead and profit that conforms to the amount listed in the Invitation for Bid.
6. “GC Overhead and Profit (sub)” shall demonstrate the overhead and profit due to the General Contractor on all labor performed by the Subcontractor and material and equipment supplied by the Subcontractor. This cell is a locked cell with a calculation including a pre-determined percentage of overhead and profit that conforms to the amount listed in the Invitation for Bid.
7. “General Contractor Labor, Materials, Equipment” shall demonstrate the costs associated with each category for the General Contractor.
8. “General Contractor Overhead and Profit” shall demonstrate the overhead and profit due to the General Contractor on all the labor performed and material and equipment supplied. This cell is a locked cell with a calculation including a pre-determined percentage of overhead and profit that conforms to the amount listed in the Invitation for Bid.
9. “Total Amount” shall demonstrate the total cost associated with the corresponding Proposed Change Order Item. This cell is a locked cell with a calculation for determining the correct value.
10. “Subtotal” shall demonstrate the sum of all Proposed Change Order Items prior to any Additional Bond Premium. This cell is a locked cell with a calculation for determining the correct value.

11. "Additional Premium Amount" shall demonstrate one percent (1%) of the subtotal amount per specification Section 5.4.3 "Proposed Change Order Form and Format". This cell is a locked cell with a calculation including a pre-determined percentage that conforms to the amount listed in the specification.
12. "Total Proposed Change Order Amount" shall demonstrate the sum of "Subtotal" and "Additional Bond Premium" providing the total cost of the proposed change order. This cell is a locked cell with a calculation for determining the correct value.
13. "Contractor Signature" shall be signed by the authorized representative of the General Contractor. This signature must be present prior to review and consideration by the Owner.

CITY OF RICHMOND900 E. Broad Street
Richmond, Virginia 23219**Proposed Change Order Form**

Proposed Change Order No.	
Contract No.	
Project Title:	
Date:	

Contractor Name:	
Address:	
City, State, Zip:	
Phone:	
Fax:	

**Proposed Change Order
Description:**

Item	Description	Subcontractor					GC	General Contractor				Total Amount
		Labor	Materials	Equipment	Overhead & Profit	Subcontractor Total	Overhead & Profit (sub)	Labor	Materials	Equipment	Overhead & Profit	
1		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
2		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
3		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
4		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
5		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
6		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
7		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
8		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
9		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
10		\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -
Subtotal												\$ -
Additional Bond Premium (1%)												\$ -
Total Proposed Change Order Amount												\$ -

Contractor Signature

Title

Date

PCO Form 081308



CONSTRUCTION CHANGE ORDER SUMMARY

Change Order No.: _____ Contract No.: _____
Project: _____ Vendor Name: _____
Department: _____ Vendor Code: _____
Division: _____
Date: _____

The following changes to the above contract are hereby made based upon the following justification
(Attach itemized cost changes): _____

SUMMARY

Original Contract Amount	\$_____	Original Start Date (NTP)	_____
Previous Additions	\$_____	Original Contract Period	_____ days
		Previous Additional Time	_____ days
Current Contract Amount	\$_____	Current Completion Date	_____
This Change Order	\$_____	This Change Order	_____ days
		☐ Increase ☐ Decrease	
New Contract Amount	\$_____	New Contract Period	_____ days
Cumulative Percent		New Completion Date	_____
☐ Increase ☐ Decrease	_____ %		

OUTSIDE APPROVALS:

CONTRACTOR APPROVAL:

Firm

By: _____
Signature Date

ARCHITECT/ENGINEER APPROVAL:

Firm

By: _____
Signature Date

CONSULTANT APPROVAL:

Firm

By: _____
Signature Date

INTERNAL APPROVALS:

Project Manager Date

Project Administrator/Supervisor Date

Agency Fiscal Representative Date

Director of Department Date

Director of Procurement Services Date

Chief Administrative Officer Date

****Signature of this document by the Requesting Department's Director or designee confirms that funding is available in the project budget for the above price increase and that this Change Order is in compliance with the requirements of Purchasing Policy No. 36, Construction Change Orders.**



CITY OF RICHMOND

900 East Broad Street, Room 1000
Richmond, VA 23219

ACH – DIRECT DEPOSIT FORM **PAYMENT INFORMATION**

This form is used for Automated Clearing House (ACH) payments from the City of Richmond.

PRIVACY ACT STATEMENT

The following information is provided to comply with the Privacy Act of 1974 (P.L. 93-579). The information will be used by the City of Richmond's Finance Department to transmit payment data, by electronic means, to the vendor's financial institution. Failure to provide the requested information may delay or prevent the receipt of payments through the ACH Payment System.

PAYEE / COMPANY INFORMATION

To be completed by payee

Request Type: ☐ New ☐ Change	COR Vendor Number <i>(given by Procurement's APA)</i>
Name of Payee	
SSN No. or Tax Identification No.	Contact Person
Address	Telephone Number ()
City State Zip Code	Email Address

FINANCIAL INSTITUTION INFORMATION

Name	Telephone Number ()
Address <i>(street or P.O. Box, City, State and Zip Code)</i>	
Type of Depositor Account ☐ Checking ☐ Savings	Depositor Account Title
Routing Number □ □ □ □ — □ □ □ □ □	Depositor Account Number

Printed name of Payee or Company Representative

Title

Signature of Payee or Company Representative

Date



EDI Payment Agreement for Contractors

This Agreement is entered into as of this _____ day of _____, 20____ between the City of Richmond, Virginia ("City") and _____ ("COMPANY").

COMPANY hereby authorizes the City to make payments for goods and services covered by any agreement between the City and COMPANY (the "Business Agreements") by utilizing, at the City's option, electronic data interchange ("EDI"). COMPANY acknowledges and agrees that the provisions in the Business Agreements governing the method and timing of payment shall be amended to the extent provided in this Agreement.

An EDI payment from the City to COMPANY shall be considered timely if the payment is completed in accordance with Richmond City Code § 74-9 / Virginia Code § 2.2-4352. If the EDI payment cannot be completed on such date, the City's payment is timely if the funds transfer is completed on the next business day. The EDI payment shall be deemed completed when COMPANY's Depository Institution has accepted the payment order within the meaning of Article 4A of the Uniform Commercial Code (i.e., Virginia Code tit. 8.4A). The City may not use an EDI payment to affect an accord and satisfaction without COMPANY's written consent thereto. The Electronic Payment Information Form is an integral part of this Agreement.

COMPANY understands and acknowledges that the City will deliver the remittance data to COMPANY's designated Depository Institution.

COMPANY shall provide the City written notification of any change in the depository institution, payment instructions, or remittance data instructions at least 15 days in advance of such change. Such notification shall be delivered to the City's Department of Finance via:

- Fax to: (804) 646-5409, or
- U.S. Mail to: City of Richmond Department of Finance, Assistant City Controller, 900 East Broad Street, Room 1004, Richmond, Virginia 23219.

A "Trading Partner Notification of Change" form can be printed from the website of the Department of Finance (www.richmondgov.com/departments/finance), the changed information filled in, and the form faxed or mailed to the fax number or address above, respectively.

In the event of duplicate payment, overpayment, fraudulent payment, or payment made in error, COMPANY agrees to return any such payment to the City, after the City first provides information to COMPANY documenting any duplicate payment, overpayment, fraudulent payment, or payment in error. Any return shall, at COMPANY's option, be made by EDI payment in accordance with the rules of the National Automated Clearing House Association, or by check.

The City shall be responsible for making all payments required pursuant to the Business Agreements and for any loss of payment prior to the point at which COMPANY's Depository Institution shall have accepted the payment order, except that COMPANY shall be responsible for any loss which may arise by reason of any error, mistake, or fraud regarding the information provided by COMPANY herein, or any subsequent changes thereto. The City shall bear any other loss, except to the extent that such loss arises by reason of the negligence or willful misconduct of COMPANY. In the event that payment timely initiated by the City has not been received by COMPANY by the due date thereof because of failure or delay by the funds transfer system or rejected by COMPANY's bank, the City shall pay COMPANY as soon as practicable after such failure or delay is discovered, and the City shall not be in breach of the Business Agreements for failure to make payment.

Each party shall bear the respective fees and other charges assessed by its designated banks and third party service providers.

Each party may terminate this Agreement upon 30 days notice to the other, but this Agreement will remain in effect as to all funds transfers that have been initiated by the City and not canceled prior to termination hereof. In the event of any inconsistency between this Agreement and any other Business Agreement addressing the subject matter of this Agreement, this Agreement shall control.

This Agreement is governed by and interpreted in accordance with the laws of the Commonwealth of Virginia.

COMPANY: _____

Signature: _____

Print Name: _____

Title: _____



Construction Contractor Performance Evaluation

Contract No.: _____

Original Contract Amount: _____

Project Title: _____

Final Contract Amount: _____

Contractor: _____

No. of Change Orders: _____

Agency: _____

Project Duration: _____

A/E Firm: _____

Construction Manager: _____

City Project Manager: _____

Please check the box that best describes your answer to the following questions and provide comments for each in the space below each question.

1. How well has the Contractor's Project Manager performed?

☐ Excellent ☐ Very Good ☐ Good ☐ Fair ☐ Poor

2. How well has the Contractor's Project Superintendent performed?

☐ Excellent ☐ Very Good ☐ Good ☐ Fair ☐ Poor

3. How would you rate the quality of the project management in regards to subcontractors and suppliers?

☐ Excellent ☐ Very Good ☐ Good ☐ Fair ☐ Poor

4. How was the Contractor's ability to perform per the project schedule?

☐ Excellent ☐ Very Good ☐ Good ☐ Fair ☐ Poor

5. How was the quality of the Contractor's subcontractors/suppliers?

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

6. Describe the Contractor's coordination between the City, A/E firm, and Construction Manager (if applicable).

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

7. Describe the quality of the Contractor's finished project.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

8. Describe the quality of the Contractor's submitted change orders and back-up documentation.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

9. Describe the quality of the Contractor's submitted payment invoices.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

10. Describe the quality of the Contractor's project submittals.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

11. Describe the quality of the Contractor's project closeout documents.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

12. Describe the Contractor's ability to adapt and overcome project difficulties.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

13. Describe the quality of the Contractor's safety program implemented on the jobsite.

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

14. How would you rate the overall performance of project?

☐Excellent ☐Very Good ☐Good ☐Fair ☐Poor

15. Other evaluation comments:

Evaluator's Name: _____

Evaluator's Signature: _____

Date of Evaluation: _____

****Upon completion, the Evaluator shall provide a copy of the completed evaluation to the Contractor and the City's Department of Procurement Services.****



City of Richmond

OMBD

Office of Minority Business Development

1500 East Main Street, 5th Floor

Richmond, VA 23219

Office: (804) 646-5947

Fax: (804) 646-0136

<http://www.RichmondGov.com/MBD>

The following required Minority Business Development forms are to be completed and returned with this IFB bid package:

- ☐ Minority Business Participation Commitment Form (MBE/ESB-1), non-prequalified project
- ☐ MBE/ESB Participation Form (MBE-2)

Please remember to completely fill out all the OMBD Forms.

Failure to do so will delay the processing of your bid application.

Office of Minority Business Development

1500 East Main Street, 5th Floor, Richmond, VA 23219 Phone: (804)646-5947 Fax: (804)646-0136



Minority Business Development

1500 East Main Street, 5th Floor

Richmond, VA 23219

Office: (804) 646-5947

Fax: (804) 646-0136

<http://www.richmondgov.com/MBD>

Minority Business Enterprise and Emerging Small Business Participation Commitment Form

PROJECT NAME / NO.		MBE/ESB PROJECT GOAL ESTABLISHED BY THE CITY OF RICHMOND →	
☐ YES I, _____ shall commit to _____% MBE/ESB participation through: <i>Authorized Company Officer</i> _____% FIRST, SECOND and/or THIRD TIER SUBCONTRACTING _____% SUPPLY PURCHASES _____% JOINT VENTURES _____% MENTOR-PROTÉGÉ _____% OTHER CREDIBLY VIABLE METHODS I understand that this commitment obligates my firm to a substantial good faith effort to achieve the proposed MBE/ESB participation. Our proposal may earn up to 100 prequalification points under PROPOSED GOOD FAITH MINORITY PARTICIPATION EFFORTS.			
1. IF YOU ARE PREQUALIFIED: It is not necessary to include another MBE/ESB-1 RFQ form in the bid. The MBE/ESB-1 RFQ form submitted during the RFQ process stands as your firm's record of proposed MBE/ESB participation. 2. IF YOU ARE THE SUCCESSFUL BIDDER: You must submit the MBE/ESB-2 form to report a credible list of legitimate MBE/ESB subcontractors, suppliers, and/or written statements of mentor/protégé or joint venture arrangement within five (5) business days to the Department of Procurement Services. Upon receipt of the MBE/ESB-2 form, the Office of Minority Business Development will approve "Good Faith Efforts" and/or verify MBE/ESB participation before full contract execution.			
☐ NO I, _____ do not wish to earn up to 100 prequalification points for proposed MBE/ESB participation. <i>Authorized Company Officer</i> I acknowledge that my declaration will forfeit the opportunity to earn up to 100 prequalification points, and shall directly impact the level of responsiveness of this application and shall become a matter of record. (<i>Explanation for declaration is encouraged but not required</i>).			
Definitions	MINORITY BUSINESS ENTERPRISE		EMERGING SMALL BUSINESS
	A business at least 51% of which is owned and controlled or 51% minority-owned and operated by minority group members or, in case of a stock corporation, at least 51% of the stock which is owned and controlled by minority group members. Minority group members are citizens of the United States who are African American, Hispanic American, Asian American, or American Indian.		A business that (1) has been certified by the Office of Minority Business Development for a period of seven years or less, (2) has annual gross receipts for each of its three fiscal years preceding application for certification of \$500,000 or less if engaged in the construction business or of \$250,000 or less if engaged in a non-construction business, (3) has fewer than ten employees, (4) is not a subsidiary of another business and does not belong to a group of businesses owned and controlled by the same individuals, (5) has its principal place of business within the City of Richmond Enterprise Zone, (6) possesses a City business license, and (7) pays personal property, real estate, and business taxes to the City of Richmond.
THE UNDERSIGNED HEREBY CERTIFIES THAT S/HE HAS READ THE TERMS OF THIS COMMITMENT AND IS AUTHORIZED TO BIND THE BIDDER TO THE COMMITMENT HEREIN SET FORTH.			
COMPANY NAME		AUTHORIZED OFFICER NAME	

INSTRUCTIONS/ DEFINITIONS

1. **FIRST, SECOND, AND/OR THIRD TIER SUBCONTRACTING** - The scope of work that is initially contracted by the prime contractor to a subcontractor is considered 1st-tier subcontracting. If that subcontractor further subcontracts all or a portion of the work, it becomes 2nd-tier subcontracting. Likewise, if the 2nd-tier subcontractor decides to subcontract a portion of the work, it is 3rd-tier subcontracting. The prime contractor will receive credit for 100% of the dollar value of the 1st, 2nd, 3rd-tier subcontracting for MBE/ESB participation.
2. **SUPPLY PURCHASES** - The prime contractor will receive credit for 100% of the dollar value of supplies purchased from a MBE/ESB.
3. **JOINT VENTURE** - An arranged partnership of the MBE/ESB and one or more other firms to carry out a single, for-profit project, for which the parties combine their property, capital, efforts, skills, and knowledge, and in which the MBE/ESB is responsible for a distinct, clearly defined scope of work and whose share of the capital contributions, control, management, risks and profits of the joint venture are commensurate with its ownership interest. **MBE/ESB credit for legitimate joint ventures will be five (5) points toward the satisfaction of the MBE/ESB goal for a specified project.**
4. **MENTOR/PROTÉGÉ** - An arrangement based on a written development plan, approved by the City, which clearly sets forth the objective of the parties and their respective roles, the duration of the arrangement and the services and resources to be provided by the mentor to the protégé. **MBE/ESB credit for a legitimate mentor/protégé arrangement will be four (4) points towards the satisfaction of the MBE/ESB goal for a specified project.**
5. **OTHER CREDIBLY VIABLE METHODS - BLANKET BONDING** - the prime contractor covers the bonding requirement for the subcontractor. MBE/ESB credit for Blanket Bonding will be two (2) points toward the satisfaction of the MBE/ESB goal for a specified project.

Apprenticeship - An apprentice that is bound to work for another for a designated amount of time in return for instruction in a trade or a business. **MBE/ESB credit for Apprenticeship will be one (1) point toward the satisfaction of the MBE/ESB goal for a specified project.**
6. **MINORITY BUSINESS ENTERPRISE (MBE)** - A business at least 51% of which is owned and controlled or 51% operated by minority group members or, in case of a stock corporation, at least 51% of the stock, which is owned and controlled by minority group members. Minority group members are citizens of the United States who are African American, Hispanic American, Asian American, and American Indian.
7. **EMERGING SMALL BUSINESS (ESB)** - A business that (1) has been certified by the Office of Minority Business Development (OMBD) for a period of seven years or less, (2) has annual gross receipts for each of its three fiscal years preceding application for a certification of \$500,000 or less if engaged in the construction business or of \$250,000 or less if engaged in non-construction business, (3) has fewer than ten employees, (4) is not a subsidiary of another business and does not belong to a group of businesses owned and controlled by the same individuals, (5) has its principal place of business within the City of Richmond Enterprise Zone, (6) possesses a City business license, and (7) pays personal property, real estate, and business taxes to the City of Richmond.



MBE/ESB PARTICIPATION FORM (MBE-2)

Minority Business Development
 1500 East Main Street, 5th Floor
 Richmond, VA 23219
 Office: (804) 646-5947
 Fax: (804) 646-0136
<https://www.rva.gov/mbd>

All firms listed in this directory have registered with the City of Richmond as a minority owned business (MBE) or certified as an Emerging Small Business (ESB). It should be noted, that there are MBE businesses listed in this directory that are not certified. Therefore, any prime contractor/vendor desiring to use a registered MBE firm that is not certified, must be aware, that the registered MBE firm has 180 days to get certified or before the completion of the contract, whichever is less, or the prime contractor/vendor risks not receiving credit toward the minority participation goal for the said project.

COMPANY DATA	COMPANY NAME:		PROJECT NAME/CONTRACT No.		
	CONTACT NAME:	PHONE #	Fax#	Email:	
	BUSINESS LICENSE No.	BUSINESS LICENSING JURISDICTION:		FED ID NO/SSN	
PROPOSED PARTICIPATION CODES	A= First, Second, and/or Third Tier Subcontracting B=Supply Purchases C=Joint Venture D= Mentor-Protégé E = Other Credibly Viable Method				ENTER CODES BELOW
OWNERSHIP CODES	1 = African American 2 = Hispanic American 3 = Asian American 4 = American Indian 5 = Other (Specify Below)				
Minority / Emerging Small Business Commitments	SUBCONTRACTOR NAME	PHONE	SCOPE OF WORK FOR PARTICIPATION IN CONTRACT	DOLLAR AMOUNT	PARTICIPATION
	ADDRESS	FED ID NO./SSN		% OF CONTRACT	OWNERSHIP
	1 ABC Co., Inc.	(XXX) 555-5555	Concrete Work	\$20,000	A
	110 Main Street Anywhere, USA	54-XXXXXX	Other Excavation	10%	2
	2				
	3				
	11				
*IF OWNED TYPE "5 = OTHER" SPECIFY HERE:			TOTAL DOLLAR AMOUNT		SHADING
MBE/ESB PROJECT GOAL ESTABLISHED BY THE CITY OF RICHMOND			TOTAL % OF CONTRACT		
Bidder and the MBE/ESB agree that the MBE/ESB shall not subcontract or assign any work described herein to another entity without prior written approval of the City of Richmond.					
THE UNDERSIGNED HEREBY CERTIFIES THAT S/HE HAS READ THE TERMS OF THIS COMMITMENT AND IS AUTHORIZED TO BIND THE BIDDER TO THE COMMITMENT HEREIN SET FORTH.					
SIGNATURE OF AUTHORIZED OFFICIAL:				DATE:	

INSTRUCTIONS / DEFINITIONS

1. **SUBCONTRACTOR** – a business hired by the prime contractor to perform a specific aspect of the contract. (Provide name of company, address and telephone number.)
2. **SCOPE OF WORK** – A commercially useful function performed by the contractor.
3. **EMERGING SMALL BUSINESS (ESB)** – A business that (1) has been certified by the Office of Minority Business Development (OMBD) for a period of seven years or less, (2) has annual gross receipts for each of its three fiscal years preceding application for certification of \$500,000 or less if engaged in the construction business or of \$250,000 or less if engaged in non-construction business, (3) has fewer than ten employees, (4) is not a subsidiary of another business and does not belong to a group of businesses owned and controlled by the same individuals, (5) has its principal place of business within the City of Richmond Enterprise Zone, (6) possesses a City business license, and (7) pays personal property, real estate, and business taxes to the City of Richmond.
4. **MINORITY BUSINESS ENTERPRISE (MBE)** – A business at least 51% of which is owned and controlled or 51% operated by minority group members or, in case of a stock corporation, at least 51% of the stock, which is owned and controlled by minority group members. Minority group members are citizens of the United States who are African American, Hispanic American, Asian American and American Indian.
5. **FIRST, SECOND, AND/OR THIRD-TIER SUBCONTRACTING** – The scope of work that is initially contracted by the prime contractor to a subcontractor is considered 1st-tier subcontracting. If that subcontractor further subcontracts all or a portion of the work, it becomes 2nd-tier subcontracting. Likewise, if the 2nd-tier subcontractor decides to subcontract a portion of the work, it is 3rd-tier subcontracting. The prime contractor will receive credit for 100% of the dollar value of the 1st, 2nd, 3rd-tier subcontracting for MBE/ESB participation. [In summary, only work performed by MBE/ESBs counts toward the minority participation goal. Refer to City of Richmond Office of Minority Business Development Policy and Procedures Section 6 -1.0 through 6-5.10.](#)
6. **SUPPLY PURCHASES** – The prime contractor will receive credit for 100% of the dollar value of supplies purchased from an MBE/ESB.
7. **MENTOR/PROTÉGÉ** – An arrangement based on a written development plan, approved by the City, which clearly sets forth the objectives of the parties and their respective roles, the duration of the arrangement and the services and resources to be provided by the mentor to the protégé. **MBE/ESB credit for a legitimate mentor/protégé arrangement will be four (4) points toward the satisfaction of the MBE/ESB goal for the specified project.**
8. **JOINT VENTURE** – An arranged partnership of the MBE/ESB and one or more other firms to carry out a single, for-profit project, for which the parties combine their property, capital, efforts, skills and knowledge, and in which the MBE/ESB is responsible for a distinct, clearly defined scope of work and whose share of the capital contributions, control, management, risks, and profits of the joint venture are commensurate with its ownership interest. **MBE/ESB credit for legitimate joint ventures will be five (5) points toward the satisfaction of the MBE/ESB goal for a specified project.**
9. **OTHER CREDIBLY VIABLE METHODS – BLANKET BONDING** – The prime contractor covers the bonding requirement for the subcontractor. **MBE/ESB credit for Blanket Bonding will be two (2) points toward the satisfaction of the MBE/ESB goal for a specified project.**

Apprenticeship – An apprentice that is bound to work for another for a designated amount of time in return for instruction in a trade or business. **MBE/ESB credit for Apprenticeship will be one (1) point toward the satisfaction of the MBE/ESB goal for a specified project.**
10. **DOLLAR AMOUNT & PERCENTAGE OF CONTRACT** – MBE/ESB monetary value and percentage of the subcontract.

**CITY OF RICHMOND
DEPARTMENT OF PUBLIC WORKS
SPECIAL PROVISIONS**

- STREETS AND DRAINAGE-

- A. GENERAL - The basic specifications for this project shall be the 2016 issue of the Virginia Department of Transportation Road and Bridge Specifications <http://virginiadot.org/business/const/spec-default.asp>, except for those Sections that may be in conflict with the City of Richmond Standards or Contract documents, in which case the City Standards or Contract documents shall govern; and wherein the above specifications, the word "State" appears, the word "City" is to be substituted and where the word "Department" appears, it shall mean the Department of Public Works within the City of Richmond. In the event, any city, state or federal funds are utilized, the appropriate city, state or federal guidelines must be adhered to.

These special provisions are intended to add to and more fully describe the requirements not otherwise detailed or set forth on the plans and specifications. In addition, when necessary, the provisions are to amplify or modify the character of workmanship and materials.

Copies of all forms, releases, standards, drawings, specifications, handbooks, orders, and codes referred to in this proposal are available in the offices of the Department of Public Works within the City of Richmond, Virginia.

- B. STANDARDS & REVISIONS TO THE GENERAL CONDITIONS OF THE CONTRACT - In addition to the requirements stated in the Virginia Department of Transportation Road and Bridge Specifications, the following requirements supplement, add to or modify those Specifications and shall govern in all conflicting cases.

Applicable Standards - The work shall be done in accordance with the latest editions of the following, in effect on the date of the invitation to bid:

1. City of Richmond, Departmental Standards Drawing N-14000 (Sheets 1-26).
[G:\4-TRANSPORTATION SERVICES\Develop Trans Sys\Roadway\Standard & Specifications - Design & Construction\DPW Standards CD Images\DPWEngStand Images](#) (Note: Where N-14000 Standards conflict with the City of Richmond Roadway Geometric Design Standards, the City of Richmond Roadway Geometric Design Standards will govern.)
2. City of Richmond Sewer Specifications Issue of 1998.
3. City of Richmond "Right of Way Excavation & Restoration Manual."
<http://www.richmondgov.com/PublicWorks/documents/ExcResManual.pdf>
4. City of Richmond Department of Public Works – A policy for Temporary Steel Plate Bridging for General Utility Street Work.
<http://www.richmondgov.com/PublicWorks/documents/ExcResManual.pdf>
5. City of Richmond "Right-of-Way Roadway Geometric Design Manual"

6. City of Richmond Standard Specifications for Gas, Water System, Construction and Maintenance DPU No. 1-92.
7. Division of Traffic Engineering, Traffic Order #2844, dated April 2011, Traffic Control Specifications for Work in Street and Alley Permits.
http://www.richmondgov.com/PublicWorks/documents/WorkInStreetsAlleys_ReferenceManual_RevisedApril2011.pdf
8. Virginia Department of Transportation Work Area Protection Manual, latest revision.
<http://www.virginiadot.org/business/trafficeng-wzs.asp>
9. Latest rules and regulations governing construction, demolition and excavation as adopted by the Safety Codes Commission of the Commonwealth of Virginia.
<http://www.doli.virginia.gov/index.html>
10. Virginia Erosion and Sediment Control [E&S] Handbook, Virginia Department of Conservation and Recreation and Division of Soil and Water Conservation.
http://www.dcr.virginia.gov/stormwater_management/e_and_s-ftp.shtml
11. Federal Highway Administration, USDOT, Manual on Uniform Traffic Control Devices, latest revision. http://mutcd.fhwa.dot.gov/pdfs/2009/pdf_index.htm
12. OSHA Regulations (Standards – 29 CFR).
http://www.osha.gov/pls/oshaweb/owasrch.search_form?p_doc_type=STANDARDS&p_toc_level=1&p_keyvalue=Construction

C. ADDITIONAL REQUIREMENTS –

By submitting a bid for this project the contractor certifies that they are familiar with the requirements of all the contract documents and that all their subcontractors are familiar with the requirements of the contract documents as they may be additionally affected.

1. OWNER REPRESENTATION - The work will be done under the general supervision of the Director of Public Works with direct supervision by the Capital Projects Manager, who will assign a Project Manager engineer and a Project Inspector at the pre-construction meeting to the project. The presence or absence of the Owner's representative shall in no way relieve the contractor of their responsibility to complete the work in accordance with the Contract Documents or lessen his obligation to correct unsatisfactory work. All required submittals shall be submitted to the Project Manager through the Project Inspector.
2. PRE-CONSTRUCTION MEETING - After award of the contract and prior to commencement of the work, a meeting will be arranged between the contractor, Purchasing Officer, Project Manager, Project Inspector, and Construction Manager to discuss all aspects of project, including Public Works Department policies and regulations, administrative matters, safety and accident prevention, and will also provide the contractor an opportunity to request clarification of any of the contract documents and Owner requirements.
3. COORDINATION- The Contractor is required to attend Quarterly Coordination Meetings. Whenever multiple assignments are given, the Contractor shall perform the work in the order designated by the Construction Manager. The Contractor will

then provide the Construction Manager with a projected schedule for Start and Completion of each assignment as well as updates to the schedule should the provided dates change.

4. SCHEDULING - The Contractor shall submit a written schedule 10 days prior to beginning any given assignment and provide updates as required by the Project Manager or Inspector
5. TESTING- A minimum of 24 hours notice shall be given to the Inspector prior to performing any activity that requires Quality Control Testing. The Contractor is to avoid performing any activities that require Quality Control testing in the late afternoon. Should the Contractor choose to proceed in executing work without inspection, they do so at their own risk and may be required to remove such work without charge at the discretion of the Project Manager.
6. SEQUENCE OF WORK- On projects involving more than one street or block, the work shall be so scheduled as to provide a continuous and uninterrupted flow of all work items in a logical sequence in each street or block. If, in the opinion of the Owner, the flow of all work items is not being followed in accordance with the approved schedule on a block-by-block and street-by-street basis, the Owner may suspend work on all or portions thereof until such time as those items not being prosecuted sequentially are completed or on schedule. Additional time will not be allowed for the remaining work for the time the suspension was in effect.
7. HOLIDAYS - The Contractor shall not permit work, except that which is necessary to maintain traffic, to be done on Sundays and city observed holidays without written consent of the Owner. A moratorium on non-emergency work involving streets, sidewalks, or alleys in the Christmas shopping and festival areas will be in effect from the Wednesday prior to Thanksgiving until the Monday after New Years Day unless written permission to proceed is given by the Owner. A complete list of the affected areas is available from the Office of Right-of-Way Management.
8. EXISTING INFRASTRUCTURE - The location of existing sewer, water or gas lines, conduits, underground cables or other structures across or along the line of the proposed work may vary from the locations shown on the drawings and, where shown, the locations depth and dimensions of such structures are approximately correct and may vary. The Contractor shall be responsible for determining the exact location of the lines or structures and will be liable for repairs in the event of damage.
 - a. It is the Contractor's responsibility to notify and coordinate with "Miss Utility" (811) prior to the beginning of construction.
 - b. The Contractor must notify the proper City agencies and coordinate with all private utilities at least 3 business days prior to the time set for work involving their facilities or equipment. Furthermore, this responsibility shall extend to coordinating all contract work with existing utility owners to avert or minimize any conflicts whether apparent or unforeseen. The owner or their representative may allow a contract time extension, at their sole discretion, based on full documentation received from the contractor.

- 1) Department of Public Utilities: The Contractor shall arrange for adjustment of fire hydrants, gas, water or electrical lines and such work shall be performed by contractors prequalified by the Department of Public Utilities. Documentation of pre-qualification by DPU shall be provided to the Project Inspector at least 5 business days prior to commencement of utility work. If the actual adjustment of fire hydrants, gas, water or electrical lines are made by City personnel, the Contractor's responsibility will consist of uncovering and properly restoring the utility.
 - 2) Traffic Signal Equipment: A representative from the Division of Traffic Engineering must be present before beginning any work involving their equipment and/or excavation in the vicinity of signalized intersections. Traffic loops damaged during excavation will be repaired at the contractor's expense. Installation and relocation of this equipment will be by others unless included as a bid item. The Contractor shall cooperate with others for this work with no additional time allowed.
9. MATERIALS FURNISHED BY THE OWNER - The Owner will furnish the Contractor from the Department of Public Works storage yards at Parker Field, Hopkins Road, East Richmond Road Landfill and Convenience Center and/or the Department of Public Utilities Warehouse at 400 Jefferson Davis Highway, hereafter defined as "city storage yards", all required sewer and utility casting extension rings, durax block, granite spall, granite curb, and adapters unless noted elsewhere to the contrary. The Project Inspector will provide the contractor with the necessary charge number and assist in providing these items to the Contractor as needed. All materials furnished by owner shall be hauled to the project at the Contractor's expense.
10. OFF DUTY UNIFORMED POLICE - During the course of the work it may be necessary to employ off- duty uniformed police for traffic control. They shall be employed only when approved by the Project Manager. The Contractor shall pay police officers \$28.00 (12/2012) per hour and Supervisors \$30.00 (12/2012) per hour if they report for work. Whenever three or more police officers are employed off-duty, at least one must function as a Supervisor. Off-duty police will be paid at time-and-a-half when working on City of Richmond holidays and New Year's Eve. The contractor shall pay the Richmond Police Department \$35 (6/2009) per day for usage per marked police car. The City will reimburse the Contractor at the rate plus \$0.50 per hour for police officers (regardless of rank) and use of marked police car, minimum payment of four hours for officers reporting for duty. Reimbursement will not be made when officers report for work, the Contractor does not work and does not request cancellation of officers. When requesting Police Officers, the contractor shall contact the Police Department (Sgt. Gary Borges, 646-0445) a minimum of 5 business days prior to the anticipated reporting time for the required officers. A copy of the request for use of uniformed police officers shall be sent to the City's Project Manager.
11. PROTECTION OF TREES - All trees on any street or public property are protected by the City Ordinance. Any time work is done within proximity to city trees they shall be protected by a tree protection fence at least four (4) feet high. The fence should extend at least 10 feet from the trunk of the tree; or a distance in feet from the tree equal to the tree diameter (DBH) in inches; whichever is greater. (For example a 24" diameter tree would have a 24 foot radius protection zone.) Any deviation from this standard must first be approved, in writing, by a City Arborist. All building material,

dirt, or other debris shall be kept outside the barrier. Failure to comply with tree protection standards may result in the contractor being monetarily responsible for the value of the tree(s) as appraised by International Society of Arboriculture Standards. In addition, the Contractor shall notify both Urban Forestry and the Project Inspector a minimum of 2 business days before excavating around trees. The Contractor shall use extra care with his equipment when working on a street where there are trees. Any tree limbs or roots that are cut in the course of work will not be coated with any type of paint. Where equipment is working close to trees, the Contractor shall be required to protect the trees by acceptable methods at no additional cost to the Owner. Should there be a need for extensive pruning (1 Block or greater) of low hanging branches for paving or other operations; pruning will be performed by the City of Richmond unless directed otherwise. A copy of the request for this work shall be sent to the Project Manager 10 days, in advance.

12. USE OF CITY WATER - Any connections to a city water source (i.e. hydrant, spigot) shall be made in accordance with Plan M-646. Connections made to fire hydrants without yellow caps shall be by special permission from the Department of Public Utilities, and shall be governed by all rules and requirements of that Department.

13. EROSION AND SEDIMENT CONTROL:

- a. The Contractor will be required to obtain a Land Disturbing Activity Permit from the Department of Community Development, when applicable. Policies, procedures, guidelines, etc. are contained in the Virginia Erosion and Sediment Control Handbook, which is available for a fee from the Virginia Soil and Water Conservation Commission. The contractor must have a person certified as the "Responsible Land Disturber" assigned to the project. Certifications shall be submitted to the Project Inspector prior to the commencement of work.
- b. On projects requiring a Stormwater Pollution Prevention Plan (SWPPP), the contractor shall conduct operations in accordance with the SWPPP. The City will obtain the VSMP permit then transfer the permit to the contractor. The contractor will be required to follow all aspects of the plan to include recording of land disturbance activities, E & S inspections, etc. as set forth in the permit.
- c. The construction plans have been pre-approved as conforming to the Erosion and Sediment Control Ordinance and the guaranty of the owner required by the ordinance will be included in the Contractor's Performance Bond. The Land Disturbing Activity Permit, when applicable, will be issued upon payment of the necessary fees by the Contractor.
- d. The Contractor shall not allow any area to remain unprotected from erosion and sedimentation control. Methods most suitable to the site and soil conditions shall be employed to intercept sediment carrying runoff from the site and remove the maximum practical amount of sediment from the storm runoff. These methods shall consist of diversion dikes, interceptor dikes, diversion channels, sediment traps, straw or hay bale barriers, or other methods suitable to the topography, soil conditions and nature of the disturbance as outlined and conforming to the latest edition of Erosion & Sediment Control Handbook.

- e. Only the smallest practical area shall be exposed or disturbed at any one time for the shortest practical period of time. Permanent vegetation shall be established at the earliest practical date. No disturbed area to remain denuded for more than 7 calendar days.
 - f. On occasions, unforeseen erosion or sedimentation situations or circumstances may arise and should some method of erosion and sediment control be ordered by the Project Manager or Inspector, the Contractor must commence making these corrections within two (2) calendar days after the request is made.
 - g. The disposal of excess excavation off site, the disposal of waste materials removed from erosion and sediment control facilities, and the disposal of erosion and sediment control facilities shall be in accordance with the Virginia Erosion and Sediment Control Handbook.
 - h. All temporary Erosion & Sediment Control Measures shall be removed by Contractor at his expense within 30 days of achieving final stabilization as approved by the Project Manager or Inspector.
 - i. Payment for any erosion and sediment control devices will be made at the contract price for items used. When not a pay item, erosion and sediment control devices will be paid using force account procedures.
14. PERMANENT DRIVEWAYS - The Contractor is advised that all existing permanent driveways on the project are to be removed and replaced with new concrete driveway crossing when so designated on the contract drawings or when new curb and gutter is to be installed as part of this contract.
- a. A permanent driveway shall be defined both as a curb cut on a street which has existing curb or curb and gutter or as an existing culvert located in a ditch overtop of which has been built up with an improved surface such as stone, concrete, or asphalt.
 - b. Driveways not designated as permanent driveways on the plan, nor meeting the criteria specified above, shall be considered temporary driveways and will not be constructed. If the property owner desires to upgrade their driveway to permanent status, the property owner shall be required to obtain a permit from the City for a permanent driveway which shall be installed during construction of the project. The property owner may request the Contractor install the new permanent driveway. The property owner shall pay the Contractor for work for the new permanent driveway. This work shall be considered a separate contract between the property owner and the Contractor and DPW's involvement will consist of inspection duties only.
15. SITE MAINTENANCE - Throughout all phases of construction, the Contractor shall keep the work site clean and free from rubbish, debris, and dust. Dust nuisance shall be abated by cleaning, sweeping, sprinkling with water or calcium chloride at no additional cost to the City. Care shall be taken to prevent spillage on haul routes. Any such spillage shall be removed immediately and the route cleaned. If the use of water results in mud tracking on adjacent streets, the project will be shut down until streets are cleaned by the Contractor at his expense and no extra time will be allowed

for the time thus lost. Materials and equipment shall be removed from the site as soon as they are no longer needed. If the Contractor does not respond to the requests to clean the streets, they shall be cleaned by the City and the cost shall be deducted from the payments due the Contractor.

16. BRICK AND CONCRETE PAVERS – Paver materials that are to be used within the right of way shall be in accordance with the following section.

a. Brick Pavers:

- 1) Brick paver reference is from Technical notes on Brick Constuction 9A (“Specifications for and classification of Brick”) as publish by the Brick Industry Association (www.gobrick.com).
- 2) Brick pavers shall be rated ‘not efforesed’ in accordance with ASTM C67.
- 3) Bricks intended for PEDSTRIAN ONLY traffic areas, generally sidewalks and paths, shall conform to ASTM C-902 (Standard Specification for Pedestrian and Light Traffic Paving Brick) and be rated for severe weathering (SX) and extensive abrasion resistance (Type I). All clay brick paver units used for pedestrian travel ways shall be square edged “Paver” brick with dimensions of full 4”x8”.
- 4) Bricks intended for use in vehicular traffic areas shall conform to ASTM C-1272 (“Standard Specification for Heavy vehicular Paving Brick”) and conform to the requirements of Type F. All clay brick paver units used for vehicular travel ways shall be bevel edged “Paver” brick with dimensions of full 4”x8”. Thickness for vehicular paver brick shall be at least 2-5/8” (67mm).
- 5) Dimensional (distortion) tolerances shall conform to Classification PX.
- 6) Color for brick pavers shall be similar to “Virginia Red #222” by Interlock Paving Systems or as adopted by the Planning Commission. It is understood that colors may be copyrighted, patented or trademarked, and the color reference is intended as a guide.
- 7) Acceptable products for PEDESTRIAN paver brick are:
 1. Paver: Classic-Square Edge “traditional series”
Color : “Pathway Red”
Manufacturer: Pine Hall Brick
2701 Shorefair Drive
Winston-Salem, NC 27105
Website: www.pinehallbrick.com
 2. Paver: York Red Extruded series
Color : “York Red”
Manufacturer:
Glen-Gery Corporation
P O Box 7001

1166 Spring Street
Wyomissing, PA 19610
Website: www.glengerybrick.com

3. Approved equal.

b. Concrete Pavers:

- 1) Paving Units shall be conforming to ASTM C-936 (Standard Specifications for Solid Interlocking Concrete Paving Units). Concrete paver unit for use in areas subject to constant vehicular use (streets, alleys and similar travelways) shall have dimensions of 4"x8"x3-1/8" (80 mm).
- 2) Pavers shall be similar to "Holland stone" with beveled edge.
- 3) Color for Paving Units shall be similar to "Virginia Red #222" by Interlock Paving Systems or as adopted by the Planning Commission. It is understood that colors may be copyrighted, patented or trademarked, and the color reference is intended as a guide.
- 4) Acceptable concrete pavers include:
 1. Paver: Holland Stone 4x8
Color: "Virginia Red #222" (formerly "Autumn Red")
Manufacturer:
Interlock Paving System Inc.
802 W. Pembroke Ave.
Hampton, VA 23669
Website: www.interlockonline.com
 2. Approved equal.

c. Certification:

- 1) The contractor shall submit a color sample of the intended paver(s) to be used not less than 14 calendar days prior to commencement of laying pavers.
- 2) The Contractor shall submit independent test results or material certifications showing compliance with specifications to include, but not limited to, appropriate ASTM standard, weathering, and abrasion resistance.
- 3) Paver materials acceptable to the City will be marked by the City project inspector in such a way that the inspector can recognize the accepted materials.

17. CONSTRUCTION STAGING AREA - The contractor shall be responsible for selecting the staging and laydown areas and any needed storage yard in the vicinity of the project. Areas used by the contractor within the public right-of-way require the prior

approval of the Project Manager. All costs associated with the use, maintenance, and final restoration of areas needed shall be at the sole expense of the contractor. In addition, the Contractor shall do the following:

- d. Arrange for and maintain the staging area at their expense.
 - e. Locate trailers and equipment as far as possible from nearby occupied dwellings.
 - f. Keep the site neat and policed so that debris will not be transported to neighboring properties by wind or other means.
 - g. Start construction equipment only when necessary in the mornings.
 - h. Do not leave construction equipment running needlessly.
 - i. Caution workmen to speak quietly and to use language that would not offend citizens in the area.
 - j. Locate portable sanitary facilities on a secluded or concealed portion of the site.
 - k. Where appropriate, provide lighting and/or fencing to make access to the site during non-working hours more difficult.
 - l. When storing construction materials insure that they do not have a tendency to become unstable.
 - m. Where dust may become a nuisance, provide means for dust control.
 - n. The Contractor shall maintain access to all properties and city services.
 - o. Grass and weeds within the project limits shall be kept trimmed at all times by the contractor at no additional cost to the city.
18. SITE SAFETY- Safety is the contractor's responsibility; all barricades, safety fencing, temporary signage, etc. are incidental to the contract. The Contractor shall also inspect the project area for unsafe conditions prior to mobilization. Should unsafe conditions be found the Contractor shall immediately contact the responsible party and will not mobilize until sufficient repairs are made to make the area safe. The contractor may request a contract time adjustment if in their opinion, repairs created a significant delay to their critical path activities. Provided prior notification was timely, the Project Manager, at their sole discretion, may grant such time extension based on written documentation duly furnished by the contractor. No delay claim will be receivable if, in the opinion of the Project Manager, the responsible party has accomplished due diligence in adjusting its facilities within 10 (ten) working days of the above notification.
19. SUBGRADE STABILIZATION - If #2 or #3 stone is listed as a bid item in this contract, even though not shown, contractor shall stabilize areas where poor bearing conditions exist. All undercuts require the prior approval of the Project Manager or Inspector.

20. SALVAGE OF SIDEWALK BRICK, GRANITE SPALL, COBBLESTONE, GRANITE CURB, DURAX BLOCK, AND ANY OTHER BUILDING MATERIALS – All materials for sidewalk brick, granite spall, cobblestones, granite curb, durax block, or other building materials are the property of the City. Specific materials specified to be salvaged are to be removed to designated City storage.

All salvaged materials shall be handled with due care to avoid damage. Granite curb is to be carefully stacked with wooden strips between layers.

Removal of salvaged materials to designated storage areas and proper storage at those areas shall be paid for at the unit price indicated for salvaging that item. Where the item is not specifically indicated a price shall be agreed upon before the item is moved.

21. DISPOSAL OF EXCESS MATERIALS - All inert materials not designated for salvage (concrete, brick, uncontaminated soils, cobblestone, etc.) from the project shall be disposed of at an approved landfill and the cost of loading and hauling to the landfill shall be incidental to the unit price of other items.
22. MOBILIZATION - Mobilization will not be paid unless noted as a separate bid item.
23. TRAFFIC CONTROL – Traffic Control will not be paid and is considered incidental to unit prices where work is to be performed in residential/local streets. Where work is to be performed in other than residential streets, the Project Manager will either provide a maintenance of traffic plan as part of the project paying for traffic control on a unit cost basis or require the contractor to provide a lump sum quote to provide traffic control on the project based on the latest Work Area Protection Manual.
24. SURVEYING – Surveying shall be incidental to other unit prices and shall not be paid separately.

- D. COPIES FURNISHED TO CONTRACTOR - After the contract has been executed, the Contractor will be furnished one (1) set of the Contract Drawings and Specifications in portable document format (PDF) and only one (1) full size set of drawings/sketches. It shall be the Contractor's responsibility to furnish each of their subcontractors, manufacturers and material suppliers such copies of the Contract Documents, as may be required for their respective work.
- E. LUMP SUM CONTRACT ITEMS – Measurement and Payment of Lump Sum items, such as Traffic Control and Construction Surveying, when pay items, will be made in installments based on work completed from the schedule of values. The schedule of values shall not be consider lump sum contract items (Mobilization, Traffic Control, Surveying, etc.) for calculation of work progression. Mobilization, when a pay item, will be paid on the first two payments in accordance with the specifications.
- F. VIRGINIA DEPARTMENT OF TRANSPORTATION ROAD & BRIDGE SPECIFICATIONS - MODIFICATIONS: ADDITIONAL PROJECT REQUIREMENTS

In the event of a conflict between the referenced VDOT Road and Bridge Specifications and the modifications thereto listed below, the below listed modifications shall govern.

1. SECTION 107.11 IS AMENDED TO INCLUDE THE FOLLOWING:

- a. Blasting - If rock excavation is encountered and blasting is necessary, the City will accept, subject to the conditions of the City Code and approval of the Director of Public Works and the City Attorney, coverage in the form of a Rider to Certificate of Insurance in the amount equal to the Personal Liability and Property Damage Insurance of this contract. In addition, before any blasting operations may be performed, the Contractor must first obtain a blasting permit from Fire and Emergency Services of the City of Richmond.
- b. No blasting shall be allowed on any job until the Project Inspector has seen the Contractor's approved blasting permit.
- c. No blasting is to occur unless the Project Inspector is on-site to monitor the blasting activities.
- d. It is the Contractors responsibility to provide for seismic monitoring.

2. SECTION 302 - DRAINAGE STRUCTURES IS AMENDED AS FOLLOWS:

- a. Pipe shall be paid for at the contract unit price per linear foot, complete in place. This price shall include all fittings, connections, anti-seepage collars, anchor and blocks.. Measurement of new pipe shall be from inner face of structure to inner face of structure. Measurement of pipe extensions shall be from center of structure to connection to existing pipe. Excavation for pipe shall be paid as a separate item designated as Trench Excavation.
- b. Trench Excavation shall consist of the removal of all materials encountered as required for installing new pipe, complete in place, and restoration of existing surfaces per the City of Richmond "Right of Way Excavation & Restoration Manual.
- c. Manholes shall be measured in linear feet, vertical measure, from top of the rim to the bottom interior. Manholes shall be constructed as tee sections. Manholes shall be paid for at the contract unit price per vertical linear, complete in place and restoration of existing surfaces, as per the City of Richmond "Right of Way Excavation & Restoration Manual." Manholes shall also include frame and cover unless noted as being supplied by City.
- d. Trap Basins, Sub Basins, Drop Inlets, Endwalls, and other structures shall be paid for at the contract unit price, complete in place. and restoration of existing surfaces as per the City of Richmond "Right of Way Excavation & Restoration Manual."
- e. Excavation and trenching protection for all drainage/utility structures shall be included in the contract unit price. No separate payment will be made. The contractor shall provide documentation (such as tabulated data or engineering calculations) that the trench protection is adequate for the field conditions 2 business days prior to commencement of work.
- f. Bedding material shall conform to requirements of section 302. The contractor shall provide . Class "C" bedding material per sheet 23 of the City of Richmond,

Departmental Standards Drawing N-14000 (Sheets 1-26). Bedding material shall be included in the unit price for utility structure or pipe.

- g. Casting frames and covers, not designated as being supplied by the City, shall conform to City standards, be provided new by the contractor, and be included in the structure cost. No separate payment will be made.

3. SECTION 303 – EARTHWORK IS AMENDED AS FOLLOWS:

- a. Excavation - Unclassified excavation, shall consist of the removal of all materials encountered, not specifically provided for or included as a part of other bid items or the approved drawings. Excavation shall include undercut excavation regardless of depth. Side slopes shall be trimmed to neat lines and even surfaces with tops hand raked to a rounded edge and 2:1 slopes where practical or as shown on the drawings.
- b. Trench Excavation shall consist of the removal of all materials encountered as required for installing new and/or existing service pipe, complete in place., and restoration of existing surfaces per the City of Richmond “Right of Way Excavation & Restoration Manual.”.
- c. Where embankment or backfill is required, it shall be made with suitable material obtained from the project excavation if available or from suitable material as directed by the Project Manager. Should the Contractor dispose of suitable excavated material to the extent that sufficient material is unavailable for fill purposes, extra payment will not be made for furnishing the required borrow. All fill areas shall be compacted to the appropriate density per the latest Virginia Department of Transportation specifications or as specified by the Project Manager.
- d. All excess excavation shall be disposed of by the contractor at the East Richmond Convenience Center and be paid as a separate item.
- e. Rock Excavation shall be defined as excavation of material such as limestone, sandstone, granite, shale or similar material in solid beds or masses in its original or stratified position which can be removed only by blasting operations, drilling, wedging, or use of pneumatic tools, and boulders with a volume of greater than 1.0 cubic yard.

4. SECTION 315 – ASPHALT CONCRETE PAVEMENT IS AMENDED AS FOLLOWS:

- a. The Contractor shall lay bituminous concrete on one-half of the roadway at a time. When laying the first half of the roadway, traffic will be maintained on the opposite side of the street. Traffic will not be allowed on the newly laid surface until it has cooled and been rolled sufficiently in the opinion of the Project Manager or Inspector.
- b. Certified Flagmen or off-duty Police Officers shall be provided, as directed by the Project Manager. The cost of the Certified Flagmen shall be paid at the unit price bid unless otherwise provided for under maintenance of traffic bid item. If Flagmen are requested by the Project Manager, they must be certified by VDOT, the

American Traffic Institute, or other approved entity and if evidence of certification is not provided, the work will be suspended until proper documentation is provided to the Inspector. Additional time for stop work order due to uncertified flagman will not be allowed.

- c. Before the laying of the asphalt base, the Contractor shall verify that all castings are to the proper grade. Manhole and valve box frames shall meet or be less than than one quarter of an inch ($\frac{1}{4}$ ") from the proposed grade when measured with a 16-ft straight edge laid on the finished pavement. The grade shall be checked both parallel and perpendicular to the center of the street.
 - d. Prior to installation of the final surface, the Contractor shall pour cutback asphalt around the top of the castings as necessary to seal the joint between the pavement and casting. All the cost of cleaning, pointing and sealing with cutback asphalt shall be included in the price bid per ton for bituminous concrete asphalt.
 - e. Asphalt paint applied to the curb lines shall not show more than one (1") inch above the finished pavement grade. Any curbs marred by excess asphalt shall be cleaned by the Contractor at his expense. Curbs marred or broken by the Contractor's equipment shall be repaired or replaced at the Contractor's expense.
 - f. When the final asphalt course is to be placed on roadways which have been cold planed (milled), the contractor shall use a bituminous paver with electronically controlled screeds to insure a smooth riding surface. The cost of the electronic screed equipment is to be included in the bid price per ton for bituminous concrete.
 - g. The Contractor shall strip old asphalt paving where directed by the Project Manager, either to investigate the base or make the desired tie-in at intersecting streets. In cutting tie-ins only one-half of the street can be cut out at a time and padding placed on that half before cutting the other half of each side of the intersection. Payment for stripping and padding will be made at the bid price per square yard for stripping.
5. SECTION 502 – INCIDENTAL CONCRETE ITEMS IS AMENDED TO INCLUDE THE FOLLOWING:
- a. Realigning/Setting Granite Curb
 - 1) Realigning - Granite curb to be realigned, shall be carefully removed from its present bed. The curb trench shall be graded and compacted so as to provide the realigned curb minimum clearances of 4" under the curb and 6" in front of and behind the curb. The curb shall then be placed back in the trench and shimmed to correct line and grade with brick. After the curb has been realigned, the curb trench shall be backfilled with concrete to a minimum depth of 12". Special care shall be taken to insure that the concrete completely fills the space under the granite curb.
 - 2) Setting - This item includes the replacement of existing granite curb in bad condition, filling in where curb is missing or setting a new granite curb line. Where additional curb is specified, it will be furnished by the City and hauled to the site by the Contractor. The curb trench shall be excavated, graded, and

compacted so as to provide the new/replacement curb minimum clearances of 4" under the curb and 6" in front of and behind the curb. The curb shall be placed in the trench and shimmed to correct line and grade with brick. After the curb has been set, the curb trench shall be backfilled with concrete to a minimum depth of 12". Special care shall be taken to insure that the concrete completely fills the space under the granite curb.

- 3) Joints - Joints between the sections of granite curb above the gutter line wider than one-quarter (1/4) of an inch will not be accepted, and any rough ends of the sections will have to be chiseled or saw cut to reduce the joint width to less than one-quarter (1/4) inch. The joints shall be filled with 1:3 cement-sand mortar. Saw cutting at joints to reduce the joint width shall be considered incidental to installation of granite curb.
- 4) Payment - Realigning/Setting Granite Curb shall be paid at the contract price bid per linear foot for realigning/setting granite curb and shall include all costs of removing the curb from its original position, cleaning, resetting, rejoining, grading and compacting the sub grade, mortar joints, concrete backfill, and furnishing all materials, equipment, tools, labor and incidental work. Saw cutting shall be considered incidental to realigning/resetting granite curb. The cost of loading, hauling, setting, and jointing shall be included in the price bid per linear foot of granite curb set.

b. Curb, Curb & Gutter, Valley Gutter

- 1) For typical Monolithic Curb, Curb and Gutter and Valley Gutter sections see City Standards N-14000 and the City of Richmond "Right-of-Way Roadway Geometric Design Manual. Otherwise use plan design specified.
- 2) Three (3") inch holes shall be left in the curb opposite each downspout to each house. The cost of forming these holes shall be included in the price bid per linear foot for concrete curb and gutter. Valley gutter shall not require holes.
- 3) Backfill adjacent to and behind Curb, Curb and Gutter and Valley Gutter immediately after stripping forms.
- 4) Payment - Curb, Curb & Gutter, and Valley Gutter shall be paid at the contract unit price bid per lineal foot of curb and gutter, or valley gutter and shall include radial or tangential curb, gutter and/or curb and gutter, and shall include all costs in connection therewith except for any required undercut or fill to achieve finished grade. Concrete curb or curb and gutter will not be considered complete for payment until the rear of the curb is properly backfilled and compacted to the satisfaction of the Project Manager. Backfilling and compaction of the rear of the curb and gutter shall be done immediately after forms are stripped. Saw cutting to be paid separately if noted in the item description.

c. Wheel Chair Ramps – This item shall include all work involved in the construction of ADA approved wheel chair ramps.

- 1) All existing curb and sidewalk shall be removed without damage to curb and sidewalk designated to remain and shall be properly disposed of by the Contractor. The Contractor shall then perform all required excavation or furnish and place an approved fill material so as to obtain a proper subgrade. The subgrade shall then be compacted to a theoretical density of 95% at optimum moisture for a depth of 6 inches. A 6 inch thick wheel chair ramp shall then be constructed per VDOT Standard CG-12 (latest revision).
- 2) Detectable Warning surface - materials shall conform to the requirements of Section 502 of the VDOT Road and Bridge Specification, except as follows:

Detectable Warning Surface shall be 'tiles' made of homogeneous glass and carbon, reinforced composite material or vitrified polymer composite (VPC) material with ultraviolet stabilize coating to minimize color wear, and a 'non-slip' surface, incorporating "truncated domes" made of the same material. The nominal thickness of the detectable warning tile shall be 1/8" exclusive of the height of the truncated domes. The tiles shall be in compliance with applicable Americans with Disabilities Act Accessibility Guidelines (ADAAG) and American with Disabilities Act (ADA) regulations with regard to detectable warning surfaces.

a. **Types:** Detectable warning surface shall be classified as follows:

- i. **Cast in place** tile shall be installed in the concrete in accordance with the manufacturer's specifications. The cast in place tile shall be used for new construction.
- ii. **Surface Mounted** tile shall be secured to the concrete with a structural adhesive system and fasteners that anchor to the concrete. The surface mounted tile shall be installed to existing or proposed smooth finished concrete ramps.

b. **Detail Requirements:** Requirements for the detectable warning surface tiles shall meet the following:

- i. **Compressive strength:** 18,000 PSI when tested by ASTM D695.
- ii. **Tensile Strength:** 10,000 PSI when tested by ASTM D638.
- iii. **Flexural Strength:** 24,000 PSI when tested by ASTM C293 or ASTM D790.
- iv. **Water Absorption:** 0.35% maximum when tested by ASTM D570.
- v. **Slip resistance:** 0.9 minimum or the combined wet/dry static coefficient of friction when tested by ASTM C1028.
- vi. **Chemical and Stain resistance:** No deterioration, discoloration or staining when tested by ASTM D543 or ASTM 1308.
- vii. **Fire Resistance:** 25 minimum when tested to ASTM E84.
- viii. **Accelerated Weathering:** No deterioration, fading, or chalking of surface after 2,000 hours minimum exposure when tested by ASTM G26.
- ix. **Salt and Spray performance:** No deterioration or other defects after 100 hours minimum exposure when tested by ASTM B117

- x. **Accelerated Aging and Freeze Thaw:** No disintegration, cracking, delamination, warpage, blistering, color change or other defects when tested by ASTM D037 or ASTM C1026.
 - c. **Pattern/Dimension:** Pattern and dimension of the detectable warning surface tile shall incorporate an "in-line" dome pattern of truncated domes 0.2" in height, 0.9" diameter at the base and 0.4" diameter at top of dome. Domes should be spaced no greater than 2 3/8" center to center. The field area of the detectable warning surface should consist of raised points no greater than 0.045, to create a non-slip surface for wheelchair safety. Surface mounted detectable warning surface tiles shall have countersunk fastening holes and perimeter beveled edges. Overall dimension of the detectable warning surface tiles shall be in accordance with this specification and the contract documents.
 - d. **Color:** Generally, the warning tile color shall contrast the surrounding material either, light on dark or dark on light. Colors shall conform to Federal Standard 595. Unless otherwise called out in the contract documents, the detectable warning surface tiles shall be "Brick Red", Federal color No. 31136, or 11140, or "Yellow", Federal Color No. 33538, or as approved by the Owner. The color shall be integral with the detectable warning surface tiles and shall not be surface applied. Paints or other surface coatings shall not be used. Product samples with proposed color shall be submitted to the Owner for approval prior to installation.
 - e. **Manufacturer:** Detectable Warning tile shall be provided by:
 - i. Engineered Plastics, Inc. (Armor-Tile)
 - ii. ADA Solutions, Inc.
 - iii. Approved Equal
 - f. **Fasteners:** Fasteners shall be flat-head drive anchors made of corrosion-resistant material 1/4" in diameter and 1 3/4" long, or as per manufacturer's specification if exceeding these requirements.
 - g. **Adhesives:** Adhesive shall be urethane elastomeric adhesive material, as required by the manufacturer's specification.
 - h. **Sealants:** Sealant shall be a gray epoxy, two-component sealant, as required by the manufacturer's specification.
- 3) Payment - Wheel Chair Ramps shall be paid at the unit price bid per square yard for "6" concrete driveway or wheel chair ramps" and shall include removal (disposal paid separately), all excavation or fill required, compaction of subgrade, construction of 6" thick wheel chair ramp as per Standard CG-12 (latest revision), all expansion material, tools and anything else necessary or incidental thereto. Measurement for payment shall be square yards of concrete including 6" plain concrete sides.

- a. Removal and reconstruction of curbing and curb and gutter will not be part of this item and will be paid separately.
 - b. Truncated domes shall be paid for at the contract price per square foot and shall include all cutting, trimming and shaping of the truncated dome panels to conform with the curb line as needed as well as any other incidental materials such as adhesives.
 - c. Topsoil, seeding and fertilizer shall be paid as a separate item.
- d. Concrete Sidewalk - The concrete shall be screeded to a true surface, free from depressions and other irregularities and shall be floated with a magnesium alloy float. After it has taken its original set, it shall be floated again with a magnesium alloy float to produce a hard smooth finish free from water. The surface shall be given a light broom finish acceptable to the Project Manager.
 - 1) Should the sidewalk be too wide to properly finish from each side, it shall be bridged so that the concrete will not be disturbed after it is screeded.
 - 2) Wherever full width sidewalk is placed from the curb to the property line, the sidewalk shall be placed in alternate blocks. The size of these blocks shall be determined by the Inspector. Every effort shall be made to maintain color and texture.
 - 3) Where there are soil pipes draining into the streets at a lower elevation than the proposed gutter grade, the Contractor will relay these pipes under the sidewalk before construction of sidewalk and/or curb & gutter. The cost of this work is to be included in the price bid per lineal foot for laying soil pipe. This item may be deleted in whole or in part and shall only be done if included as a bid item.
 - 4) Entrance (Carriage) walks, connecting with the city sidewalk that have to be cut off, shall be cut with a concrete saw and all exposed ends faced up with concrete shall leave a neat appearing surface. The cost of this work is to be included in the price bid for concrete sidewalk.
 - 5) Excavation will be paid at the unit price for the material to be excavated.
 - 6) Preparation of Subgrade - The subgrade of sidewalks that replace existing concrete sidewalks shall be prepared by the removal and satisfactory disposal of all unsuitable material above the normal subgrade. No tree roots encountered above normal subgrade will be cut unless approved by the City Arborist.
 - 7) Wherever sidewalk must be backfilled to obtain plan grade over 4" (included in item cost) unit costs will be paid separately for this material. Any area adjacent to the property side of the sidewalk, shall be filled in and compacted with an approved material, fertilized and seeded.
 - 8) Subgrade shall be compacted to a density of 95% based on Standard Proctor and shall be graded flat to not vary more than 1/2" at any one point from

normal subgrade. Wherever tree roots prevent excavation of existing ground surface to normal subgrade, subgrade will be determined by the Project Manager in the field.

- 9) Backfill adjacent to and behind sidewalk immediately after stripping forms.
- 10) Wherever a property or retaining wall exists or is to be constructed, as shown on the approved drawings, an expansion joint shall be placed between the back face of the sidewalk and the property wall. This cost is to be included in the unit bid price.
- 11) In the event the adjoining property is more than 10" above or below grade at the property line, a concrete retaining wall, in accordance with VDOT RW-2 or RW-3, shall be constructed for the purpose of retaining the back face edge of the proposed brick sidewalk. The cost of this wall shall be paid separately.
- 12) Payment - Sidewalks - Payment for all new concrete sidewalk and for removal and replacement of existing sidewalk with new concrete sidewalk shall be made at the contract unit price bid per square yard.
 - a. 4" Concrete Sidewalk, complete in place (does not include excavation) includes items as noted in the bid item. Excavation shall be paid separately and shall include a maximum 6" allowance per excavated side for formwork. Root cutting or trimming shall be incidental to the sidewalk installation.
 - b. 4" Concrete Sidewalk, complete in place (remove and replace) shall include removal (disposal paid separately) and includes items as noted in the bid item. Excavation is included and shall include 6" allowance per excavated side for formwork. Root cutting or trimming shall be incidental to the sidewalk installation.

6. SECTION 515 – PLANING PAVEMENT IS SUPPLEMENTED TO INCLUDE THE FOLLOWING:

- a. General - This item shall include all work involved in the removal of the top surface of asphalt streets by means of a cold planer.

It is the intent of this contract that all streets which are to be cold planed, shall have a continuous operation of cold planing, clean-up and asphalt placement. In the event that breakdowns, malfunctions, or other situations occur during the performance of work on any street, the Project Manager may prohibit further cold planing until a suitable continuous operation can be resumed.

- b. Equipment - The cold planer shall be a single self-propelled unit with a series of carbide teeth on a rapidly-rotating drum which can be precisely positioned by an operator for the purpose of removing the top surface of an asphalt street to a depth of 1" or more. The cold planer shall be capable of removing an asphalt surface in widths of 30" minimum with the final surface having longitudinal grooves approximately 1/8" to 1/4" in depth. The cold planer shall be similar to that made by

G. L. Payne Company, CMI, or an approved equal and shall be so designed that it can remove irregularities from asphalt road surfaces.

- c. Application - The cold planer shall be used to remove various specified depths of asphalt surface from specified streets so that the planed surface conforms to a desirable, grooved, cross sloped street profile. All areas adjacent to castings, curb or gutter or lapped tie-ins, which cannot be cut with the cold planer will be cut by hand and paid for as a square yard of specified depth for "Cold Planing". Any castings which must be set or reset or concrete work deemed necessary by the Project Manager will be performed after the specified depth that has been planed from the roadway surface. The final asphalt top will be placed on the roadway after all casting and concrete work has been completed.
- d. Removal of Material - All asphalt surface material which is cut from the asphalt road surface by the cold planer shall become the property of the Contractor, unless otherwise specified as becoming the property of the City. Material that is property of the City shall be hauled to the designed City yard. All cost involved in the removal and delivery of material shall be included in the unit price
- e. Basis of Measurement - Cold planed areas shall be measured in units of square yards of a specified depth. The depth of cut shall be defined as the distance from the original surface to the top of the grooves of the planed, grooved surface.
- f. Basis of Payment - Payment shall be made at the unit pricing bid per square yard per specified depth of "Cold Planing" accomplished, and shall include all cost in supplying a cold planer and providing everything necessary for the cold planing of an asphalt surface, including the removal and satisfactory delivery of the cut material as specified in the plans, and maintaining traffic.

Example:

Specified Depth of Cold planing 1". Pay quantity shall be for full area "Cold Planing, 1" Depth" regardless of any additional depth unintentionally planed.

7. SECTION 517 – CONTRACTOR CONSTRUCTION SURVEYING IS SUPPLEMENTED AS FOLLOWS:

Measure and Payment for Construction Surveying, when a bid item, will be at the contract unit price in accordance with these special provisions. When not a pay item, the costs of Construction Surveying shall be included in the price bid for other appropriate items.

8. SECTION 601 – SELECTIVE TREE REMOVAL AND TRIMMING IS AMENDED AS FOLLOWS:

Tree Removal - This item shall include the removal and satisfactory disposal, in the area provided by the Contractor, of all trees over 6" in diameter, measured 36" above ground and designated on the approved drawings for removal. Removal of trees shall include the removal of their stumps to a minimum of two (2) feet below finished grade, unless otherwise noted. Existing stumps shall also be removed to a minimum of two (2) feet below finished grade, unless otherwise noted. The unit price for removal shall also include the restoration of the excavated area to normal grade with onsite borrow unless

otherwise specified. The cost of removing trees smaller than 6" in diameter and brush shall be included in the price bid for clearing and grubbing. Felled trees or felled portions shall be removed the same day. The Contractor shall take all precautions to protect trees, shrubs or other vegetation scheduled to remain and shall repair or replace all trees, shrubs or seeded areas negligently destroyed at no cost to the City. Payment for removal of trees and their stumps, or stumps only, will be made as per the unit price in the bid sheet. Removal of all trees shall be approved by the city arborist.

9. SECTIONS 602 – TOPSOIL AND SECTION 603 – SEEDING ARE AMENDED AS FOLLOWS:

- a. Topsoil, Grass Seed and Fertilizer - The area indicated by note on plans shall be graded to three (3") inches below finished grade and covered with a minimum of three (3") inches of topsoil, hand raked to a level finish. The topsoil shall be free of subsoil, seeds, rocks, or any other foreign matter. Top soil shall be subject to the approval of the Department of Grounds Maintenance before being moved from the source of supply.
 - 1) The seed applied to areas noted shall consist of 1/3 2nd Millennium turf type tall fescue, 1/3 Falcon IV turf type tall fescue and 1/3 Rebel Exeda tall fescue, unless otherwise directed by the Project Manager. This mixture shall be applied at the rate of five (5) pounds per 1,000 sq. ft. Agricultural lime shall be applied at the rate of 3,000 pounds per acre. 10-20-10 fertilizer shall be applied at the rate of 2,000 pounds per acre.
 - 2) The lime and fertilizer shall be worked into the top soil prior to seeding.
 - 3) The City reserves the right to delete the item top soil, fertilizing and seeding from this contract.
 - 4) Where seed and fertilizer only are to be used, the existing ground is to be broken up, rocks and unsuitable material raked out and the fertilizer and seed applied at the same rate and method as explained above.
 - 5) Where there is a build up of unsuitable soil between the existing or proposed curb and the existing or proposed sidewalk, or where there is insufficient or unsightly grass cover, the area will be excavated to 3" below grade and filled with 3" of top soil, seeded and fertilized. Any areas close to grade and well turfed should not be disturbed.
 - 6) Permanent seeding shall take place only during the regular sowing period in the spring or fall. Temporary seeding will be in accordance with the Virginia Erosion & Sediment Control Handbook. If a suitable stand of grass is not obtained during the first seeding, the Contractor will be required to return once and resow those areas in which a suitable stand of grass is not obtained.
- b. Hydroseeding - The areas outlined for seeding shall be properly shaped, all wash areas shall be filled to provide a smooth, uniform surface and shall be scratched to a depth of at least two (2") inches to provide a satisfactory seed bed.

- 1) Liming - An approved limestone or approved equal shall be spread uniformly over the area to be seeded at the rate of 2 tons per acre.
 - 2) Fertilizing - At the time of seeding, 10-20-10 fertilizer shall be applied uniformly at the rate of 1,500 pounds per acre.
 - 3) Mulching - Mulch (wood cellulose fiber) shall be applied at the rate of 1,500 pounds per acre (dry weight) and in such a manner that uniform distribution is obtained. Five pounds of annual rye grass seed shall be added to the seed mix for each acre.
 - 4) Sowing Seed - A seed mixture of 83 pounds Kentucky 31 Fescue and 2 pounds Red Top or approved equal shall be sown per acre. Hydroseeding will be permitted provided equipment approved by the City is used and all mixtures are constantly agitated from the time they are mixed to the time they are applied to the seed bed. All such mixtures shall be used within 8 hours of mixing. Nozzles or sprays shall not be directed toward the ground in such a manner as to cause erosion or runoff.
 - 5) Hydroseeding - Unless specifically in the contract, hydroseeding may be done at the option of the contractor. No separate payment will be made for hydroseeding when done at the option of the contractor. Payment will be made at the contract price for "Grass Seed and Fertilizer, in place".
- c. Out-of-Season Seeding – Out of season seeding is seeding that occurs in Summer (June 1st to September 1st) of the calendar year and/or Winter (January 1st to March 1st).

The Contractor is permitted to seed at times other than during the regular seeding season provided that the contractor furnishes the Director of Public Works a letter that the contractor shall:

- 1) Re-establish the original condition and grade prior to supplementary seeding.
 - 2) The area shall have 85% vegetative cover to be acceptable.
 - 3) Bare areas over 5 square feet are not acceptable.
 - 4) Acceptability will be determined by an inspection approximately 60 days after the beginning of the following seeding season.
 - 5) Supplemental seeding, if performed during a regular seeding season, will only be required once.
 - 6) Supplemental seeding shall not entitle the Contractor to additional compensation.
- d. Payment for Out-of-Season Seeding - Payment for the work will be made as follows:

- 1) Fifty percent (50%) of the lump sum bid will be paid on completion of all work as outlined.
- 2) An additional twenty-five (25%) percent will be paid when seventy-five (75%) percent cover is obtained over the entire area.
- 3) The balance will be paid when the Project Manager or Inspector is satisfied that the necessary vegetative cover is obtained over the entire area and the work is acceptable as complete and satisfactory.
- 4) Full payment may also be released at the discretion of the Project Manager should the Contractor provide in writing adequate guarantees and assurances that permanent seeding will be performed during the next planting season.
- 5) The City of Richmond reserves the right to withhold payment on future assignments equal to the value of Grass Seed and Fertilizer on any project for which the Contractor did not adequately perform the required permanent seeding as outlined above.

10. SECTION 605 – PLANTING IS AMENDED AS FOLLOWS:

- a. Tree Planting - This item shall cover all work involved in the supplying and planting of trees where noted on the approved drawings.
 - 1) Trees to be planted under this contract shall be as specified on the Bid Sheet, balled and burlapped stock. All trees shall be moved with a compact natural ball of earth so firmly wrapped in burlap that upon delivery the soil in the ball is still firm and compact about the small feeding roots. Each ball shall be of sufficient size to encompass all the fibrous feeding roots necessary to insure successful recovery and development of the plant. The minimum sizes of balls, ball depth and diameters, and increased ball sizes for collected stock shall be in accordance with recommended balling and burlapping specifications as set forth in the current edition of American Standards of Nursery Stock, sponsored by the American Association of Nurserymen, Inc.
 - 2) Trees will not be accepted if the ball is cracked or broken before or during planting operations or if there is any damage to the bark or branches before or during planting operations. Tree trunks shall be single stem and free from trunk wounds.
 - 3) The plant hole should be centered at the location noted on the plan and be three-to five times wider than the root ball if possible. The depth of the planting hole must be no greater than the height from the bottom of the root ball to the root flare of the tree. The root flare (trunk flare, crown flare) is the area of the tree where roots join the trunk: this may actually be buried 6 inches below the top of the root ball. If the trunk flare is not visible, remove soil or media from the top of the ball until it is visible. The root flare shall be slightly above the surface of the surrounding soil at all times. Determine the desired depth of each hole prior to digging.

- 4) Whenever trees are to be placed in a concrete sidewalk area, a 5'x5' tree box will be cut in the existing sidewalk and the concrete which is within the tree box shall be removed as part of the excavation for the tree ball.
 - 5) Whenever trees are to be placed in a brick sidewalk, a 5' by 5' tree box will be formed around the tree as described in Item "k. Tree Boxes" under Brick Sidewalk on Cement-Sand Bedding in the Special Provisions of this contract and all brick which is within the tree box shall be removed as part of the excavation for the tree ball. All concrete sidewalk which must be removed and replaced, as directed by the Project Manager, outside the tree box area shall be paid for under the item bid per square yard for 4" concrete sidewalk.
 - 6) A root barrier shall be installed in accordance with the manufacturer's recommendations or instructions at the time of tree planting or installation of curb and gutter for existing trees. The root barrier shall be Deep Root UB-24 High Density Polyethylene or approved equal and installed to protect curb & gutter and sidewalks adjacent to trees. Root barrier shall be installed along the perimeter of tree boxes or along longitudinal curbing and sidewalk for a minimum distance of 10 feet, centered on the tree for single plants, as directed by the Engineer. The contractor shall provide all materials, equipment, and labor necessary to install the root barrier. Each location will be inspected for existing conditions by the City prior to installation. Payment for root barrier will be made at the contract unit price, complete in place.
- b. Tree selections shall be approved by the City Arborist prior to planting - Planting of trees shall be performed under the supervision of an experienced nurseryman. Whenever conditions are such, by reason of drought, high winds, excessive moisture, frozen earth, or other similar factors, that satisfactory results are not likely to be obtained, work shall be stopped. It may not be resumed until desired results can be obtained or until approved alternate or corrective measures and procedures are adopted.
- 1) Prior to delivery of trees to the project site, the selected trees shall be inspected and approved by the city arborist in the nursery or yard of purchase.
 - 2) Trees will be set in the planting hole in a straight and plumb fashion, with the top of the root flare at the proposed finish grade, so that a normal or true relationship of the crown of the plant with the ground surface will be established. Before backfilling, someone must view the tree from two directions perpendicular to each other to confirm the tree is plumb. Fill in with some more backfill soil to secure the tree in the upright position. Attempts must be made to break up clayey soil clumps as much as possible. Do NOT step firmly on the backfill soil because this could compact the soil and restrict root growth, especially in clayey soil. Begin to fill the hole around the root ball with soil. When the hole is filled approximately two-thirds with soil, the root ball should remain 6 to 8 inches above the backfill soil. Slice the shovel 20 to 30 times into the backfill to settle the soil. Add 10 to 20 gallons of water to the root ball and backfill. Fill in any holes or depressions with additional backfill soil. The water infiltrating the soil will eliminate large air pockets. The burlap and wire basket will then be cut away or folded back

from at least the top one-third of the root ball and the plant hole shall be filled to grade with topsoil. All synthetic materials from around the tree trunk and root ball shall be removed and not evident within the backfill soil mix. String, rope, synthetic burlap, plastic, strapping, and other materials that will not decompose in the soil shall be removed at planting.

- 3) The entire tree planting box, or at least a 6-foot diameter circle around the tree, shall be covered with mulch. Construct a berm of mulch at the edge of the root ball only if the tree will be watered with a hose, bucket, or other high volume means. Mulch shall be placed over the root zone to a minimum depth of two inches and a maximum depth of four inches. Mulch shall be placed against the trunk of the tree. Leave an unmulched area at least 6 inches around the tree trunk. If mulch is found against the base of the trunk, carefully remove it and the soil at the base of the tree to expose the root collar, which needs adequate air circulation. Use non-metallic hand tools when working near the root collar to prevent damaging the trunk and roots.
 - 4) Trees shall be supported immediately after planting with guy wires as shown on the contract drawings. Do not guy the tree unless necessary to maintain the tree in an upright position. If guying, guy wires shall be loose enough to allow the tree to be able to move freely in the wind, but shall be tight enough to keep the tree from overturning. Guy wires shall have protective materials in contact with the tree to keep it from damaging the bark. Cut or damaged surfaces shall not be coated with tree paint. All Guying material and stakes shall be removed after one (1) year.
 - 5) Each tree will be inspected by the City Arborist for any disease or insect pest infestations. Upon the discovery of any disease or insect pest infestation, the nature or species shall be identified and a proposed method of control shall be submitted to the Chief of Parks for approval prior to application of control measures. Should the disease or insect pest infestation be such that it could cause the death of the tree during the guarantee period, said tree shall be replaced at the Contractor's expense. The Contractor shall be responsible for control of disease and insect pest infestation during the one year Guarantee Period plus proper watering and weeding for a minimum of three weeks after project acceptance.
- c. Payment - The basis of payment shall be at the unit price bid per each "Tree" and shall include supply and placement of each tree, excavation and disposal of all existing sidewalk within the tree box, excavation for tree ball and disposal of all excess material, supply of any extra topsoil required for backfilling planted tree, planting and backfilling tree, down guying and wrapping of tree, pruning of tree, supply and placement of an approved mulch, control of disease and insect pest infestation plus all required watering and weeding including all labor, equipment, tools and materials incidental thereto.
- d. Contractor's Guarantee - The Contractor shall guarantee all trees, which have been planted as part of this contract, against any defects or loss of plant life for a period of one (1) year following the date of final acceptance of the work by the Project Manager or City Arborist. The contractor shall be responsible for watering and necessary maintenance during the warranty period. Under this guarantee, the

Contractor agrees to replace, without delay, any defects or loss of tree or plant life, at his own expense, It is hereby agreed that the Performance Bond shall fully cover the guarantee contained within this paragraph.

11. ADJUSTING UTILITIES AND CASTINGS

- a. Resetting Castings - The Contractor shall be required to adjust sewer manhole castings, gas, water valve and drip boxes to new grades. For large valve and drip boxes the vertical adjustment shall be made with brick and concrete. The entire base of the box shall be placed on brick when set to new grade. For small valve boxes the vertical adjustment is made by screwing the top section and/or by installing a new mid-section.
- 1) Sewer manhole castings shall be reset to grade on brick with high early concrete or precast concrete adjustment rings. Virginia Power and telephone manhole castings will be reset by the respective utility. Old pavement removed to adjust gas, water valve and drip boxes and sewer manhole castings shall be replaced with concrete on graded streets. The contractor shall coordinate adjustment of private utility owned manholes with the respective owner.
 - 2) The Contractor shall properly place and fit the sewer rings and adapters. Rings and adapters improperly placed shall be cut out and replaced at the Contractor's expense.
 - 3) The Contractor shall remove all materials that fall in the sewer manholes and basins and reset all castings the day the castings are disturbed. Work shall not be resumed the next day or on any new work until such time as previous day's work is complete (i.e.: the Contractor not cleaned out any sewer manhole or basin or reset the castings of previous day's work).
 - 4) Concrete collars around sewer manhole castings and valve boxes shall be Class "A3" Type I or II cement and shall be protected from traffic for three (3) days. Backfill for valve boxes set to grade shall be compacted with a pneumatic tamp to a minimum of ninety-five (95%) percent density (Standard Proctor).
 - 5) Sewer castings, gas, water valve and drip boxes where the final surface shall be concrete, shall be set to grade without concrete collar.
 - 6) All castings shall be adjusted via methods such that they do not settle from the adjusted elevation.
- b. Adjusting Utilities - In the event that any existing gas, water lines, fire hydrants or services have to be adjusted and not shown on the plan, the Contractor will be required to notify the Department of Public Utilities (DPU) seventy-two (72) hours prior to the time set for uncovering the existing lines, adjusting hydrants, or adjusting service boxes. Any adjustment to gas-water lines or fire hydrants, unless included in the contract, will be done by the Department of Public Utilities' forces. Uncovering lines shall be done by the Contractor. The contractor may request a contract time adjustment if in his opinion, DPU in adjusting its facilities created a

significant delay to his critical path activities. Provided prior notification was timely, the Project Manager, at his sole discretion, may grant such time extension based on written documentation duly furnished by the contractor. No delay claim will be receivable if, in the opinion of the Project Manager, DPU has accomplished due diligence in adjusting its facilities within 10 (ten) working days of the above notification. The same process shall apply to other private and public utilities with facilities within the public right-of-way.

- c. Payment - Payment for manholes set to grade will be made at the unit price bid for this item and shall include the cost of excavation, backfill, brick, mortar, hauling and placing sewer rings and adapters, barricading, lighting, concrete collar, and all other costs in connection therewith. Payment for adjusting gas, water valve, and drip boxes will be made at the unit price bid for "Adjust utility castings, large (greater than 16 dia.)" or "Adjust Utility Casting, Small (6"-16")." Water meter boxes and gas curb cocks will be paid for at the unit price for "Adjust water meter or gas cock to grade " and shall include all connection costs including costs of excavation, backfill, concrete, barricading, lighting and asphalt padding and any other costs.

12. ADJUSTING OR CONSTRUCTING BASIN SLABS

- a. Drop inlet throat sections where specified on the plans shall be either cast in place or a pre-cast unit. Before placement of the throat section, the barrel will be either cast in place, prefabricated or a modified existing structure. The throat section shall either be mortared to the barrel or shall be sealed with an asphaltic seal. Existing drop inlet barrels shall be re-mortared to repair weak mortar joints. The base for the pre-cast throat units will be of concrete either dry or wet at a thickness of 3 inches minimum. Specific detail references will be made in the plan or per VDOT Standards.
- b. Payment will be made according to the specified design units identified in the plans. Cost of work in connection with the drop inlet construction will be made per each unit, specified in place.
- c. When adjusting existing drop inlets the cost of extending the throats shall be paid per linear foot of length greater than 4-foot minimum. The cost of curb and gutter shall be separate unit costs.

13. NEW BRICK SIDEWALK ON CONCRETE BASE

- a. General - The work of this section shall comprise the furnishing and installing new brick sidewalk on a 4" concrete base as noted on the approved drawings.
- b. Materials shall conform with these special provisions (Section C, paragraph 16).
- c. The cost of new brick shall be included in the unit prices for brick sidewalk.
- d. Excavation shall be paid at the unit price for the material to be excavated.
- e. The subgrade of sidewalks that replace existing sidewalks shall be prepared by the removal and satisfactory disposal of all unsuitable material above the normal

subgrade. Tree roots encountered shall not be cut unless approved by the City Arborist.

- f. Wherever sidewalk must be backfilled to obtain plan grade over 4" (included in item cost) unit costs will be paid separately for this material. Any area adjacent to the property side of the sidewalk, shall be filled in and compacted with an approved material, fertilized and seeded.
- g. Subgrade shall be compacted to 95% of Standard Proctor and shall be graded flat and not to vary more than 1/2" at any one point from normal subgrade. Wherever tree roots prevent excavation of existing ground surface to normal subgrade, subgrade shall be determined by the Project Manager in the field.
- h. Concrete Base - Upon compaction and grading of subgrade, the subgrade shall be cleaned of all loose and foreign material. After this has been done, a 4" concrete slab shall be placed on the compacted subgrade.
- i. Wherever a property or retaining wall exists or are to be constructed as shown on the drawings, an expansion joint shall be placed between the back face of the sidewalk and the property wall. This cost is to be included in the unit bid price.
- j. Back Face of Sidewalk – Wherever brick sidewalk abuts a non-solid confining surface a soldier course of bricks is required to prevent the new brick sidewalk from failure due to movement. This soldier course shall be formed by setting new sidewalk brick on end, side to side, in a row along the back edge of the sidewalk. The lower portions of the soldier course shall be embedded in 2" of a 1:3 cement mortar. The cost of the soldier course shall be included in the unit prices for brick sidewalk.
- k. In the event the adjoining property is more than 10" above or below grade at the property line, a concrete retaining wall, in accordance with VDOT RW-2 or RW-3, shall be constructed for the purpose of retaining the back face edge of the proposed brick sidewalk. The cost of this wall shall be paid at the bid unit cost.
- l. Tree Boxes - Wherever trees exist within the brick sidewalk area or wherever trees are to be placed in the brick sidewalk area, a tree box shall be formed with the bricks which are to be used in the brick sidewalk. The tree box shall be 5'x5' (unless otherwise noted on the drawings) and shall be formed by embedding bricks on side, end to end, in 2" of a 1:3 cement mortar. The Project Manager will determine in the field the exact location and size of any required tree boxes. The cost of the tree boxes shall be included in the unit price bid for Brick Sidewalk.
- m. Laying Brick - Bricks shall be stored in areas designated by the Project Manager. All bricks shall be carefully laid with the best face up in the pattern noted on the approved drawings or designated by the Project Manager. Bricks shall be cut, not broken, using a high-speed masonry saw producing clean, sharp edges.
- n. Cement-Sand Bedding - Upon completion of the 4" Concrete base a uniform layer mixture of 1 part cement to 3 parts sand, 1/2" thick, shall be placed upon the subgrade. This cement-sand bedding shall be screeded off and densified by tamping or rolling so that the top surface of the cement-sand bedding will be

smooth with no more than 1/4" variation from a flat plane and shall be compacted to 95% of theoretical density, at optimum moisture (Standard Proctor). Sand used for sand bedding shall be uniform in gradation and free from foreign material. Cement shall be Portland Cement and conform to ASTM C150. The cement-sand mixture shall be mixed in a mechanical mixer by the contractor.

- o. The bricks shall be laid with a uniform 1/8" joint between each brick and joints shall be filled with a 1:3 cement-sand mixture. Sand used for filling joints shall be very fine in gradation and cement shall be Portland Cement which conforms to ASTM C150. Wooden mallets or the wooden end of a brick mason's hammer will be used to strike each brick to insure a proper set during placement of the bricks and after sweeping the cement-sand mixture into the joints.
- p. Finishing Sequence - Once the cement-sand bedding is in place and the bricks have been set upon the bedding the joints shall be filled with a dry sand joint filler. Joint filler shall be reapplied as many times as necessary to achieve a locking bond. The contractor will be responsible for cleaning the brick surface of any excess filler material.
- q. Basis of Payment - Payment shall be made at the unit price per bid per square yard and shall include all costs except excavation in connection with installing new brick sidewalks on concrete base.

14. NEW BRICK SIDEWALK ON CEMENT-SAND BEDDING

- a. General - The work of this section shall comprise the furnishing and installing new brick sidewalk on a 4" sand cement base as noted on the approved drawings.
- b. Materials shall conform with these special provisions (Section C, paragraph 16).
- c. The cost of new brick shall be included in the unit prices for brick sidewalk.
- d. Excavation will be paid at the unit price for the material to be excavated.
- e. The subgrade of sidewalks that replace existing sidewalks shall be prepared by the removal and satisfactory disposal of all unsuitable material above the normal subgrade. Tree roots encountered shall not be cut unless approved by the City Arborist.
- f. Wherever sidewalk must be backfilled to obtain plan grade over 4" (included in item cost) unit costs will be paid separately for this material. Any area adjacent to the property side of the sidewalk, shall be filled in and compacted with an approved material, fertilized and seeded.
- g. Subgrade shall be compacted to 95% of Standard Proctor and shall be graded flat to not vary more than 1/2" at any one point from normal subgrade. Wherever tree roots prevent excavation of existing ground surface to normal subgrade, subgrade shall be determined by the Project Manager in the field.

- h. Wherever a property wall exists or is to be constructed as shown on the drawings, an expansion joint shall be placed between the back face of the sidewalk and the property wall. This cost is to be included in the unit bid price
- i. Back Face of Sidewalk – Wherever brick sidewalk abuts a non-solid confining surface a soldier course of bricks is required to prevent the new brick sidewalk from failure due to movement. This soldier course shall be formed by setting new sidewalk brick on end, side to side, in a row along the back edge of the sidewalk. The lower portions of the soldier course shall be embedded in 2" of a 1:3 cement mortar. The cost of the soldier course shall be included in the unit prices for brick sidewalk.
- j. In the event the adjoining property is more than 10" above or below grade at the property line, a concrete retaining wall, in accordance with VDOT RW-2 or RW-3, shall be constructed for the purpose of retaining the back face edge of the proposed brick sidewalk. The cost of this wall shall be paid separately.
- k. Tree Boxes - Wherever trees exist within the brick sidewalk area or wherever trees are to be placed in the brick sidewalk area, a tree box shall be formed with the bricks which are to be used in the brick sidewalk. The tree box shall be 5'x5' (unless otherwise noted on the drawings) and shall be formed by embedding bricks on side, end to end, in 2" of a 1:3 cement mortar. The Project Manager will determine in the field the exact location and size of any required tree boxes. The cost of the tree boxes shall be included in the unit price bid for Brick Sidewalk.
- l. Laying Brick - Bricks will be stored in areas designated by the Project Manager. All bricks shall be carefully laid with the best face up in the pattern noted on the contract drawings or designated by the Project Manager. Bricks shall be cut, not broken, using a high-speed masonry saw producing clean, sharp edges.
- m. Cement-Sand Bedding - Upon completion of compaction and grading of the subgrade, the subgrade shall be cleaned of all loose and foreign material. A uniform layer mixture of 1 part cement to 3 parts sand, 4" thick, shall be placed upon the subgrade. This cement-sand bedding shall be screeded off and densified by tamping or rolling so that the top surface of the cement-sand bedding will be smooth with no more than 1/4" variation from a flat plane and shall be compacted to 95% of theoretical density, at optimum moisture (Standard Proctor). Sand used for sand bedding shall be uniform in gradation and free from foreign material. Cement shall be Portland Cement and conform to ASTM C150. The cement-sand mixture shall be mixed in a mechanical mixer by the contractor.
- n. The bricks shall be laid with a uniform 1/8" joint between each brick and joints shall be filled with a 1:3 cement-sand mixture. Sand used for filling joints shall be very fine in gradation and cement shall be Portland Cement which conforms to ASTM C150. Wooden mallets or the wooden end of a brick mason's hammer will be used to strike each brick to insure a proper set during placement of the bricks and after sweeping the cement-sand mixture into the joints.
- o. Finishing Sequence - Once the cement-sand bedding is in place and the bricks have been set upon the bedding the joints shall be filled with a dry sand joint filler. Joint filler shall be reapplied as many times as necessary to achieve a locking

bond. The contractor will be responsible for cleaning the brick surface of any excess filler material.

- p. Special Brick Sidewalk Conditions - Whenever an existing brick sidewalk is to be replaced with all new brick and spot restoration of brick is a part of the contract, the existing brick shall be removed by hand, culled and cleaned and used for the brick sidewalk restoration. The unit price bid per square yard for spot restoration of brick shall include the cost of removing by hand, culling and cleaning of the existing bricks and moving to restoration area. If no brick sidewalk restoration is part of the contract, the Project Manager will designate any brick to be salvaged or removed and this work will be paid for separately as unclassified excavation or salvage. This will be noted on the drawings or made a part of the additional requirements for the project.
- q. Basis of Payment Payment shall be made at the unit price per bid per square yard and shall include all costs except excavation in connection with installing new brick sidewalks on cement-sand bedding.

15. SPOT RESTORATION OF BRICK SIDEWALK

- a. This item shall cover all work involved in the spot replacement of missing brick and/or the restoration to proper grade of existing brick sidewalk.
- b. Bricks in existing sidewalks where designated for restoration shall be removed by hand and the subgrade shall be cut or filled, as required, until a proper subgrade is obtained. Sand which is uniform in gradation and free of foreign material shall be used as a fill material. The bricks removed and replacement brick shall then be placed back in the sidewalk as to conform to the pattern of the sidewalk adjacent to the area restored. Bricks shall be cut, not broken, using a high-speed masonry saw producing clean, sharp edges. Once the existing bricks have been placed back in the sidewalk, joints shall be filled with a 1:3 cement-sand mixture. Sand used for filling joints shall be clean and very fine in gradation and cement shall be Portland cement which conforms to ASTM C150. Wooden mallets or the wooden end of a brick mason's hammer will be used to strike each brick to insure a proper set during placement of the bricks and after sweeping the cement-sand mixture into the joints. After the joints have been filled with the cement-sand mixture, the brick sidewalk surface shall be cleaned of all residue cement or sand by means of sweeping, washing or cleaning with an acid solution.
- c. Once the brick sidewalk surface has been cleaned to the satisfaction of the Project Manager or Inspector, a light coat of clean fine graded sand shall be placed on the brick sidewalk surface. This light coat of sand will be removed by the contractor at the end of the job.
- d. Whenever there is a deficiency of existing brick in an area designated for spot restoration of brick bricks may be obtained from areas designated for removal of existing brick sidewalk and replacement with new brick or concrete. The existing brick sidewalk shall be removed by hand, by the contractor, culled and cleaned and used for the spot restoration of brick. The unit price bid per square yard for spot restoration of brick shall include the cost of removing by hand, culling and cleaning of the existing bricks, and brick cutting. If no brick sidewalk removal and

replacement with new brick or concrete is part of the contract, the contractor will obtain all bricks needed for restoration work from the City storage yard and haul them to the site. If this is to occur it will be noted on the drawings or made a part of the additional requirements of the project.

- e. This work shall be paid for at the unit price bid per square yard for "spot restoration of brick " and shall include all work involved in the removal and replacement of bricks in existing sidewalks, cutting or fill required for preparation of subgrade, hand removal and culling and cleaning of all bricks from existing brick sidewalks or the City storage when a deficiency of bricks occurs, hauling brick, cement-sand joint filler complete in place, and cleaning of the brick sidewalk surface and sand coating.

16. SOLID CONCRETE PAVING UNITS

- a. Materials shall conform with these special provisions (Section C, paragraph 16).
- b. Paving units shall be installed in accordance with manufacturer's specifications. Unit bid cost shall include supply and placement of solid concrete paving units, sand bedding course, plastic edge restraints and joint filling sand. Excavation, granular or concrete base course, concrete or special design edge restraints such as angle iron are not included and may be a separate unit price bid item unless otherwise specified on the plan.

17. RESTORE DURAX BLOCK PAVEMENT

- a. Description - Work shall consist of restoring damaged areas of Durax Granite Paving Block as indicated on the approved plans.
- b. Durax Block – Durax Block shall be granite cubes approximately 3.5" in all direction. If additional Durax Block is necessary, the Durax block shall be furnished by the City. the durax block shall be picked up from the City storage area and hauled to the site by the Contractor; the cost of this work shall be included in the unit price bid for the restoration work.
- c. Mortar Bedding - The mortar bedding shall comply with the requirements for nonshrink mortar.
- d. The sand used shall conform to VDOT Specifications, sec. 202, for Grading C.
- e. The mortar bedding shall be not less than one-half inch nor more than one and one-quarter inches in thickness after blocks have been laid.
- f. Laying Durax Block - The Durax block shall be laid on the mortar bedding in concentric, interlocking segments of about three (3) foot radius, with broken joints, or to meet existing pattern. The upper or wearing surface of each block shall be flush with the general surface of the pavement, and four (4) inches above the concrete base, if used, when the pavement is completed. Joints between the blocks shall be 1/4" to 1/2" wide at the surface.

- g. Prior to the placement of grout, the pavement shall be checked with a ten (10) foot straight edge laid parallel with the center of the street and all irregularities greater than one-quarter inch shall be corrected.
 - h. Once the blocks are to acceptable grade, the joints shall then be filled with grout (EMACO T-1061) or approved equal, around all Durax Block to within ¼" of the top.
 - i. Obligation of Contractor at End of Warranty Period - In addition to the proper maintenance of the pavement during the period of warranty, the Contractor shall at their expense, just before the expiration of the warranty period, make such repairs as are necessary to the pavement where it shows indication of having been defectively constructed.
 - j. Basis of Payment - This work shall be paid for at the contract unit price per square yard for "Restore Durax Block Pavement on Mortar bedding" which price shall include removal, cleaning, the mortar bedding, loading Durax block and hauling to the site as necessary, and placing the joint filler, complete in place and all material, equipment, tools, labor, and work incidental thereto.
18. RESTORE GRANITE SPALL PAVEMENT - This work shall consist of restoring or installing new Granite Spall (a.k.a. Cobblestone)
- a. Description - This pavement is a roughly cut granite block wearing surface as hereinafter described and locally known as "Spall". The Spall shall laid in a mortar bed with grout joint filler. The base is specified and paid for separately. Unless otherwise specified in the proposal, the City will furnish the Spall. Spall provided by the City shall be picked up from the City storage area and hauled to the site by the Contractor. The cost of this work shall be included in the unit price bid for the restoration work.
 - b. Granite Spall - Granite Spall shall be from four (4) to seven and one-half (7½) inches deep, from three (3) to six (6) inches wide and from three (3) to ten (10) inches long. The sides shall permit laying with joints not over three-quarters (¾) of an inch in width and joints of that width shall be exceptional. The upper face shall be uniform to permit laying to the general surface of the pavement.
 - c. Mortar Bedding - the mortar bedding shall comply with the requirements for Nonshrink Mortar. The sand used shall conform to VDOT specifications, Sec. 202, grading C. The mortar bedding shall be maximum two (2) inches thick.
 - d. Laying Spall - On this mortar bedding the Granite Spall shall be laid at right angles to the center of the street. Each course of Spall shall be approximately of uniform width and depth, and so laid that all longitudinal joints shall be broken by a lap of at least two (2) inches. As each course is laid the Cement Sand Bedding will fill the joints to within three (3) inches of the surface of the pavement. Irregular shaped and odd sized Spall shall be culled by the pavers.
 - e. After the Spall has been placed in the mortar bedding the pavement shall be tested with a ten (10) foot straight edge laid parallel with the center line of the pavement

and any irregularities exceeding one-quarter (1/4) of an inch must be corrected as directed by re-laying of the Spall.

- f. Grouting- The joints shall then be filled with grout (EMACO T-1061) or approved equal, around all Granite Spall to within 1/4" of the top.
- g. Obligation of Contractor at End of Warranty Period - In addition to the proper maintenance of the pavement during the period of guarantee, which will include refilling grout filled joints if they become open, the Contractor shall at his expense, just before the expiration of the guarantee period, make such repairs as necessary to the pavement where it shows indication of being defective.
- h. Basis of Payment - This work shall be paid for at the contract unit price per square yard for "Remove clean and replace granite spall..." which price shall include removal, cleaning, the mortar bedding, loading granite spall and hauling to the site as necessary, and placing the joint filler, complete in place and all material, equipment, tools, labor, and work incidental thereto.

19. RUBBER SIDEWALK

- a. General-This specification is to cover the placement of rubberized sidewalk pavers as noted on the contract drawings. The color of rubber sidewalk shall match adjacent sidewalk color to which the work is placed. Generally, the acceptable colors are gray or terra cotta.
- b. Product - Pavers shall be TERREWALK as manufactured by Terrecon Inc or approved equal. Pavers shall be nominally 2'x2.5' as to be suitable for 4' (or multiples thereof) or 5' (or multiples thereof) wide sidewalk. Color of paver shall match adjacent sidewalk to the extent practicable as offered by the manufacturer.
- c. Base - The contractor shall prepare the aggregate base for the paver tiles in accordance with the manufacturer's instructions and recommendations.
- d. Installation - Pavers shall be installed in accordance with the manufacturer's instructions and recommendations and shall include doveled tie-in to existing sidewalk.
- e. Basis of Payment - This work shall be paid for at the contract unit price per square yard for "Rubberized sidewalk, in place" which price shall include excavation, materials, labor, equipment to the site as necessary, and placing the joint filler, complete in place and all material, equipment, tools, labor, cutting, jointing and work incidental thereto.

- 20. SAW CUTTING – Saw cutting is incidental to any asphalt or concrete tie-in work. All existing asphalt & concrete pavements shall require saw cut in order to create a neat line, no other methods will be allowed. If the contractor uses an unacceptable method to create the pavement cut, the contractor shall establish a saw cut beyond the limits of work using acceptable methodology to create a neat joint at no additional cost to the City. Saw cutting will also be paid ONLY if requested by the inspector or PM that is outside of the item's normal scope.

21. MAINTENANCE OF TRAFFIC- the Contractor shall submit a Maintenance of Traffic plan as part of the requirements for the Work in Street permit.

The following procedure shall be followed for all street and sidewalk construction projects which may create obstructions to traffic movements in accordance with Traffic Order #2844, dated August 12, 1998 – Traffic Control Procedure for Street and Sidewalk Construction.

a. General

- i. The Transportation Engineering Division shall be notified not less than 72 hours prior to beginning street, utility or sidewalk construction. If work requires changes in bus routes, bus stops or traffic detours, a longer advance notice may be required. Under no circumstances shall a roadway be closed for routine construction without the approval of the City Traffic Engineer or his agent, and prior notification to the Division of Emergency Communications, telephone 646-5123.
- ii. In case of EMERGENCY WORK during normal business hours (8:00am to 5:00pm, Monday-Friday), notify the Transportation Engineering Division, telephone 646-0442, as soon as possible. At all other times notify the Division of Emergency Communications, telephone 646-5123, who in turn will notify Fire and Emergency Services.
- iii. Except for emergencies, work shall not be performed in the Central Business District (an area bounded by and including: Jackson Street on the north, Byrd Street on the south, Belvidere Street on the west, and Fourteenth Street on the east), or on major arterial, minor arterial & collector streets between the hours of 7-9am and 4-6pm without specific consent of the Transportation Engineering Division.
- iv. Metal plates will be required over street openings to maintain adequate traffic movement in order to reopen travel lanes during peak traffic periods. Metal plates and the installation thereof shall conform to DPW Policy for Temporary Steel Plate Bridging for General Utility Street Work dated April 2004.
- v. No vehicles shall be parked on the street or in alleys, at construction sites in violation of "No Parking" regulations unless the vehicle is essential to the completion of the job. Whenever a traffic lane is blocked by construction work, all vehicles, equipment and materials shall be parked or stored in the same lane.
- vi. No vehicles shall be parked neither on the streets nor on the sidewalks behind fences and barricades on construction and demolition projects. The area behind fences and barricades, whether in the street or on the sidewalk area, is for either loading and unloading, or storage of necessary materials. Materials shall not be stored where they may cause a safety hazard by obstructing the vision of drivers and pedestrians.
- vii. Any traffic signs, signals, or pavement markings removed as a result of the construction shall be replaced by the contractor. Before removing any traffic

control device, the Transportation Engineering Division shall be notified in order that temporary safety arrangements can be made. Any signs removed shall be delivered to the Sign Shop, 2800 Hermitage Road by the person removing same or his agent.

- viii. All flaggers shall be certified by VDOT, the American Traffic Institute, or other approved entity. The contractor shall provide copies of certifications of flaggers to be used to the Project Inspector prior to the commencement of work. Further, the flagger shall have the certification card on their person at all times while engaged in flagging operations.
- ix. The Contractor shall plan and stage operations such as to maintain access to all properties, especially for emergency services, at all times.

b. Traffic Control Devices

- i. All traffic control devices shall be in conformance with the Federal Highway Administration's Manual on Uniform Traffic Control Devices for Streets and Highways and the Virginia Department of Transportation's Work Area Protection Manual.
- ii. The contractor shall furnish, erect and maintain all signs; barricades shall be in place before any work is started by the contractor.
- iii. In the event that a construction site in the opinion of the Department of Police, Right-of-Way Management, or the Transportation Engineering Division is improperly signed, barricaded, or lighted, the contractor will be so notified. If the contractor cannot be reached immediately or fails to take necessary corrective measures, a stop work order may be issued until such corrective action is taken. Additional time for stop work order due to improper signage will not be granted.
- iv. On streets with unlimited parking, No Parking signs shall be erected a minimum of 72 hours in advance of the beginning of any street construction, tree spraying, tree trimming or street cleaning. Such signs shall bear the effective day and time. Signs prohibiting parking shall be placed not more than 100 feet apart. All existing regulatory signs which do not apply during construction shall be covered. Parking Meters shall be covered with bags or temporary "No Parking" Signs approved by the Transportation Engineering Division.
- v. All construction signing, barricades and other traffic control devices shall be removed promptly when the construction is completed.
- vi. The contractor shall maintain all signs and barricades in the roadway in the manner prescribed. All traffic control devices shall be kept in proper position, clean and legible at all times. Damaged traffic control devices shall be repaired or replaced immediately. Paper parking regulation signs shall be affixed so they will remain legible at all times, especially during inclement weather. In the event that work is halted, all unnecessary signs will be removed.

- vii. Traffic signs, signals, or pavement markings called out to be relocated and removed as a result of the construction shall be replaced by the contractor. Before removing any traffic control device, the Transportation Engineering Division shall be notified in order that temporary safety arrangements can be made. Any signs removed shall be delivered to the Sign Shop, 2800 Hermitage Road by the person removing same or his agent.
- c. Single Lane Traffic Control
 - i. Where traffic in both directions must use a single lane for a limited distance, provisions must be made for alternate one-way movement to pass vehicles through the constructed section. At a “spot” obstruction, such as isolated pavement patch, the movement may be self-regulating. However, where the one-lane movement section is of sufficient length, there must be means of coordinating movements at each end so that vehicles are not simultaneously moving in opposite directions in the section and delays are not excessive at either end. Control points at each end of the route must be chosen to permit easy passing of opposing lines of vehicles.
 - ii. The following minimum lane widths should be maintained at all times:
 - One Lane 10 Feet Wide
 - Two Lanes 20 Feet Wide

**FY 22 CITYWIDE SIDEWALK IMPROVEMENTS
BID SHEET**

**BASE BID
Sheet 1 of 1**

Item	Base Bid Quantities	Unit Description and Unit Price in Words	Bid Unit	Unit Price in Numbers	Extended Price in Numbers
1.	1200	Regular Excavation (No asphalt or concrete).	CY		\$ -
		at Dollars			
2.	100	Unclassified Excavation (including up through 6" thick concrete or 8 " thick asphalt).	CY		\$ -
		at Dollars			
3.	5000	Saw cut up to 6" deep (ONLY to be paid if noted to be paid separately in the item description).	LF		\$ -
		at Dollars			
4.	6000	Grass seed, lime, and Fertilizer, complete in place.	SY		\$ -
		at Dollars			
5.	8000	4" Existing concrete sidewalk (Remove and Replace), complete in place. Note: Includes removal (disposal separate), preparation of subgrade, and 4" aggregate base (21A)	SY		\$ -
		at Dollars			
6.	1400	Crushed aggregate, Type I, No. 21A or B, in place.	TON		\$ -
		at Dollars			
7.	150	Granite curb realign, complete in place. Note: Includes excavation, backfill as required, shoring and reset, concrete collar, and pavement restoration (2' wide).	LF		\$ -
		at Dollars			
8.	1350	6" concrete wheelchair ramp (Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2' wide).	SY		\$ -
		at Dollars			
9.	950	Detectable warning strip 2 foot wide (truncated dome) in place per VDOT Standard CG-12A, B, or C . Complete in Place -- warning strip to be federal yellow. Or as specified by engineer	SF		\$ -
		at Dollars			
10.	6300	Topsoil, 3" depth, complete in place.	SY		\$ -
		at Dollars			
11.	275	Concrete curb and gutter (2' to 4' gutter pan) Remove and Replace, complete in place. Note: Includes excavation, compaction of subgrade, 4" aggregate base (21A), backfill as required, and pavement restoration (2' wide).	LF		\$ -
		at Dollars			
12.	150	Water Meter Box or Gas Curb Cock Box Reset to Grade (See DPU Standard B-957)	EA		\$ -
		at Dollars			
13.	150	Adjust Utility Casting, Small (6"-16"), (See DPU Standard B-957)	EA		\$ -
		at Dollars			
14.	3	Trees Removed, 30" and over, including stump removal.	EA		\$ -
		at Dollars			
15.	2	Trees Removed, over 18" to 30", including stump removal.	EA		\$ -
		at Dollars			
16.	45	Construct new tree well up to 25 SF in existing brick sidewalk (including saw cutting, excavation, mortared header row, and all other incidentals)	EA		\$ -
		at Dollars			
17.	200	6" concrete Driveway (Residential - Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2' wide).	SY		\$ -
		at Dollars			
18.	450	8" concrete high early strength (A4) Driveway/Alley Crossing (Commercial - Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2' wide).	SY		\$ -
		at Dollars			
19.	3000	New Brick Sidewalk on 4" cement-sand base, complete in place. Note: Excavation to be paid as a separate item.	SY		\$ -
		at Dollars			
20.	1500	Remove, salvage, cull, neatly pallet, and deliver to city yard bricks from existing brick sidewalk.	SY		\$ -
		at Dollars			
21.	30	Granite curb (new) Install Note: Includes excavation, backfill as required, shoring, concrete collar, and pavement restoration (2' wide). In accordance with special provisions.	LF		\$ -
		at Dollars			
22.	50	6" concrete wheelchair ramp (NEW), complete in place. Note: Includes regular excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2' wide).	SY		\$ -
		at Dollars			
23.	30	Construct new tree well up to 25 SF in existing concrete sidewalk (including saw cutting, excavation, and all other incidentals)	EA		\$ -
		at Dollars			
24.	10	Drainage or Sewer Manhole Casting Reset to Grade.	EA		\$ -
		at Dollars			
25.	15	Existing Grate Basin top, reset and adjust to line and grade (use existing casting).	EA		\$ -
		at Dollars			
26.	2	Willow Oak (Quercus Phellos) 2 1/2 to 3" caliper, B&B complete in place Note: 1 year warranty.	EA		\$ -
		at Dollars			
27.	1	Mobilization	EA		\$ -
		at Dollars			
28.				Total Bid ...	\$ -

The quantities set out herein are estimates only, and the Contractor understands that they may be increased or decreased in order to complete the project covered by the proposal or to extend the project as provided in the proposal.

Important: All Unit Prices Must Be Shown Both in Words and Numbers.

***All Tree removals will only be executed with the recommendation and approval of the City Arborist.

***All tree-wells installed and or removed, and all trees planted must be approved by the City Arborist.

Bidder's Signature _____

Signature must be the same as on Page 1 of Invitation

\$ _____ TOTAL BASE BID (in words)

BID FORM

SEALED BIDS WILL BE RECEIVED at the Department of Procurement Services, City Hall, 900 E. Broad Street, Rm. 1104, Richmond, Virginia 23219, UNTIL BUT NOT LATER THAN **11:00 A.M. ON April 28, 2022**, AND WILL BE OPENED **2:00 P.M. ON April 29, 2022**.

To Procurement Services, Room 1104, 900 East Broad Street, Richmond, Virginia:

For the construction of **FY 22 City Sidewalk Improvements**

Made by: Rabieh R Danil / president
(Name and Title of Individual Executing the Bid)

Name of Bidder: ADDO Enterprises, Inc.
(Company Name)

Full Address: 2010 Chambelayne Avenue

City and State: Richmond Virginia

Phone Number: 804-228-0940 Fax Number: 804-228-0951

Email Address: RDanil@ADDOGC.com

Virginia Contractor's Registration Number: 2705-107886

Federal Tax Identification Number: [REDACTED]

By submission of this bid and authorized signature therein, the above-named Bidder certifies and affirms compliance with all terms and conditions herein and declares that:

- 1) the Bidder is of lawful age and that no other person, firm, corporation or joint venture has any interest in this Bid or in the Contract proposed to be entered into.
- 2) the Bid is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a Bid for the same purposes and is in all respects fair and without collusion or fraud.
- 3) the Bidder is not in arrears to the City of Richmond, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City of Richmond; and has not been delinquent or unfaithful in any former contract with the City of Richmond.
- 4) no officer or employee or person whose salary is payable in whole or in part by the OWNER is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this bid, or in the performance of the Contract, or in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof.

- 5) in compliance with Sec. 3.3 of the General Conditions of the Contract, the Bidder has carefully examined the site of the work and that, from his own investigations, is satisfied as to the nature and location of the work, the character, quality, and quantity of materials and the kind and extent of equipment and other facilities needed for the performance of the work, the general and local conditions and all difficulties to be encountered, and all other items which may, in any way, affect the work or its performance.
- 6) That the Bidder has thoroughly examined and is familiar with copies of the Contract Documents and the following addenda receipt of which is hereby acknowledged.

Addendum No.	<u>1</u>	Dated	<u>4/19/2022</u>
Addendum No.	<u> </u>	Dated	<u> </u>
Addendum No.	<u> </u>	Dated	<u> </u>
Addendum No.	<u> </u>	Dated	<u> </u>

If none, write "none"

- 7) The Contract will be awarded to the lowest responsive, responsible Bidder whose Total Unit Base Bid as offered in the Bid Form represents the lowest total price and complies with the conditions of the Bid, provided the bid is reasonable and it is to the best interest of the Owner to accept it.
- 8) The undersigned furthermore agrees to perform at the request of the Owner, any related extra (or less) work than required by the Contract Documents which may arise during construction on the basis of a lump sum, unless noted otherwise, negotiated between the Contractor and the Owner for said extra (or less) work or for a compensation of actual cost of labor, material and equipment rental involved in said extra (or less) work plus a percentage computed as listed below for overhead and profit as described in the Conditions of the Contract:

Where the work is performed by the Contractor's own forces, the percentage shall be Fifteen percent (15 %) of the cost of the work for overhead and or profit, not to exceed 15%. Where work is performed by a subcontractor, the percentage due to the subcontractor plus the General contractor's mark-up shall be twenty five percent (25 %) of the cost of the work for overhead and profit, not to exceed 25%.

- 9) If accepted by the Owner, the Bidder shall execute the contract and furnish, satisfactory to the Owner, a Performance Bond and Payment Bond for labor and materials in accordance with the General Conditions of the Contract unless so stated elsewhere in the bid documents.
- 10) Bidder agrees that no contract shall result from the submission of his bid and no liability shall accrue with respect thereto until a written contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner.
- 11) The undersigned further agrees to complete the work as bid within 365 consecutive calendar days after Notice to Proceed. As the time allotted for the completion of the Work is of the essence, if the work is not completed within specified time for the completion of the Work, there shall be deducted from the contract price, not as a penalty but as liquidated damages, \$600.00 for each and every

calendar day of delay in the completion of the work beyond the time specified, subject to all the terms of the General Conditions.

- 12) Accompanying this Bid is a certified or cashier's check in accordance with the General Conditions made payable to the City of Richmond in the sum of _____ Dollars (\$ _____) which check is to be forfeited as liquidated damages if, in case this Invitation for Bid is accepted, the undersigned shall fail to execute the attached contract in accordance with the General Conditions; **OR** a Bid Bond for not less than five percent (5%) of the bid amount set forth in item 14 of this Bid Form. Should the bidder so elect, said check will be returned to the undersigned upon delivery of a satisfactory bond.
- 13) Bidder certifies that he is properly registered as a licensed contractor under Title 54.1 of the Code of Virginia (1950), as amended. The number and expiration date is affixed below.
- 14) For the consideration set forth, and identified by this signature, *Richard P. ADDO* (EACH BID SHEET CONTAINING A PRICE REPRESENTATION MUST HAVE THE SAME SIGNATURE AS ABOVE IN THE SPACE PROVIDED), the Bidder proposes to furnish all materials, tools, labor and equipment of every description, except such materials specified to be furnished by the Owner, necessary to accomplish all work required by and in accordance with the Request for Qualification (if applicable), drawings, specifications, General Conditions, special provisions, bid forms, contract, bond, and any addenda associated with this project, all of which are hereby made a part of this Invitation for Bid.

Total Unit Price Base Bid – The base bid includes all supervision, labor, material, equipment, other work necessary, and required in accordance with the specifications for the COMPUTED PRICE SHOWN ON THE BELOW PRICE SCHEDULE of:

One Million Nine Hundred Ninety Six Thousand and Two Hundred forty Dollars
(Price in Words)

\$ 1,996,240.00
(Price in Figures)

In submitting this bid, it is understood that the City of Richmond, Virginia, reserves the right to reject any and all bids or to award in whole or in part as determined to be in the best interest of the City. It is agreed that this Bid may not be withdrawn for a period of 60 days from the opening thereof.

Respectfully Submitted,

ADD0 Enterprises, Inc.
(Name of Individual, Firm, or Corporation making bid)

By *Richard P. ADDO*
(Signature)

2705-107886
Virginia Contractor's Registration Number

[REDACTED]
Federal Tax ID Number

**FY 22 CITYWIDE SIDEWALK IMPROVEMENTS
BID SHEET**

BASE BID
Sheet 1 of 1

Item	Base Bid Quantities	Unit Description and Unit Price in Words	Bid Unit	Unit Price in Numbers	Extended Price in Numbers
1.	1200	Regular Excavation (No asphalt or concrete).	CY	\$ 35.00	
		at Dollars			\$ 42,000.00
2.	100	Unclassified Excavation (including up through 6" thick concrete or 8" thick asphalt).	CY	\$ 37.00	
		at Dollars			\$ 3,700.00
3.	5000	Saw cut up to 6" deep (ONLY to be paid if noted to be paid separately in the item description).	LF	\$ 5.00	
		at Dollars			\$ 25,000.00
4.	6000	Grass seed, lime, and Fertilizer, complete in place.	SY	\$ 5.00	
		at Dollars			\$ 30,000.00
5.	8000	4" Existing concrete sidewalk (Remove and Replace), complete in place. Note: Includes removal (disposal separate), preparation of subgrade, and 4" aggregate base (21A)	SY	\$ 85.00	
		at Dollars			\$ 680,000.00
6.	1400	Crushed aggregate, Type I, No. 21A or B, in place.	TON	\$ 40.00	
		at Dollars			\$ 56,000.00
7.	150	Granite curb realign, complete in place. Note: Includes excavation, backfill as required, shoring and reset, concrete collar, and pavement restoration (2" wide).	LF	\$ 100.00	
		at Dollars			\$ 15,000.00
8.	1350	6" concrete wheelchair ramp (Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2" wide).	SY	\$ 175.00	
		at Dollars			\$ 236,250.00
9.	950	Detectable warning strip 2 foot wide (truncated dome) in place per VDOT Standard CG-12A, B, or C. Complete in Place - warning strip to be federal yellow. Or as specified by engineer	SF	\$ 67.00	
		at Dollars			\$ 63,850.00
10.	6300	Topsoil, 3" depth, complete in place.	SY	\$ 6.00	
		at Dollars			\$ 37,800.00
11.	275	Concrete curb and gutter (2' to 4' gutter pan) Remove and Replace, complete in place. Note: Includes excavation, compaction of subgrade, 4" aggregate base (21A), backfill as required, and pavement restoration (2" wide).	LF	\$ 80.00	
		at Dollars			\$ 22,000.00
12.	150	Water Meter Box or Gas Curb Cock Box Reset to Grade (See DPU Standard B-957)	EA	\$ 160.00	
		at Dollars			\$ 24,000.00
13.	150	Adjust Utility Casting, Small (6"-16"). (See DPU Standard B-957)	EA	\$ 260.00	
		at Dollars			\$ 39,000.00
14.	3	Trees Removed, 30" and over, including stump removal.	EA	\$ 2,000.00	
		at Dollars			\$ 6,000.00
15.	2	Trees Removed, over 18" to 30", including stump removal.	EA	\$ 1,250.00	
		at Dollars			\$ 2,500.00
16.	45	Construct new tree well up to 25 SF in existing brick sidewalk (including saw cutting, excavation, mortared header row, and all other incidentals)	EA	\$ 400.00	
		at Dollars			\$ 18,000.00
17.	200	6" concrete Driveway (Residential - Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2" wide).	SY	\$ 165.00	
		at Dollars			\$ 33,000.00
18.	450	8" concrete high early strength (A4) Driveway/Alley Crossing (Commercial - Remove and Replace), complete in place. Note: Includes unclassified excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2" wide).	SY	\$ 180.00	
		at Dollars			\$ 81,000.00
19.	3000	New Brick Sidewalk on 4" cement-sand base, complete in place. Note: Excavation to be paid as a separate item.	SY	\$ 140.00	
		at Dollars			\$ 420,000.00
20.	1500	Remove, salvage, cull, neatly pallet, and deliver to city yard bricks from existing brick sidewalk.	SY	\$ 35.00	
		at Dollars			\$ 52,500.00
21.	30	Granite curb (new) install Note: Includes excavation, backfill as required, shoring, concrete collar, and pavement restoration (2" wide). In accordance with special provisions.	LF	\$ 128.00	
		at Dollars			\$ 3,840.00
22.	50	6" concrete wheelchair ramp (NEW), complete in place. Note: Includes regular excavation, compaction of subgrade, 6" aggregate base (21A), backfill as required, and pavement restoration (2" wide).	SY	\$ 170.00	
		at Dollars			\$ 8,500.00
23.	30	Construct new tree well up to 25 SF in existing concrete sidewalk (including saw cutting, excavation, and all other incidentals)	EA	\$ 400.00	
		at Dollars			\$ 12,000.00
24.	10	Drainage or Sewer Manhole Casting Reset to Grade.	EA	\$ 750.00	
		at Dollars			\$ 7,500.00
25.	15	Existing Grate Basin top, reset and adjust to line and grade (use existing casting).	EA	\$ 1,000.00	
		at Dollars			\$ 15,000.00
26.	2	Willow Oak (Quercus Phellos) 2 1/2 to 3" caliper, B&B complete in place Note: 1 year warranty.	EA	\$ 1,000.00	
		at Dollars			\$ 2,000.00
27.	1	Mobilization	EA	\$ 60,000.00	
		at Dollars			\$ 60,000.00
28.					
				Total Bid	\$ 1,996,240.00

The quantities set out herein are estimates only, and the Contractor understands that they may be increased or decreased in order to complete the project covered by the proposal or to extend the project as provided in the proposal.

Important: All Unit Prices Must Be Shown Both in Words and Numbers.

***All Tree removals will only be executed with the recommendation and approval of the City Arborist.

***All tree-wells installed and or removed, and all trees planted must be approved by the City Arborist.

Bidder's Signature: 
Signature must be the same as on Page 1 of Invitation

*one Million Nine Hundred Ninety Six
Thousand and two hundred forty Dollars*

TOTAL BASE BID (In words)

CITY OF RICHMOND BID BOND

KNOW ALL MEN BY THESE PRESENTS: That ADDO Enterprises, Inc.
_____, the Contractor ("Principal"),
whose principal place of business is located at 2010 Chamberlayne Avenue, Richmond, VA 23222 ,
and The Cincinnati Insurance Company ("Surety"),
whose address for delivery of 'Notices' is located at P.O. Box 145496, Cincinnati, OH 45250-5496 ,
are held and firmly bound unto the City of Richmond, Virginia, the Owner ("Obligee") in the
amount of five percent of the Total Amount Bid by the Principal, for the payment of which sum
the Principal and the Surety bind themselves and their heirs, executors, administrators, succes-
sors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has submitted a bid in response to Invitation for Bids No.
IFB 220010779 for FY22 City Sidewalk Improvements ;

NOW, THEREFORE, THE CONDITIONS OF THIS OBLIGATION are as follows:

1. This Bid Bond shall guarantee that:
 - a. The Principal will not withdraw its bid during the period of 60 days following the opening of bids.
 - b. If the Obligee accepts the Principal's bid, the Principal will enter into a formal contract with the Obligee in the form of the Construction Contract included as part of the Invitation for Bids.
 - c. The Principal will submit the required Certificate of Insurance, any other required insurance documents and, if required by the Invitation for Bids, a properly executed Performance Bond and Labor and Material Payment Bond on the forms for such bonds included as part of the Invitation for Bids or such alternative forms of security as may be permitted under the Contract Documents.
 - d. In the event the Principal either (i) withdraws its bid during the period specified in subsection (a) above or (ii) fails, refuses or neglects to enter into the contract specified in subsection (b) above and give the insurance documents and bonds specified in subsection (c) above within 15 days after the Principal has received notice of the Obligee's acceptance of its bid, the Principal and the Surety shall be jointly and severally liable to the Obligee for the difference between the amount specified in the Principal's bid and such larger amount for which the Obligee may contract with another party to perform the work covered by said bid, up to the amount of the bid guarantee.
2. The Obligee, the Principal and the Surety agree that the amount for which the Principal and the Surety shall be jointly and severally liable to the Obligee pursuant to section 1(d) above represents the damage to the Obligee on account of the default of the Principal in any particular of section 1 above.

3. The Surety represents to the Oblige and the Principal that it is legally authorized to transact surety business in the Commonwealth of Virginia.

SIGNATURES AND SEALS ON FOLLOWING PAGE

Signed and sealed this 2nd day of May, 2022.

ADDO Enterprises, Inc.
Contractor / Principal

(SEAL)

[Signature]
Witness

By: [Signature]

Title: president



The Cincinnati Insurance Company
Surety

(SEAL)

By: [Signature]
Attorney-in-Fact

Surety Phone No. 513-870-2000

Typed Name: Leah Moore

AFFIDAVIT AND ACKNOWLEDGEMENT OF ATTORNEY-IN-FACT

COMMONWEALTH OF Virginia
CITY of Richmond

I, the undersigned notary public, do certify that Leah Moore, whose name is signed to the foregoing bid bond in the amount of five percent of the Total Amount Bid and which names the City of Richmond, Virginia, as Oblige, personally appeared before me today in the above jurisdiction and made oath that such individual (i) is the attorney-in-fact of The Cincinnati Insurance Company, a OH corporation which is the Surety in the foregoing bond, (ii) is duly authorized to execute on the above Surety's behalf the foregoing bond pursuant to the Power of Attorney noted above, and (iii) acknowledged, on behalf of the above Surety, the foregoing bond before me as the above Surety's act and deed. Such individual has further certified that such individual's Power of Attorney has not been revoked.

Given under my hand this 2nd day of May, 2022.

[Signature]
Notary Public (SEAL)

My name (printed) is: Laurie Ann Daugherty

My Notary Registration No. is: 7528807

My commission expires: April 30, 2024



THE CINCINNATI INSURANCE COMPANY
THE CINCINNATI CASUALTY COMPANY

Fairfield, Ohio

POWER OF ATTORNEY

KNOW ALL MEN BY THESE PRESENTS: That THE CINCINNATI INSURANCE COMPANY and THE CINCINNATI CASUALTY COMPANY, corporations organized under the laws of the State of Ohio, and having their principal offices in the City of Fairfield, Ohio (herein collectively called the "Companies"), do hereby constitute and appoint **Leah Moore** its true and legal Attorney-in-Fact to sign and deliver on behalf of the Companies as Surety, at any place within the United States, the following surety bond:

Surety Bond Number: **Bid Bond**
Principal: **ADDQ Enterprises, Inc.**
Obligee: **City of Richmond**

This appointment is made under and by authority of the following resolutions adopted by the Boards of Directors of The Cincinnati Insurance Company and The Cincinnati Casualty Company, which resolutions are now in full force and effect, reading as follows:

RESOLVED, that the President or any Senior Vice President be hereby authorized, and empowered to appoint Attorneys-in-Fact of the Company to execute any and all bonds, policies, undertakings, or other like instruments on behalf of the Corporation, and may authorize any officer or any such Attorney-in-Fact to affix the corporate seal; and may with or without cause modify or revoke any such appointment or authority. Any such writings so executed by such Attorneys-in-Fact shall be binding upon the Company as if they had been duly executed and acknowledged by the regularly elected officers of the Company.

RESOLVED, that the signature of the President or any Senior Vice President and the seal of the Company may be affixed by facsimile on any power of attorney granted, and the signature of the Secretary or Assistant Vice-President and the Seal of the Company may be affixed by facsimile to any certificate of any such power and any such power of certificate bearing such facsimile signature and seal shall be valid and binding on the Company. Any such power so executed and sealed and certified by certificate so executed and sealed shall, with respect to any bond or undertaking to which it is attached, continue to be valid and binding on the Company.

IN WITNESS WHEREOF, the Companies have caused these presents to be sealed with their corporate seals, duly attested by their President or any Senior Vice President this 16th day of March, 2021.



STATE OF OHIO)SS:
COUNTY OF BUTLER)

THE CINCINNATI INSURANCE COMPANY
THE CINCINNATI CASUALTY COMPANY

Stephen A. Ventre

On this 16th day of March, 2021 before me came the above-named President or Senior Vice President of The Cincinnati Insurance Company and The Cincinnati Casualty Company, to me personally known to be the officer described herein, and acknowledged that the seals affixed to the preceding instrument are the corporate seals of said Companies and the corporate seals and the signature of the officer were duly affixed and subscribed to said instrument by the authority and direction of said corporations.



Keith Collett
Keith Collett, Attorney at Law
Notary Public - State of Ohio

My commission has no expiration date.
Section 147.03 O.R.C.

I, the undersigned Secretary or Assistant Vice-President of The Cincinnati Insurance Company and The Cincinnati Casualty Company, hereby certify that the above is the Original Power of Attorney issued by said Companies, and do hereby further certify that the said Power of Attorney is still in full force and effect.

Given under my hand and seal of said Companies at Fairfield, Ohio, this 2nd day of May, 2022.



Ed H.



MBE/ESB PARTICIPATION FORM (MBE-2)

Minority Business Development
 1500 East Main Street, 5th Floor
 Richmond, VA 23219
 Office: (804) 646-5947
 Fax: (804) 646-0136
<https://www.rva.gov/mbd>

All firms listed in this directory have registered with the City of Richmond as a minority owned business (MBE) or certified as an Emerging Small Business (ESB). It should be noted, that there are MBE businesses listed in this directory that are not certified. Therefore, any prime contractor/vendor desiring to use a registered MBE firm that is not certified, must be aware, that the registered MBE firm has 180 days to get certified or before the completion of the contract, whichever is less, or the prime contractor/vendor risks not receiving credit toward the minority participation goal for the said project.

COMPANY DATA	COMPANY NAME: ADD0 Enterprises, Inc		PROJECT NAME/CONTRACT No. FY22 City Sidewalk Improvements	
	CONTACT NAME: Rabieh Danil	PHONE # 804-228-0940	Fax# 804-228-0951	Email: RDaniL@ADD0GL.com
	BUSINESS LICENSE No.		BUSINESS LICENSING JURISDICTION: Richmond	FED ID NO/SSN
	PROPOSED PARTICIPATION CODES A= First, Second, and/or Third Tier Subcontracting B=Supply Purchases C=Joint Venture D= Mentor-Protégé E= Other Credibly Viable Method ENTER CODES BELOW			
OWNERSHIP CODES		1 = African American 2 = Hispanic American 3 = Asian American 4 = American Indian 5 = Other (Specify Below)		

Minority / Emerging Small Business Commitments	SUBCONTRACTOR NAME	PHONE	SCOPE OF WORK FOR PARTICIPATION IN CONTRACT	DOLLAR AMOUNT	PARTICIPATION
	ADDRESS	FED ID NO./SSN		% OF CONTRACT	OWNERSHIP
	1 ABC Co., Inc.	(XXX) 555-5555	Concrete Work	\$20,000	A
	110 Main Street Anywhere, USA	54-XXXXXX	Other Excavation	10%	2
	2 Liquid Inc		Concrete work	\$199,624	A
					1
*IF OWNED TYPE "5 = OTHER" SPECIFY HERE:			TOTAL DOLLAR AMOUNT	\$199,624	
MBE/ESB PROJECT GOAL ESTABLISHED BY THE CITY OF RICHMOND → 10%			TOTAL % OF CONTRACT	10%	

Bidder and the MBE/ESB agree that the MBE/ESB shall not subcontract or assign any work described herein to another entity without prior written approval of the City of Richmond.

THE UNDERSIGNED HEREBY CERTIFIES THAT S/HE HAS READ THE TERMS OF THIS COMMITMENT AND IS AUTHORIZED TO BIND THE BIDDER TO THE COMMITMENT HEREIN SET FORTH.

SIGNATURE OF AUTHORIZED OFFICIAL: 	DATE: 5/2/2022
---------------------------------------	--------------------------

ADD O ENTERPRISES, INC.



- SEGMENTAL RETAINING WALLS
- FOUNDATION EXCAVATION & CONSTRUCTION
- SIDEWALKS & DRIVEWAYS [CONCRETE, STONE & PAVERS]
- BRICK & COBBLESTONE PAVERS
- SITE WORK & UTILITIES

May 2, 2022

City of Richmond
Department of Procurement Services
900 E. Broad Street, Room 1104
Richmond, Virginia 23219

Re: **FY 22 City Sidewalk Improvements
Professional References and Project Plan**

Dear Sir / Madam,

ADD O Enterprises, Inc. was established in February 2000 and has been performing construction work since that date. Our office is located at 2010 Chamberlayne Avenue, Richmond Virginia 23222.

- | | |
|----------------------------|--------------------------------|
| 1. FEIN # | [REDACTED] |
| 2. VA Class A Contractor # | 2705-107886A expires 6/30/2022 |
| 3. D & B Duns # | 04-529-1073 |

Professional References

1. **Lamont Benjamin** , City Of Richmond 804-646-6339
2. **Adel Edwards** , City Of Richmond 804-646-6584
3. **Yongping Wang**, City Of Richmond 804-646-2467

Project Plan

1. **ADD O** will provide a schedule once an assignment has been issued with locations and quantities.

Should you have any questions in regards to this proposal, please do not hesitate to contact the undersigned.

Respectfully submitted,

ADD O Enterprises, Inc.


Rabieh Danil

ADDENDUM NO. 1

Invitation for Bid: No. 220010779 FY22 City Sidewalk Improvements

DATE: April 19, 2022

DUE DATE: Monday, May 2, 2022; 11:00 AM

OPEN DATE: Tuesday, May 3, 2022; 2:00 PM

SUBJECT: Questions/Modifications

Ladies/Gentlemen:

Please take note of the following:

Modifications:

- Due Date changed to **Monday, May 2, 2022 – 11:00 AM**
- Open Date changed to **Tuesday, May 3, 2022 – 2:00 PM**
- Seven (7) Locations Sample Blocks (attached)
- Pre-Bid Meeting Notes/Pre-Bid Attendance Sheet (attached)

Questions:

1. **Question:** How many contractors is the City going to use?

Answer: Three contractors, one primary, alternate #1, and alternate #2

2. **Question:** Is all testing done to be paid for by the City of Richmond?

Answer: All QA (Quality Assurance) testing will be paid for by the City. The QC (Quality Control) will be the contractors responsibility.

3. **Question:** If lowest bidder is able to keep up with all work, will they be awarded 100% of contract work?

Answer: The lowest bidder will have first consideration for all work performed under contract. Once he has extended his manpower/resources work will be offered to alternate contractors.

4. **Question:** Will the second or third contractor be awarded any work regardless if the lowest bidder states they can handle it? If so, what percentage might that be?

Answer: The lowest bidder will have priority on awarded work and will have to demonstrate that they can perform the amount of work given. The amount of work is likely too large for one or even two contractors to complete at one time. Work orders will be given out that should take one crew to complete in 60 days.

5. **Question:** If three contractors are used by the City, will each one need to provide a bond for the full amount of the bid even if the City knows the contractors will not do dollar value amount on bid?

Answer: The Primary contractor will be required to provide a bond for the full amount of award. The Alternate #1 contractor will have to provide a bond of at least 66% of the award. The Alternate #2 contractor will have to provide a bond of at least 33% of the award.

6. **Question:** Will the City just request bond amount for dollar value of contract they assign each contractor?

Answer: The Primary contractor will be required to provide a bond for the full amount of award. The Alternate #1 contractor will have to provide a bond of at least 66% of the award. The Alternate #2 contractor will have to provide a bond of at least 33% of the award.

7. **Question:** Line item # 11 – Curb and Gutter; should a line item be added for curb only?

Answer: No, a line item is not required.

8. **Question:** Line item # 18 – 6” concrete wheelchair ramp; there should be an item added for “independent curb” that needs to be installed on a lot of ramps now. This item is required on all county and state work now.

Answer: No, an item is not required for “independent curb”.

This addendum must be acknowledged and included with the bid submission as indicated in the IFB or your response may not be considered.

Sincerely,

Corliss P. Spurlock

Corliss P. Spurlock,
Senior Procurement Analyst
(804) 646-5804
corliss.spurlock@rva.gov

RESPECTFULLY SUBMITTED:

ADD Enterprises, Inc
Company

BY: [Signature]

president 5/2/2022
Title Date



Contract No. 22000011432

CITY OF RICHMOND

PROCUREMENT SERVICES CONTRACT MODIFICATION NO. 1

(RENEWAL NO. 1)

THIS CONTRACT MODIFICATION is made and entered into as of the 29th day of May, 2023, by and between the City of Richmond, hereinafter referred to as the "City," and ADDO Enterprises Inc., hereinafter referred to as the "Contractor."

WITNESSETH

WHEREAS, on May 23, 2022, the City and the Contractor entered into Contract No. 22000011432 (the "Contract");

WHEREAS, the initial term of the Contract was for the term of May 23, 2022, through May 22, 2023;

WHEREAS, section 9.4.2 of the General Conditions of the Contract provides the City with the option to exercise up to four, one-year renewal options;

WHEREAS, since May 22, 2023, the Contractor has continued to provide Services to the City pursuant to the terms and conditions of the Contract, which Services the City ordered and accepted, and the City and the Contractor have proceeded in all respects as though the Contract was still in force and in effect;

WHEREAS, the parties deem it to be to their mutual benefits to modify the aforementioned Contract and to exercise the first of four, one-year renewal options under section 9.4.2 of the General Conditions of the Contract for term May 23, 2023, through May 22, 2024;

NOW, THEREFORE,

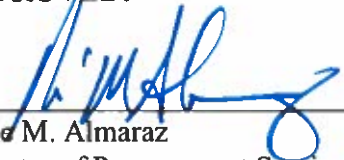
That for and in consideration of the mutual benefits to be derived by the City and the Contractor, the Contract is hereby modified as follows:

1. The Contract is hereby and shall be deemed renewed for the period commencing at midnight on May 23, 2023, and ending at 11:59 p.m. on May 22, 2024, pursuant to section 9.4.2 of the General Conditions of the Contract.
2. Orders placed against this contract will be through fully approved purchase orders issued by the City. By signing this contract, the Contractor agrees not to accept orders from the City without a fully approved purchase order. Acceptance of other orders are at the Contractor's sole risk.

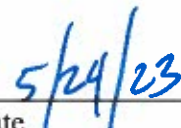
The City and the Contractor covenant and agree each with the other that the Contract, between the parties, except as modified herein, shall be and remain in full force and effect.

IN TESTIMONY WHEREOF, the City and the Contractor have executed this instrument as of the respective dates written below.

APPROVED:



Rene M. Almaraz
Director of Procurement Services



Date

 / President

Contractor (signature in ink)

Rabieh R Danil

(printed name)

5/22/2023

Date



CITY OF RICHMOND

PROCUREMENT SERVICES CONTRACT MODIFICATION NO. 2

THIS CONTRACT MODIFICATION is made and entered into as of the 29 day of August, 2023, by and between the City of Richmond, hereinafter referred to as the "City," and ADDO Enterprises Inc., hereinafter referred to as the "Contractor."

WITNESSETH

WHEREAS, on May 23, 2022, the City and the Contractor entered into Contract No. 22000011432 (the "Contract");

WHEREAS, the initial term of the Contract was for the one-year term of May 23, 2022, through May 22, 2023;

WHEREAS, section 9.4.2 ("Renewal Terms") of Part 2 - General Conditions of the Contract provides the City with the option to exercise up to four, one-year renewal options;

WHEREAS, through Contract Modification No. 1 dated May 24, 2023, the City and the Contractor documented the exercise of the first one-year renewal option under section 9.4.2 for the renewal term of May 23, 2023, through May 22, 2024;

WHEREAS, section 9.4 ("Term of Unit Price Contracts") of Part 2 of the Contract requires the contract amount for each renewal term be set in writing at the time of renewal, but the parties inadvertently failed to set the contract amount for the first renewal term in the Contract Modification No. 1 dated May 24, 2023;

WHEREAS, the parties deem it to be to their mutual benefits to modify the aforementioned Contract to set contract amount as \$720,000.00 for the renewal term of May 23, 2023 through May 22, 2024, as required by section 9.4 of the General Conditions of the Contract;

NOW, THEREFORE,

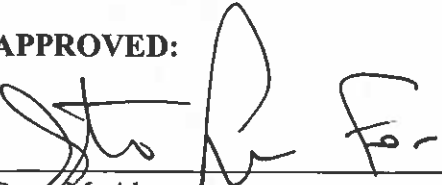
That for and in consideration of the mutual benefits to be derived by the City and the Contractor, the Contract is hereby modified as follows:

1. Pursuant to section 9.4 ("Term of Unit Price Contracts") of the Contract, the contract amount for the renewal term of May 23, 2023, through May 22, 2024, is \$720,000.
2. The City and the Contractor covenant and agree each with the other that the Contract, between the parties, except as modified herein, shall be and remain in full force and effect.

SIGNATURES APPEAR ON FOLLOWING PAGE

IN TESTIMONY WHEREOF, the City and the Contractor have executed this instrument as of the respective dates written below.

APPROVED:



Rene M. Almaraz
Director of Procurement Services

8/15/23

Date



Contractor (signature in ink)
Osama Danil / U.P.

(printed name)

8/15/2023

Date



Contract No. 22000011432

CITY OF RICHMOND

PROCUREMENT SERVICES CONTRACT MODIFICATION NO. 3 RENEWAL NO. 2

THIS CONTRACT MODIFICATION is made and entered into as of the 15th day of May, 2024, by and between the City of Richmond, hereinafter referred to as the "City," and ADDO Enterprises Inc., hereinafter referred to as the "Contractor."

WITNESSETH

WHEREAS, on May 23, 2022, the City and the Contractor entered into Contract No. 22000011432 (the "Contract");

WHEREAS, the initial term of the Contract was for the term of May 23, 2022, through May 22, 2023;

WHEREAS, section 9.4.2 of the General Conditions of the Contract provides the City with the option to exercise up to four, one-year renewal options;

WHEREAS, on May 24, 2023, the City and the Contractor executed a Contract Modification that documented the City's exercise to modify the aforementioned Contract and to exercise the first of four, one-year renewal options under section 9.4.2 of the General Conditions of the Contract for term May 23, 2023, through May 22, 2024;

WHEREAS, on August 29, 2023, the City and the Contractor executed a Contract Modification that documented the City's exercise to modify the aforementioned Contract and to exercise a contract increase adding \$720,000.00; maximum contract amount \$1,444,000.00;

WHEREAS, the parties deem it to be to their mutual benefits to modify the aforementioned Contract to (i) exercise the second of four one-year renewal options to renew the Contract under section 9.4.2 of General Conditions of the Contract for May 23, 2024, through May 22, 2025 (ii) set the contract amount for the renewal term as required by section 9.4 of the General Terms and Conditions of the Contract;

NOW, THEREFORE,

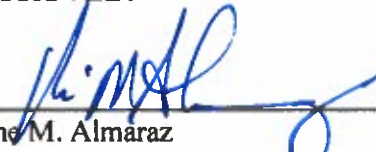
That for and in consideration of the mutual benefits to be derived by the City and the Contractor, the Contract is hereby modified as follows:

1. The Contract is hereby and shall be deemed renewed for the period commencing at midnight on May 23, 2024, and ending at 11:59 p.m. on May 22, 2025, pursuant to section 9.4.2 of the General Conditions of the Contract.
2. **Contract Amount.** Pursuant to section 9.4 ("Term of Unit Price Contracts") of the Part 2 – General Conditions of the Contract, the contract amount for the renewal term of May 23, 2024, through May 22, 2025, is \$2,160,000.00.

The City and the Contractor covenant and agree each with the other that the Contract, between the parties, except as modified herein, shall be and remain in full force and effect.

IN TESTIMONY WHEREOF, the City and the Contractor have executed this instrument as of the respective dates written below.

APPROVED:



Rene M. Almaraz
Director of Procurement Services

5/15/24

Date

 / president

Contractor (signature in ink)

Rabiich R. Daoul

(printed name)

5/14/2024

Date